NMDC LIMITED
(A GOVERNMENT OF INDIA ENTERPRISE)
Khanij Bhavan, 10 – 3 – 311/A, Castle Hills, Masab Tank
HYDERABAD – 500 028

TENDER DOCUMENT

FOR

Design, Development, Hosting, Commissioning, Testing & Go- Live etc. of Contract Labour Management System (CLMS) at NMDC.

VOLUME – I

COMMERCIAL

Tender Enquiry No: HO(Works)/ Contracts/ ERP/CLMS/2025/1132/ 322 dated 20.04.2026

TENDER DOCUMENT CONSISTING OF -

VOLUME -I: COMMERCIAL DOCUMENT

VOLUME – II: SCOPE OF WORK & TECHNICAL SPECIFICATIONS

CONTENTS

PRESS NOTIFICATION
NMDC LIMITED
(A Government of India Enterprise)
'Khanij Bhavan', 10-3-311/A, Castle Hills, Masab Tank, Hyderabad - 500 028
Corporate Identity Number (CIN) - L13100TG1958GOI001674
WORKS DIVISION
CONTRACTS DEPARTMENT

Tender Enquiry No: HO(Works)/ Contracts/ ERP/CLMS/2025/1132/322 Dtd. 20.04.2026

NMDC Limited, A "NAVARATNA" Public Sector Company under Ministry of Steel, Govt. of India, invites **online bids** from experienced domestic bidders for ***Design, Development, Hosting, Commissioning, Testing & Go- Live etc. of Contract Labour Management System (CLMS) at NMDC.***

The detailed NIT and Bid documents can be viewed and / or downloaded from **20.04.2026** to **11.05.2026** from following website links:

1. NMDC website http://www.nmdc.co.in
2. Central Public Procurement Portal (CPP PORTAL) http://www.eprocure.gov.in/epublish/app
3. MSTC portal - https://www.mstcecommerce.com/eprocn/

For accessing the bid document from MSTC portal, bidder has to visit at MSTC website link https://www.mstcecommerce.com/eprocn/ and search Tender Event No. **NMDC/Head Office/Contract/59/25-26/ET/669 [Contract Labour Mgmnt System]**. For further help refer to 'vendor guide' given in MSTC website.

The bidders are requested to submit their bids online through MSTC Limited e-procurement website.

For further clarification, the following can be contacted:

ED (Works), NMDC Limited, Hyderabad, Tel No. 040-23538761, email: contracts@nmdc.co.in

For and on behalf of NMDC Ltd

Executive Director (Works)

NMDC LIMITED
(A GOVERNMENT OF INDIA ENTERPRISE)
Khanij Bhavan, 10 – 3 – 311/A, Castle Hills, Masab Tank
HYDERABAD – 500 028

COMMERCIAL DOCUMENT

VOLUME – I
(NIT, BDS, SCC, ITT, FOCA, GCC and Safety Code)

FOR

Design, Development, Hosting, Commissioning, Testing & Go-Live etc. of Contract Labour Management System (CLMS) at NMDC

CHECK LIST

Tenderer shall ensure that all the documents given below have been submitted with the offer in two bid system:

Sl. No	Document	Submitted Yes/No
Part – I consists of following documents		
1.	Letter of undertaking as per Annexure – 1 to ITT	
2.	Earnest Money Deposit (EMD)/ Submission of MSE certificate by MSE firm	
3.	Duly signed Integrity Pact as per Annexure – 3 to ITT	
4.	Information about the Tenderer as per Annexure 4 of ITT	
5.	Power of Attorney of signatory to the tender	
6.	Documents in support of fulfilment of Eligibility Criteria.	
7.	Details of Turnover as per Annexure 6 of ITT along with Audited Profit & Loss Account Statements & Balance Sheet.	
8.	Independent Auditor Report/ Annual Audited report / Certificate from Chartered Accountant for not been in Default to any banker / financial institution, in case audited annual report not available.	
9.	Details of works in hand as per Annexure 7 of ITT	
10.	Statement of Exceptions and Deviations taken from the tender conditions by Tenderer as per Annexure 9 of ITT: This is a **NIL Deviation tender. No deviation is allowed.**	
11.	Dummy price sets duly signed & sealed	
12.	Copy of PAN no. issued by IT department	
13.	Copy of P.F. Registration no. allotted by RPFC / PF Exemption certificate issued by any RPFC / Letter of Undertaking towards PF code (applicable to bidders who do not possess PF code) as per Annexure 11 to ITT	
14.	Copy of GSTN	
15.	Bank Account details in order to facilitate payments through e-payment mode.	
16.	Amendments/corrigenda/addenda etc. if any.	
17.	Undertaking by the bidder confirming to tender terms & conditions in totality. *[Bidders are advised to refrain from signing and uploading the entire tender document.]*	
18.	Undertaking in its letter head for obtaining labour license from Labour Inspectorate as required for taking up the work	

Sl. No	Document	Submitted Yes/No
19.	Declaration by the Tenderer on his letter head that the firm is not blacklisted by any PSU / Govt. Body	
20.	Declaration by the Tenderer on his letter head informing relationship with employees of NMDC, if any	
21.	Authorization letter by the Tenderer in his letter head authorizing NMDC Limited to seek references from Tenderer's bankers.	
22.	Certificate Regarding Compliance for restrictions under Rule 144 (XI) of the General Financial Rules (GFRS), 2017 as per Annexure-12 to ITT	
23.	Percentage of Local supply items / services offered as per Public Procurement (Preference to Make in India, Order 2017 dated 04.06.2020 (Refer Annexure-13 to ITT).	
Part – II consists of following documents		
1.	Price Bid (Duly filled)	

Note:

1) Scanned / pdf formats of relevant documents of Part I and Part II (price bid – duly filled) are to be uploaded online.

SECTION – A
NOTICE INVITING TENDER (NIT)

1.0 NMDC is a public sector company under Ministry of Steel, Government of India. NMDC is primarily engaged in the business of exploring minerals and developing mines to produce raw materials for the industry, it is expanding its activities towards steel making and other value-added products. It has been conferred **"Navratna"** status by the Government of India.

2.0 NMDC Limited, Hyderabad hereinafter referred to as **"Owner / Employer"**, invites **online** bids **in two bid system** from eligible domestic bidders for carrying out the work of ***Design, Development, Hosting, Commissioning, Testing & Go- Live etc. of Contract Labour Management System (CLMS) at NMDC***

3.0 Interested Bidders (Tenderers) may obtain further information from the office of NMDC Limited at the following address:

ED (Works)
NMDC Limited,
Contracts Department,
4th Floor, 10-3-311/A,
Khanij Bhavan, Castle Hills,
Masab Tank, Hyderabad-500028,
Ph: +91-40 23538761,
Email: contracts@nmdc.co.in

4.0 The complete set of Bid documents can be viewed and downloaded from the following website links from **20.04.2026 to 11.05.2026;**

(i) NMDC website – https://nmdcportals.nmdc.co.in/nmdctender
(ii) Central Public Procurement portal – https://www.eprocure.gov.in/epublish/app and search tender through tender enquiry number
(iii) MSTC portal - https://www.mstcecommerce.com/eprocn/

Bid documents and/or corrigendum downloaded from NMDC website /Central Public procurement portal / MSTC Portal shall only be considered as authentic. Bid documents downloaded from any other source / website is/are liable for rejection.

4.1 The Bidder shall download the "Bidding Document" available in the website in totality and an undertaking to this effect shall be submitted as per **Annexure-1 to ITT**.

4.2 It shall be the responsibility of the prospective bidders to ensure that the Bids have been submitted in the formats and as per the terms and conditions prescribed in the bidding document and no change is made therein. The documents placed in portal along with this detailed Notice Inviting Tender (NIT) forms the complete bidding document. All the documents along with detailed NIT as placed in the portal are final including clarification, drawings, corrigendum, addendum, pre-bid meetings, if any. On verification, at any time, whether the Bidder is successful or not, if any of the documents submitted by the Bidder including the documents downloaded from Employer's above-mentioned websites are found tampered/ altered / incomplete, they are liable for rejection, cancellation & termination of the Contract, debarring, etc. as per the rules of the Company. In case of any discrepancies between Tender documents downloaded from the website and the master copy available in our server, the master copy shall be considered authentic and shall be binding on the Bidder. No claim on this account from the Bidders will be entertained.

5.0 Salient features of the bid:

Sl. No	Tender Enquiry No. & Date	HO(Works)/ Contracts/ ERP/ CLMS/ 2025/ 1132/322 Dtd. 20.04.2026
(a).	MSTC Tender Event No.	NMDC/ Head Office/ Contract/ 59/ 25-26/ET/ 669 [Contract Labour Mgmnt System]
(b).	Tender Description	*Design, Development, Hosting, Commissioning, Testing & Go- Live etc. of Contract Labour Management System (CLMS) at NMDC*
(c).	Estimated Cost	**Rs. 149.74 Lakhs** including GST
(d).	Scope of Work	Refer **Article-3** of Form of Contract Agreement & Technical Specification
(e).	Eligibility / Qualification requirements for Bidder	Refer **Sl. No. 5** of Bid Data Sheet to NIT
(f).	Bids with JV/Consortium	**Not Applicable**
(g).	Viewing / Downloading of Tender Documents	Start date & Time: 20.04.2026 (15.00 hrs. IST) Close date & Time: 11.05.2026 (15.00 hrs. IST)
(h).	Manner of Submission of Online Tender	Refer Clause No. 8.0 of NIT
(i).	Dates for online Submission of Tender	From **04.05.2026 to 11.05.2026** by 15.00 hrs.
(j).	Pre – Bid meeting	Online Pre-Bid meeting will be held on **24.04.2026** from **11.00 Hrs (IST)** onwards. (Microsoft Teams App link will be sent to bidders who request for the same to join virtually)

		The intending bidders shall submit the queries if any, through e-mail to contracts@nmdc.co.in (with CC to sthandapani@nmdc.co.in) in editable soft copy of MS-WORD or EXCEL format before **the Pre-bid meeting.** Link will be sent to only those bidders who share their email address and queries before above date and time. Clarifications including amendment/ corrigenda if any, issued prior to submission of bids would be uploaded in MSTC Portal besides NMDC's website www.nmdc.co.in and Central Public Procurement (CPP) portal www.eprocure.gov.in for the purpose of downloading by all the prospective bidders. All such clarifications shall form part of bid documents. The prospective bidders have to check the website(s) for any amendment/ corrigenda/ clarifications periodically. All prospective bidders are presumed to have examined all amendments / corrigenda / clarifications published on the website and have submitted their bids accordingly. In case any queries remain un-replied, it shall be construed that in respect of those queries, the respective stipulations of the bidding documents shall continue to apply and/or no new stipulations are made with respect to those queries.
(k).	Integrity Pact	*Applicable (refer cl. no. 7.0 of NIT and Annexure-3 to ITT). If Integrity Pact is not uploaded, then the bid will be summarily rejected.*
(l).	Opening of Part – I of Tender	Part – I of the online bids will be opened on 11.05.2026 at 15.30 Hrs. Part-I - The bidder has to upload scanned copies as per the manner and in the form specified in clause no. 8.1 and Clause no.9.0 of NIT.
(m).	Earnest Money Deposit	Bidder to submit EMD of **₹ 1,49,740/- (Rupees One Lakh Forty Nine Thousand Seven Hundred Forty Only)**

		Refer Clause No. 8.1 of NIT, Cl. No. 7 of ITT & Annexure-2 to ITT.
(n).	Alternative Bids	Not Applicable
(o).	Bid Prices	Bidders are required to quote price breakup in all the applicable tables of Price Schedule in INR only
(p).	Validity of the offer	**90 days** from the due date of submission of bid.
(q).	Part-II (Price Bid) opening	After evaluation of techno-commercial offers, the price bids of the techno-commercially qualified bidder (s) shall be opened. The date and time of opening of price bids (online price bids) shall be intimated at a later date to such qualified bidders only.
(r).	Period of Contract (Article 4 of Form of Contract Agreement).	Contract Period is 06 months for implementation followed by 12 months of warranty period, followed by 12 months of Annual maintenance contract period from the Effective date of Contract
(s).	**Amount of Contract Performance Guarantee:**	Amount of Contract Performance Bank Guarantee shall be equivalent to ***10 %*** **Manner of submission of Contract Performance Guarantee:** Within thirty (30) days from the effective date of Contract, the successful Tenderer, to whom the contract is awarded, shall furnish a Performance Guarantee (CPG) in the form of EFT / Demand Draft / Bank Guarantee (BG) from a Nationalised Indian Bank / Scheduled Commercial Bank including a foreign bank having a branch in India, in favour of the Employer. BG shall be in the form attached as Annexure-10 to the Instructions to Tenderers. The Performance Guarantee amount shall be equal to **Ten** percent (**10** %) of the total contract price and it shall guarantee due and faithful performance of the contract in accordance with the terms and conditions specified in these

		tender documents. The Performance Bank Guarantee shall be valid up to 3 months beyond the scheduled completion period, or 3 months beyond the Defect Liability Period where applicable. **Refer clause No. 23.0 of ITT and Annexure – 10 to ITT.**

6.0 The Tender Document consists of: -

a. **Volume-I: Commercial Document**

a) Section I: Notice Inviting Tender (NIT) and Bid Data Sheet (BDS)
b) Section II: Special Conditions of Contract (SCC)
c) Section III: Instruction to Tenderer (ITT)
d) Section IV: Form of Contract Agreement with Appendices
e) Section V: General Condition of Contract (GCC)
f) Section VI: Safety code for contractors including MoU

b. **Volume-II: Technical Specifications**

7.0 Submission of Integrity Pact:

Bidders are required to submit Integrity Pact (IP) along with their bid as per format and manner as given in Clause no. **8.1 (4) of NIT** hereof and complying with the following requirements;

a) Bidder shall submit the Integrity Pact document on its Company's Letter head, duly signed by the authorized representative on all pages.
b) On behalf of NMDC, the Integrity Pact will be signed by the authorized nominee on receipt of Integrity Pact signed by the Bidder.
c) The Bidder shall not change the contents of Integrity Pact.
d) The Bidder / Contractor will abide by the conditions given in the IP document
e) The detail of the External Independent Monitors nominated for this tender are given hereunder:

1. Smt. Rajni Sekhri Sibal, IAS (Retd.)
   E-mail: rajnisekhrisibal@gmail.com
2. Shri P V Rao, IRS (Retd.)
   E-mail: pasupuletirao@yahoo.in

3. Shri Dharam Chand Jain, IPS (Retd.)
   jaindharam@hotmail.com

8.0 Submission of Bids

Part – 1 and Part – 2 of the bids shall be submitted online through MSTC/ e-procurement website. Bidder has to upload the documents in MSTC portal/ e-procurement website. Before uploading the documents, the bidder is requested to arrange the soft copies of all the documents as per the documents list given in clause No. 12.0 of NIT.

This is an e-tender event of NMDC Limited. The e-tender service provider is MSTC Limited. You are requested to carefully read the specific eligibility conditions of NIT, Terms & Conditions under Instructions to the Tenderer and also the Evaluation Criteria of this tender before submitting your online tender. Tenderers who do not comply with the conditions with documentary proof (wherever required) will not qualify in the tender for opening of Price Bid.

1. Process of E- tender:

A) Registration: The process involves bidder's registration with MSTC Limited e-procurement portal (https://www.mstcecommerce.com/eprocn/) which is free of cost. Only after registration, the vendor(s) can submit his/their bids electronically. Electronic Bidding for submission of Techno-Commercial Bid as well as Price Bid over the internet will be done. The Bidder should possess **Class III signing type digital certificate (both signing and encryption)**. Bidders are to make their own arrangement for bidding from a P.C. connected with Internet. MSTC Ltd is not responsible for making such arrangement. (Bids will not be recorded without Digital Signature).

SPECIAL NOTE: THE PRICE BID AND THE TECHNO-COMMERCIAL BID HAS TO BE SUBMITTED ON-LINE AT https://www.mstcecommerce.com/eprocn/

1). Consultants are required to register themselves online with https://www.mstcecommerce.com/eprocn/ →Register as Vendor (Consultants) Filling up details and creating own user id and password→ Submit.

2). Consultants will receive a system generated mail confirming their registration in their email which has been provided during filling the registration form.

In case of any clarification, please contact MSTC Limited, (before the scheduled closing time of the e- tender).

Note: The prospective Bidders shall submit the Bid through e-bidding only on the e-Portal - https://www.mstcecommerce.com/eprocn/

The details of the Helpdesk, System Settings, and other useful video guides are available on the e-portal itself. The bidder shall require a class 3 signing and encryption type DSC for submission of the bid.

Price bid will be opened electronically of only those bidder(s) whose Part-I (Techno-Commercial Bid) is found to be Techno-Commercially acceptable to NMDC Ltd. The Bidders are advised to offer their most competitive prices while submitting the price bid.

a. All entries in the tender should be entered in online Techno-Commercial Formats without any ambiguity.
b. All notices and correspondences of the bidder(s) shall be sent through email during the process till finalization of tender by NMDC Limited. Bidders are required to ensure that their email I.D. provided is valid and updated at the stage of registration of vendor. Bidders are also requested to ensure validity of their DSC (Digital Signature Certificate).
c. Please note that there is no provision to take out the list of parties who are downloading the Tender document from the web site mentioned in NIT. As such, bidders are requested to see the web site once again before the due date of tender opening to ensure that they have not missed any corrigendum uploaded against the said tender after downloading the tender document. **The responsibility of downloading the related corrigenda, if any, will be that of the bidders.**
d. No separate intimation in respect of corrigendum to this NIT (if any) will be sent to bidders who have downloaded the documents from web site. Please see website https://www.mstcecommerce.com/eprocn/ of MSTC Ltd. or www.nmdc.co.in of NMDC Ltd
e. E-tender cannot be accessed after the due date and time mentioned in NIT.
f. In all cases, bidders should use their own ID and Password along with Digital Signature at the time of submission of their bid.
g. During the entire e-tender process, the bidders will remain completely anonymous to one another and also to everybody else.
h. The e-tender floor shall remain open from the pre-announced date & time and for as much duration as mentioned.
i. All electronic bids submitted during the e-tender process shall be legally binding on the bidders. Any bid will be considered as the valid bid offered by that bidder and acceptance of the same by NMDC Ltd will form a binding contract between NMDC Ltd and the Bidder for execution of work. Such successful bidder shall be called hereafter **Contractor.**

j. It is mandatory that all the bids are submitted with digital signature certificate otherwise the same will not be accepted by the system.
k. NMDC Ltd reserves the right to cancel or reject or accept or withdraw or extend the tender in full or part as the case may be without assigning any reason thereof.
l. No deviation in the terms and conditions of the tender document is acceptable. Submission of bid in the e-tender floor by any bidder confirms his acceptance of terms & conditions of the tender.
m. Unit of Measure (UOM) is indicated in the e-tender Floor. Rate to be quoted as per UOM/currency indicated in the e-tender floor/tender document.

In case of any clarification, please contact MSTC Limited (*before the scheduled time of the e-tender*).

Contact Persons at MSTC Ltd.	**Smt Aishwarya M.** Email: aishwaryamstc@gmail.com Mobile: +91 9346961512	**Shri Prithvi Teja** **Email:**hydopn3@mstcindia.in Mobile: +91 9999481774

General Notes:

1. Bids for the subject work have been invited in two bid system as mentioned in NIT viz. (a). Part-I consisting of EMD, Letter of Undertaking, Integrity Pact and techno-commercial bid and (b). Part-II- Price Bid.
2. In case of any clarification, please contact NMDC / MSTC Limited (well before the scheduled time for submission of e-tender).
3.
   A. Part I of the online bids will be opened on specified date and time as given in the NIT.
   B. Part II (Price bid) will be opened electronically of only those bidder(s) whose Part I of Bids are found to be acceptable to NMDC Ltd. Such bidder(s) will be intimated about the date of opening of Part II Price Bids, through valid email confirmed by them.
4. Any order resulting from this e-tender shall be governed by the terms and conditions mentioned therein as well as in the tender document.
5. The bidders must upload all the documents required as per terms of NIT. Any other Document uploaded which is not required as per the terms of the NIT shall not be considered.

6. The bid will be evaluated based on the filled-in technical & commercial formats and considering the evaluation criteria as per tender document.
7. The documents uploaded by bidder(s) will be scrutinized. In case any of the information furnished by the bidder is found to be false during scrutiny, punitive action including suspension and banning of business can also be taken against defaulting bidders.
8. NMDC has the right to cancel this e-tender or extend the due date of receipt of bids without assigning any reason thereof.
9. The online tender should be submitted strictly as per the terms and conditions and procedures laid down in the MSTC website as described above.
10. Necessary addendum / corrigendum (if any) of tender would be hosted only in the e-tendering portal of MSTC and any other website (s) (viz. NMDC / CPP Portal) as may be mentioned in the tender document.
11. Any other condition regarding receipt of tender in conventional method appearing in the tender document may please be treated as not applicable, except for specific requirements, if any, mentioned in the tender document.
12. The bidders should upload the documents duly signing each and every page.
13. It should be the responsibility of the bidder to ensure that scanned copies of the uploaded documents on the e- tender platform are legible.
14. The bidders are advised to submit their bids well in advance so as to avoid last minute technical issues and consequent lapse of time, even though every care is taken to avoid such issues.
15. Price bid will be opened electronically of only those bidder(s) whose Part 1 is found to be acceptable to NMDC Ltd. Such bidder(s) will be intimated the date of opening of Price bid (Part 2), through valid email confirmed by them. The evaluation will be based on tender stipulations. If the bidder does not accept the correction of errors, their bid will be rejected.

Note:

1) The Bidders are advised to offer their most competitive prices while submitting the price bid.
2) Bidders are requested to note that they should necessarily submit their financial (price) bid in the format provided and no other format is acceptable.
3) If the Price schedule file is found to be modified by the bidder, the bid will be rejected.

9.0 Bid submission Acknowledgement

The bidder should complete all the process and steps required for Bid submission. The successful bid submission can be ascertained once acknowledgement mail is received in their registered email id against tender after final submission.

The acknowledgement is the only confirmation of submission of bid, which the bidder can show as a proof of participation in the tender. Other than this acknowledgement, no proof will be considered as a confirmation to the submission of a bid. If the bidder fails to produce this acknowledgement required for verification in case of dispute, his claim for submission of bid may not be considered.

Bidders have the option of 'deleting' the offer and re-submitting the offer before the due date and time of submission of offer. For detailed Guidelines for online submission of Bid, please refer to Clause 11 of ITT.

10.0 If the date and time for any activity indicated in the tender document happens to be a holiday or a non-working day, for any reason, then the next working day and time will be automatically taken as the date and time for such activity.

11.0 Each Bidder shall submit only one bid in compliance with the requirements of the bidding documents. Alternatives will not be considered. Submission of more than one bid will cause all the proposals with the Bidder's participation to be disqualified.

12.0 Part I: The following documents constitutes Part-I of the offer and shall be submitted in the manner given here-under;

Sl. No.	Description	Action by Bidder
1.	Letter of undertaking as per **Annexure – 1 to ITT**	Bidder is requested to upload the signed and scanned copy of Letter of Undertaking (LOU).
2.	Earnest Money Deposit (EMD) (*Micro and Small Enterprise firms are exempted from submission of EMD – refer clause no.14 of NIT, for the category as that of this work*)	Bidder to submit EMD of **₹ 1,49,740 /- (Rupees One Lakh Forty Nine Thousand Seven Hundred Forty Only)** Bidder can submit EMD through any of the following modes to NMDC; 1. The intending bidders can submit **Bank Guarantee** towards EMD as per the pro-forma given at **Annexure-2 to ITT**. Bank Guarantee shall be submitted from any Indian Nationalized Bank /

		Scheduled Commercial Bank including a foreign bank having a branch in India in favour of NMDC LIMITED Bank Guarantee shall be kept valid for a period of three (03) months beyond the validity of offer. 2. A crossed **Bank Draft** in favour of NMDC Limited, payable at Hyderabad, Telangana, from any Nationalized Indian Bank / scheduled commercial bank including a foreign bank having a branch in India. **Note for Sl. No. 1 & 2:** Bidder shall upload the scanned copy of Bank Guarantee (BG) / Bank Demand Draft in **Part 1 of offer**. **However, the Bidder shall ensure that the original (BG / DD) shall be submitted / posted so as to reach NMDC at the address given in NIT clause no. 3 prior to opening date of Part-I of the tender. In case of non-receipt of original BG / DD prior to the date of opening of bids, the online tender submitted shall be considered as non-responsive and their bid will be summarily rejected.** **3. UPI Payment:** The bidder may submit the EMD by using any UPI App (Scan & Pay) at UPI ID: **nmdcheadoffice@sbi**, Merchant name: NMDC Limited or scan the UPI as per **Annexure-X to NIT** Bidder shall upload the scanned copy of UPI payment transaction receipt. **4. Online Payment through NEFT/RTGS mode:** The bidder may also submit the EMD through Online/NEFT mode to the following account; Beneficiary Name: NMDC Limited,

		A/C No.: 52057027191, Bank: State Bank of India, Branch Name: NMDC Branch, Masab Tank, Hyderabad, IFS Code: SBIN0020728. Bidder shall upload the scanned copy of online NEFT/RTGS payment transaction receipt in **Part 1 of offer**. The Tenderers shall ensure that the transfer of EMD through online mode shall be completed before last date & time of submission of tender. Transfer of EMD amount through online after last date and time of submission of tender is not acceptable and the offer shall be considered as unresponsive and will be summarily rejected.
	* Note for Sl. No. 2: (same document as uploaded to be submitted in original otherwise bid will be summarily rejected) In case the bidder is submitting EMD as Bank Guarantee / DD, the bidder shall submit / post the Original (hard copy) of BG / DD so as to reach NMDC before the due date and time of opening of bids. The original BG is to be submitted in sealed cover duly super-scribing "EMD" and mentioning tender enquiry number, Name of the work and name and address of the tenderer on the envelope and addressing to - ***ED (Works)*** *NMDC Limited,* *Contract Department,* *4th Floor, 10-3-311/A,* *Khanij Bhavan, Castle Hills,* *Masab Tank, Hyderabad-500028,* *Ph: +91-40 23538761* In case of non-receipt of original BG / DD before the due date and time of opening of bids, the online tender submitted shall be considered as non-responsive and their bid will be rejected. Further, if the scanned copy of Bank Guarantee / DD uploaded in Part-I Documents towards EMD does not match with the original hard copies of documents received at NMDC, such a bid will be summarily rejected.	

3.	Submission of UDYAM Registration certificate by MSE firm (in lieu of EMD)	If applicable, the bidder is requested to upload the scanned copy of UDYAM registration certificate (Ref Cl. No. 14.0 for claiming preference under MSME Act), in Part – I of the offer, else the bid shall be treated at unresponsive and be summarily rejected.
4.	Duly signed Integrity Pact as per the pro-forma given **Annexure-3** of ITT	Bidder is requested to upload the scanned copy of duly signed Integrity Pact in its letterhead. *However, the successful bidder shall submit Original Integrity Pact (Physical Copy) before placement of order.*
5.	Information about the Bidder: This shall be furnished in the prescribed pro-forma as per **Annexure – 4** to ITT.	Bidder is requested to fill **Annexure-4** to ITT and scan the document along with attachment, if any.
6.	Latest Power of Attorney (Not earlier than six months from the due date of submission of bid) of the signatory of the bid duly attested by a Notary Public.	Bidder is requested to scan the notarized power of Attorney and upload the scanned file. A power of attorney, duly authenticated by a Notary Public, indicating that the person submitting online bid have the authority to submit online bid and thus that the bid is binding upon the Bidder during the full period of its validity, in accordance with tender requirement.
7.	Documents in support of fulfilment of Eligibility Criteria as mentioned in Sl. No. 5 of BDS**.**	Bidder is requested to fill Annexure- 5 to ITT and scan the notarised documents of Award letter, completion certificates and other relevant documents for fulfilling the technical eligibility criteria and same shall be uploaded in the website as a single file. **During evaluation of eligibility criteria, NMDC at its discretion, may ask the bidders for clarification only related to shortfall information of the submitted documents at the time of tender opening. No New credentials other than those works submitted at the time of tender opening will be considered for evaluation of eligibility criteria.**
8.	Audited Financial Statements including Profit and Loss statements for the last three financial **years.** In case of non-availability of Audited Annual Reports for any genuine reasons, as an alternative,	Bidder is requested to scan the audited financial results for preceding three years and upload the scanned file. In case non-availability of Audited Annual Reports, bidder is requested to upload notarized copy of Certificate issued by Chartered

	with reasoned proof, the bidder may submit Certified Annual Turnover for last three (3) consecutive financial years from a practicing Chartered Accountant, duly notarized, in support of their financial credentials, Refer **Annexure – 6** to ITT	accountant **certifying the turnover results for preceding three years and stating that the bidder is not been in default to any banker/financial institute.**
9.	The tenderer should have not been in default to any banker / financial institution.	Upload latest scanned audited financial report. In case the bidder does not have an audited annual report explicitly stating no default, the bidder is requested to upload a certificate from a Chartered Accountant confirming that the bidder has not been in default to any bank or financial institution.
10.	Details of works in hand at present: This shall be furnished in the prescribed pro-forma as per **Annexure – 7** to ITT.	Bidder to upload the scanned **Annexure-7** duly filled.
11.	Dummy price sets to be submitted by the bidder without quoting the price, but indicating "quoted"/ "not quoted" (as the case may be).	Bidder is requested to download the price schedule given in the tender document and fill the places where price is indicated as 'Quoted' / Not Quoted'. After filling the above, scan the same and upload.
12.	Photocopy of Permanent Account Number (PAN) issued by IT department and copy of P.F Registration Certificate indicating P.F. code number allotted by any Regional Provident Fund Commissioner. In case the bidder does not possess valid PF code number, then the bidder has to give an undertaking as per **Annexure- 11** to ITT on a non-judicial stamp paper of value not less than Rs. 100/- stating that within one month from the date of issue of Purchase Order, he shall obtain PF Code number.	Bidder is requested to submit scanned PAN copy issued by IT Department; PF number issued by EPFO. All the above documents to be scanned together to form one file. In case PF number is not available, undertaking as per **Annexure-11** to ITT to be filled and scanned with the above documents. Bidder to upload scanned file.
13.	Copy of GSTN registration certificate.	Bidder to upload scanned GSTIN registration certificate.
14.	Provide Bank Account details in order to facilitate payments through e-payment mode.	Bidder to upload the scanned copy of cancelled cheque and furnish bank account details.

15.	Undertaking by the bidder confirming to tender terms & conditions in totality	After reviewing the commercial documents, technical specifications, corrigendum(s) (if any), and addendum(s) (if any), the bidder shall upload an undertaking confirming compliance with all terms and conditions of the tender in totality. The scanned copy of the undertaking to be uploaded.
16.	Amendments / corrigenda / Addenda etc. for the work, if any, issued by the Employer, duly signed, by the tenderer.	Bidder to upload the scanned Amendments / corrigenda / Addenda etc. for the work issued by NMDC. In case of no such Amendments / corrigenda / Addenda etc. for the work, bidder to upload the scanned copy of NIL declaration statement.
17.	Undertaking in its letter head for obtaining labour license from Labour Inspectorate as required for taking up the work	Bidder to upload the scanned declaration
18.	Declaration by the tenderer in his letter head that the firm is **not blacklisted** by any PSU/Govt body. On verification if it is found that the tenderer has given misleading /false information, then his tender will be summarily rejected.	Bidder to upload the scanned self declaration
19.	Tenderer must declare whether the Proprietor or any Partner of the firm or Director of their Company as the case may be, has any relation with any employee working in NMDC.	Bidder to upload the scanned declaration.
20.	Authorization letter by the Tenderer in his letter head authorizing NMDC Limited to seek references from Tenderer's bankers.	Bidder to upload authorization letter on its Letter head.
21.	Site Visit	Site Visit for the tender is not mandatory.
22.	Certificate Regarding Compliance for restrictions under Rule 144 (XI) of the General Financial Rules (GFRS), 2017 as per **Annexure-12** to ITT	Tenderer to scan & upload the relevant document.

23.	Percentage of Local supply items / services offered as per Public Procurement (Preference to Make in India, Order 2017 dated 04.06.2020 (Refer **Annexure-13** to ITT).	Tenderer to scan & upload the relevant document.
24.	Checklist given in NIT for submission of Bid.	Bidder to submit the filled in checklist duly signed, scanned and uploaded to website.

13.0 Part-II: Price Bid (To be quoted / filled in MSTC Portal)

14.0 Following benefits will be extended to Micro and Small Enterprises units (MSE) as per guidelines for Public Procurement Policy for MSEs Order, 2012 for goods or services registered with NSIC/DIC/UAM;

(i) Exemption from payment of Earnest Money

(ii) As the work is **non splitable or non-dividable**, MSE quoting price within price band of L1+15% may be awarded for full / complete supply of total tendered value subject to matching the L1 Price where L1 is other than MSE.

Central Government Departments / PSUs will not be granted any exemption or any price preference.

In case of MSE bidder resiles from his offer during the validity period of offer or after placement of order then such MSE will not be allowed to participate in tenders floated by NMDC for a period of 2 years. Such default by MSE's shall be brought to notice of Ministry of MSME for suitable action.

15.0 Purchase Preference as per declared Local Content is applicable as per Public Procurement (Preference to Make in India, Order 2017 dated 16.09.2020, (Refer Annexure-13 to ITT).

Bidder to indicate Percentage of Local supply items / services offered as per Annexure – 13 to ITT. Bidder to scan & upload Annexure 13.

Note for Clause No. 14 & 15 above: The evaluation of offers among MSE firms, Class-I Local supplier, Class-II Local supplier & non-local supplier will be as under;

Definitions;
MSE – Micro and Small Enterprise

C1 – 'Class-I Local Supplier'
C2 - 'Class-II Local Supplier'
NL – 'Non-Local Supplier'
L1 – First Lowest bid
L2 – Second Lowest bid

(a) Price matching by L2-MSE (Provided L1 is not MSE firm)

L2 MSE firm, subject to L2 MSE firm price is within the price band of **L1+15%** and matches L1 firm price. If L2-MSE firm does not match the L1 price, then next higher MSE firm within the price band of L1+15% shall be invited to match the L1 price and so on. In case no MSE firm matches then the quantity shall be ordered on L1 firm.

(b) Price matching by L2 MSE-C1 firm (Provided L1 is not MSE firm and also not MSE C1 firm)

L2 MSE C1 firm subject to L2 MSE C1 Firm price is within the price band of **L1+20%** and matches L1 firm price. If L2MSE C1 firm does not match the L1 price, then next higher MSE C1 firm within the price band of L1+20% shall be invited to match the L1 price and so on. In case no MSE and C1 firm matches then the quantity shall be ordered on L1 firm.

(c) Price matching by L2 C1 Firm (Provided L1 is not C1 firm)

L2 C1 firm subject to L2 C1 firm price is within the price band of L1+20% and matches L1 firm price. If L2 C1 firm does not match the L1 price, then the next higher C1 firm within the price band of L1+20% shall be invited to match the L1 price and so on. In case, no C1 firm matches then the quantity shall be ordered on L1 firm.

(d) Other scenarios for award of work (on matching price of L1);

(1)	L1 MSE & C1: L2 C1	- will be awarded to L1 MSE & C1 firm
(2)	L1 MSE & C2: L2 C1	- will be awarded to L1 MSE & C2 firm
(3)	L1 MSE & C1: L2 C2	- will be awarded to L1 MSE & C1 firm
(4)	L1 MSE & C2: L2 C2	- will be awarded to L1 MSE & C2 firm
(5)	L1 MSE & C1: L2MSE & C1	- will be awarded to L1 MSE & C1 firm
(6)	L1 C1: L2 MSE & C1	- will be awarded to L2 MSE & C1 firm
(7)	L1 C1: L2 MSE & C1 & L3 C1	-will be awarded to L2 MSE & C1 firm
(8)	L1 C2: L2 MSE & C1	- will be awarded to L2 MSE & C1 firm
(9)	L1 C2: L2 MSE & C2	- will be awarded to L2 MSE & C2 firm
(10)	L1 C2: L2 C1	- will be awarded to L2 C1 firm
(11)	L1 C2: L2 MSE & C1 & L3 C1	- will be awarded to L2 MSE & C1 firm
(12)	L1 C2: L2 MSE & C2 & L3 C1	- will be awarded to L2 MSE & C2 firm

The below provisions supplement the PPP-MSE and PPP-MII orders of Govt. of India.

(e) *Suppliers may be categorized in following four broad categories for consideration or applicability of purchase preference:*

Category	*Terminology*
Supplier is both MSE & Class-I local supplier.	*'MSE Class-I local supplier"*
Supplier is MSE but not Class-I local supplier.	*"MSE but non-Class-I local supplier"*
Supplier is not MSE but is Class-I local supplier	*"Non-MSE but Class-I local supplier"*
Supplier is neither MSE nor Class-I local supplier	*"Non-MSE non-Class-I local supplier"*

a) The applicability of PPP-MSE Order and PPP-MII Order in various scenarios, involving simultaneous purchase preference to MSEs and Class-I local suppliers under PPP-MSE Order and PPP-MII Order respectively, shall be as under:

I. Items covered under Para 3(a) of PPP- MII Order, 2017 for which Nodal Ministry has notified sufficient local capacity and competition: For these items, only Class-I local suppliers are eligible to bid irrespective of purchase value. Hence, Class-II local suppliers or Non-local suppliers, including MSEs which are Class-ll local suppliers/ Non-local suppliers, are not eligible to bid. Possible scenarios can be as under:

1. L-1 is "MSE Class-I local supplier" - 100% of the tendered quantity is to be awarded to L-1.
2. L-1 is "Non-MSE but Class-I local supplier" - Purchase preference is given to MSEs as per PPP-MSE Order. Balance quantity is to be awarded to the L-1 bidder.

II. Items reserved exclusively for procurement from MSEs as per PPP-MSE Order: These items are reserved exclusively for purchase from MSEs. Hence, non-MSEs are not eligible to bid for these items. Possible scenarios can be as under:

1. L-1 is "MSE Class-I local supplier" - 100% of the tendered quantity is to be awarded to L-1.

2. L-1 is "MSE non-Class-I local supplier" - Purchase preference is to be given to Class-I local supplier as per PPP-MII Order. Balance quantity, is to be awarded to L-1 bidder.

III. If items are neither notified for sufficient local capacity nor reserved for MSEs, then the process will be as follows:

III (a) Items covered under Para 3A(b) of PPP-MII Order are divisible items and both MSEs as well as Class-I local suppliers are eligible for purchase preference. Possible scenarios can be as under:

1. L-1 is "MSE Class-I local supplier" - 100% of the tendered quantity is to be awarded to L-1.
2. L-1 is "Non-MSE but Class-I local supplier - Purchase preference is to be given to MSEs, if eligible, as per PPP-MSE Order. Balance quantity is to be awarded to L-1 bidder.

3. *L-1 is "MSE but non-Class-I local supplier" - Purchase preference is to be given to Class-I local suppliers, if eligible, as per PPP-MII Order. Balance quantity is to be awarded to L-1 bidder.*
4. *L-1 is "Non-MSE non-Class-I local supplier" - Purchase preference is to be given to MSEs as per PPP-MSE Order. Thereafter, purchase preference is to be given to Class-l local suppliers for "50% of the tendered quantity minus quantity allotted to MSEs above" as per PPP- MII Order. For the balance quantity, contract is to be awarded to L-1 bidder.*

III (b)Items covered under Para 3A(c) of PPP-MII Order, 2017 are non-divisible items and both MSEs as well as Class-I local suppliers are eligible for purchase preference. Possible scenarios can be as under:

1. *L-1 is "MSE Class-I local supplier" - Contract is awarded to L-1.*
2. *L-1 is not "MSE Class-I local supplier" but the "MSE Class-I local supplier" falls within 15% margin of purchase preference - Purchase preference is to be given to lowest quoting "MSE Class-l local supplier". If lowest quoting "MSE Class-I local supplier" does not accept the L-1 rates, the next higher "MSE Class-I local supplier falling within 15% margin of purchase preference is to be given purchase preference and so on.*
3. *If conditions mentioned in sub paras i) and ii) above are not met i.e. L-1 is neither "MSE Class-I local supplier" nor "MSE Class-l local supplier" is eligible to take benefit of purchase preference, the contract is to be awarded/ purchase preference to be given in different possible scenarios as under:*

   A. L1 is "MSE but non-Class-I local supplier" or "Non-MSE but Class-I local supplier" - Contract is be awarded to L1.
   B. L1 is "Non-MSE non-Class-I local supplier" - First purchase preference to be given to MSE as per PPP-MSE Order. If MSE not eligible/ does not accept - purchase preference to be given to Class- I Local supplier as per PPP-MII Order. If Class-I Local supplier also not eligible/ does not accept - contract to be awarded to L-1.

IV. Items reserved for both MSEs and Class-I local suppliers: These items are reserved exclusively for purchase from MSEs as well as Class-l local suppliers. Hence, only "MSE Class-I local supplier" are eligible to bid for these items. Non-MSEs/Class-II local suppliers/ Non-local suppliers cannot bid for these items. Hence the question of purchase preference does not arise.

V. Non-local suppliers, including MSEs falling in the category of Non-local suppliers, shall be eligible to bid only against Global Tender Enquiry.

Any other combination will be as per prevailing GOI guidelines.
As per the Public Procurement Policy, Govt. of India, in case of any Micro/Small Enterprise (MSE) bids, the price preference / distribution shall be as per Govt. guidelines stipulated for MSEs.

16.0 Language of Bid: Language of bid shall be in English language. In case any document is submitted by Bidder in other than English language, authenticated English translation of the same shall be submitted along with the bid complying with the requirements set forth given in the bidding document.

17.0 The Bidders may be required to explain / justify the basis of their quoted price as and when asked for. In case, any bidder fails to justify his quoted price or refuse to co-operate in this regard, such bidder will not be considered for participating in the re-tendering, if the contract is not finalized from the present bidding.

18.0 NMDC takes no responsibility for delay, loss or non-receipt of documents sent by post courier at any time either way. No financial obligations shall accrue to NMDC Limited in such an event.

19.0 If the date and time for any activity indicated in the tender document happens to be a holiday or a non-working day, for any reason, then the next working day and time will be automatically taken as the date and time for such activity.

20.0 Even if a Bidder is found to meet all the requirements, he is liable to be disqualified, without prejudice to Employer's right to take legal actions as per applicable law, if it comes to knowledge that he has made untrue or false representations in the forms, statements, translations and enclosures submitted in proof of qualification/ experience requirements and / or made any misrepresentation of facts in order to influence the tendering process and its outcome and the same is found to be true by the Employer upon verification or otherwise.

21.0 This Notice Inviting Tender (NIT) shall form part of the Tender Document.

22.0 Bidder shall submit **scanned** documents in support of eligibility requirements and Power of attorney duly attested with dated signature and seal by a Notary Public.

23.0 **Site Visit for the tender is Not Mandatory**. The tenderers may visit the site and acquaint themselves of the prevailing local conditions if they wish, before submitting their bid.

24.0 The stipulations mentioned in the NIT, shall amend and / or supplement the provisions in the ITT. Whenever there is a conflict, the provisions in the NIT shall prevail over those in the ITT.

25.0 Executing Authority for this work:

General Manager (C&IT), NMDC Limited, Hyderabad.

26.0 Paying Authority for this work:

Head of Department (Finance), NMDC Limited, Hyderabad.

Executive Director (Works)

Annexure-X

Scan & Pay Using Any UPI App to

UPI ID: nmdcheadoffice@sbi

MERCHANT NAME: NMDC LIMITED, HYDERABAD

Annexure - Y

No. P-45021/2/2017-PP (BE-II)
Government of India
Ministry of Commerce and Industry
Department for Promotion of Industry and Internal Trade
(Public Procurement Section)

Udyog Bhawan, New Delhi
Dated: 04th June, 2020

To

All Central Ministries/Departments/CPSUs/All concerned

ORDER

Subject: Public Procurement (Preference to Make in India), Order 2017– Revision; regarding.

Department for Promotion of Industry and Internal Trade, in partial modification [Paras 2, 3, 5, 9(a), 9(b) and 10(b) modified and Para 3A added] of Order No.P-45021/2/2017-B.E.-II dated 15.6.2017 as amended by Order No.P-45021/2/2017-B.E.-II dated 28.05.2018 and Order No.P-45021/2/2017-B.E.-II dated 29.05.2019, hereby issues the revised 'Public Procurement (Preference to Make in India), Order 2017" dated 04.06.2020 effective with immediate effect.

Whereas it is the policy of the Government of India to encourage 'Make in India' and promote manufacturing and production of goods and services in India with a view to enhancing income and employment, and

Whereas procurement by the Government is substantial in amount and can contribute towards this policy objective, and

Whereas local content can be increased through partnerships, cooperation with local companies, establishing production units in India or Joint Ventures (JV) with Indian suppliers, increasing the participation of local employees in services and training them,

Now therefore the following Order is issued:

1. This Order is issued pursuant to Rule 153 (iii) of the General Financial Rules 2017.

2. **Definitions**: For the purposes of this Order:

   'Local content' means the amount of value added in India which shall, unless otherwise prescribed by the Nodal Ministry, be the total value of the item procured (excluding net domestic indirect taxes) minus the value of imported content in the item (including all customs duties) as a proportion of the total value, in percent.

   'Class-I local supplier' means a supplier or service provider, whose goods, services or works offered for procurement, has local content equal to or more than 50%, as defined under this Order.

   'Class-II local supplier' means a supplier or service provider, whose goods, services or works offered for procurement, has local content more than 20% but less than 50%, as defined under this Order.

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- 2 -

'Non - Local supplier' means a supplier or service provider, whose goods, services or works offered for procurement, has local content less than or equal to 20%, as defined under this Order.

'L1' means the lowest tender or lowest bid or the lowest quotation received in a tender, bidding process or other procurement solicitation as adjudged in the evaluation process as per the tender or other procurement solicitation.

'Margin of purchase preference' means the maximum extent to which the price quoted by a "Class-I local supplier" may be above the L1 for the purpose of purchase preference.

'Nodal Ministry' means the Ministry or Department identified pursuant to this order in respect of a particular item of goods or services or works.

'Procuring entity' means a Ministry or department or attached or subordinate office of, or autonomous body controlled by, the Government of India and includes Government companies as defined in the Companies Act.

'Works' means all works as per Rule 130 of GFR- 2017, and will also include *'turnkey works'*.

3. Eligibility of 'Class-I local supplier'/ 'Class-II local supplier'/ 'Non-local suppliers' for different types of procurement

(a) In procurement of all goods, services or works in respect of which the Nodal Ministry / Department has communicated that there is sufficient local capacity and local competition, only 'Class-I local supplier', as defined under the Order, shall be eligible to bid irrespective of purchase value.

(b) In procurement of all goods, services or works, not covered by sub-para 3(a) above, and with estimated value of purchases less than Rs. 200 Crore, in accordance with Rule 161(iv) of GFR, 2017, Global tender enquiry shall not be issued except with the approval of competent authority as designated by Department of Expenditure. Only 'Class-I local supplier' and 'Class-II local supplier', as defined under the Order, shall be eligible to bid in procurements undertaken by procuring entities, except when Global tender enquiry has been issued. In global tender enquiries, 'Non-local suppliers' shall also be eligible to bid along with 'Class-I local suppliers' and 'Class-II local suppliers'.

(c) For the purpose of this Order, works includes Engineering, Procurement and Construction (EPC) contracts and services include System Integrator (SI) contracts.

3A. Purchase Preference

(a) Subject to the provisions of this Order and to any specific instructions issued by the Nodal Ministry or in pursuance of this Order, purchase preference shall be given to 'Class-I local supplier' in procurements undertaken by procuring entities in the manner specified here under.

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(b) In the procurements of goods or works, which are covered by para 3(b) above and which are divisible in nature, the 'Class-I local supplier' shall get purchase preference over 'Class-II local supplier' as well as 'Non-local supplier', as per following procedure:

i. Among all qualified bids, the lowest bid will be termed as L1. If L1 is 'Class-I local supplier', the contract for full quantity will be awarded to L1.

ii. If L1 bid is not a 'Class-I local supplier', 50% of the order quantity shall be awarded to L1. Thereafter, the lowest bidder among the 'Class-I local supplier' will be invited to match the L1 price for the remaining 50% quantity subject to the Class-I local supplier's quoted price falling within the margin of purchase preference, and contract for that quantity shall be awarded to such 'Class-I local supplier' subject to matching the L1 price. In case such lowest eligible 'Class-I local supplier' fails to match the L1 price or accepts less than the offered quantity, the next higher 'Class-I local supplier' within the margin of purchase preference shall be invited to match the L1 price for remaining quantity and so on, and contract shall be awarded accordingly. In case some quantity is still left uncovered on Class-I local suppliers, then such balance quantity may also be ordered on the L1 bidder.

(c) In the procurements of goods or works, which are covered by para 3(b) above and which are not divisible in nature, and in procurement of services where the bid is evaluated on price alone, the 'Class-I local supplier' shall get purchase preference over 'Class-II local supplier' as well as 'Non-local supplier', as per following procedure:

i. Among all qualified bids, the lowest bid will be termed as L1. If L1 is 'Class-I local supplier', the contract will be awarded to L1.

ii. If L1 is not 'Class-I local supplier', the lowest bidder among the 'Class-I local supplier', will be invited to match the L1 price subject to Class-I local supplier's quoted price falling within the margin of purchase preference, and the contract shall be awarded to such 'Class-I local supplier' subject to matching the L1 price.

iii. In case such lowest eligible 'Class-I local supplier' fails to match the L1 price, the 'Class-I local supplier' with the next higher bid within the margin of purchase preference shall be invited to match the L1 price and so on and contract shall be awarded accordingly. In case none of the 'Class-I local supplier' within the margin of purchase preference matches the L1 price, the contract may be awarded to the L1 bidder.

(d) "Class-II local supplier" will not get purchase preference in any procurement, undertaken by procuring entities.

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4. **Exemption of small purchases**: Notwithstanding anything contained in paragraph 3, procurements where the estimated value to be procured is less than Rs. 5 lakhs shall be exempt from this Order. However, it shall be ensured by procuring entities that procurement is not split for the purpose of avoiding the provisions of this Order.

5. **Minimum local content**: The local content requirement to categorize a supplier as 'Class-I local supplier'/ 'Class-II local supplier'/ 'Non-local supplier' shall be as defined in the Para "2" of the Order. No change is permissible on this account. However, if any nodal Ministry/ Department finds that for any particular item, pertaining to their nodal ministry/department, the definition of Local Content, as defined in the Order, is not workable/ has limitations, it may notify alternate suitable mechanism for calculation of local content for that particular item.

6. **Margin of Purchase Preference**: The margin of purchase preference shall be 20%.

7. **Requirement for specification in advance**: The minimum local content, the margin of purchase preference and the procedure for preference to Make in India shall be specified in the notice inviting tenders or other form of procurement solicitation and shall not be varied during a particular procurement transaction.

8. **Government E-marketplace**: In respect of procurement through the Government E-marketplace (GeM) shall, as far as possible, specifically mark the items which meet the minimum local content while registering the item for display, and shall, wherever feasible, make provision for automated comparison with purchase preference and without purchase preference and for obtaining consent of the local supplier in those cases where purchase preference is to be exercised.

9. **Verification of local content**:
   a. The 'Class-I local supplier'/ 'Class-II local supplier' at the time of tender, bidding or solicitation shall be required to indicate percentage of local content and provide self-certification that the item offered meets the local content requirement for 'Class-I local supplier'/ 'Class-II local supplier', as the case may be. They shall also give details of the location(s) at which the local value addition is made.

   b. In cases of procurement for a value in excess of Rs. 10 crores, the 'Class-I local supplier'/ 'Class-II local supplier' shall be required to provide a certificate from the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content.

   c. Decisions on complaints relating to implementation of this Order shall be taken by the competent authority which is empowered to look into procurement-related complaints relating to the procuring entity.

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d. Nodal Ministries may constitute committees with internal and external experts for independent verification of self-declarations and auditor's/ accountant's certificates on random basis and in the case of complaints.

e. Nodal Ministries and procuring entities may prescribe fees for such complaints.

f. False declarations will be in breach of the Code of Integrity under Rule 175(1)(i)(h) of the General Financial Rules for which a bidder or its successors can be debarred for up to two years as per Rule 151 (iii) of the General Financial Rules along with such other actions as may be permissible under law.

g. A supplier who has been debarred by any procuring entity for violation of this Order shall not be eligible for preference under this Order for procurement by any other procuring entity for the duration of the debarment. The debarment for such other procuring entities shall take effect prospectively from the date on which it comes to the notice of other procurement entities, in the manner prescribed under paragraph 9h below.

h. The Department of Expenditure shall issue suitable instructions for the effective and smooth operation of this process, so that:

   i. The fact and duration of debarment for violation of this Order by any procuring entity are promptly brought to the notice of the Member-Convenor of the Standing Committee and the Department of Expenditure through the concerned Ministry /Department or in some other manner;

   ii. on a periodical basis such cases are consolidated and a centralized list or decentralized lists of such suppliers with the period of debarment is maintained and displayed on website(s);

   iii. In respect of procuring entities other than the one which has carried out the debarment, the debarment takes effect prospectively from the date of uploading on the website(s) in the such a manner that ongoing procurements are not disrupted.

10. **Specifications in Tenders and other procurement solicitations**:

a. Every procuring entity shall ensure that the eligibility conditions in respect of previous experience fixed in any tender or solicitation do not require proof of supply in other countries or proof of exports.

b. Procuring entities shall endeavour to see that eligibility conditions, including on matters like turnover, production capability and financial strength do not result in unreasonable exclusion of 'Class-I local supplier'/ 'Class-II local supplier' who would otherwise be eligible, beyond what is essential for ensuring quality or creditworthiness of the supplier.

c. Procuring entities shall, within 2 months of the issue of this Order review all existing eligibility norms and conditions with reference to sub-paragraphs 'a' and 'b' above.

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d. If a Nodal Ministry is satisfied that Indian suppliers of an item are not allowed to participate and/ or compete in procurement by any foreign government, it may, if it deems appropriate, restrict or exclude bidders from that country from eligibility for procurement of that item and/ or other items relating to that Nodal Ministry. A copy of every instruction or decision taken in this regard shall be sent to the Chairman of the Standing Committee.

e. For the purpose of sub-paragraph 10 d above, a supplier or bidder shall be considered to be from a country if (i) the entity is incorporated in that country, or ii) a majority of its shareholding or effective control of the entity is exercised from that country; or (iii) more than 50% of the value of the item being supplied has been added in that country. Indian suppliers shall mean those entities which meet any of these tests with respect to India."

10A. Action for non-compliance of the Provisions of the Order: In case restrictive or discriminatory conditions against domestic suppliers are included in bid documents, an inquiry shall be conducted by the Administrative Department undertaking the procurement (including procurement by any entity under its administrative control) to fix responsibility for the same. Thereafter, appropriate action, administrative or otherwise, shall be taken against erring officials of procurement entities under relevant provisions. Intimation on all such actions shall be sent to the Standing Committee.

11. **Assessment of supply base by Nodal Ministries**: The Nodal Ministry shall keep in view the domestic manufacturing / supply base and assess the available capacity and the extent of local competition while identifying items and prescribing minimum local content or the manner of its calculation, with a view to avoiding cost increase from the operation of this Order.

12. **Increase in minimum local content**: The Nodal Ministry may annually review the local content requirements with a view to increasing them, subject to availability of sufficient local competition with adequate quality.

13. **Manufacture under license/ technology collaboration agreements with phased indigenization**: While notifying the minimum local content, Nodal Ministries may make special provisions for exempting suppliers from meeting the stipulated local content if the product is being manufactured in India under a license from a foreign manufacturer who holds intellectual property rights and where there is a technology collaboration agreement / transfer of technology agreement for indigenous manufacture of a product developed abroad with clear phasing of increase in local content.

14. **Powers to grant exemption and to reduce minimum local content**: The administrative Department undertaking the procurement (including procurement by any entity under its administrative control), with the approval of their Minister-in-charge, may by written order, for reasons to be recorded in writing,

a. reduce the minimum local content below the prescribed level; or
b. reduce the margin of purchase preference below 20%; or

.....Contd. p/7

c. exempt any particular item or supplying entities from the operation of this Order or any part of the Order.

A copy of every such order shall be provided to the Standing Committee and concerned Nodal Ministry / Department. The Nodal Ministry / Department concerned will continue to have the power to vary its notification on Minimum Local Content.

15. **Directions to Government companies**: In respect of Government companies and other procuring entities not governed by the General Financial Rules, the administrative Ministry or Department shall issue policy directions requiring compliance with this Order.

16. **Standing Committee**: A standing committee is hereby constituted with the following membership:

    Secretary, Department for Promotion of Industry and Internal Trade—Chairman
    Secretary, Commerce—Member
    Secretary, Ministry of Electronics and Information Technology—Member
    Joint Secretary (Public Procurement), Department of Expenditure—Member
    Joint Secretary (DPIIT)—Member-Convenor

    The Secretary of the Department concerned with a particular item shall be a member in respect of issues relating to such item. The Chairman of the Committee may co-opt technical experts as relevant to any issue or class of issues under its consideration.

17. **Functions of the Standing Committee**: The Standing Committee shall meet as often as necessary, but not less than once in six months. The Committee
    a. shall oversee the implementation of this order and issues arising therefrom, and make recommendations to Nodal Ministries and procuring entities.
    b. shall annually assess and periodically monitor compliance with this Order
    c. shall identify Nodal Ministries and the allocation of items among them for issue of notifications on minimum local content
    d. may require furnishing of details or returns regarding compliance with this Order and related matters
    e. may, during the annual review or otherwise, assess issues, if any, where it is felt that the manner of implementation of the order results in any restrictive practices, cartelization or increase in public expenditure and suggest remedial measures
    f. may examine cases covered by paragraph 13 above relating to manufacture under license/ technology transfer agreements with a view to satisfying itself that adequate mechanisms exist for enforcement of such agreements and for attaining the underlying objective of progressive indigenization
    g. may consider any other issue relating to this Order which may arise.

18. **Removal of difficulties**: Ministries /Departments and the Boards of Directors of Government companies may issue such clarifications and instructions as may be necessary for the removal of any difficulties arising in the implementation of this Order.

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19. **Ministries having existing policies**: Where any Ministry or Department has its own policy for preference to local content approved by the Cabinet after 1st January 2015, such policies will prevail over the provisions of this Order. All other existing orders on preference to local content shall be reviewed by the Nodal Ministries and revised as needed to conform to this Order, within two months of the issue of this Order.

20. **Transitional provision**: This Order shall not apply to any tender or procurement for which notice inviting tender or other form of procurement solicitation has been issued before the issue of this Order.

(Rajesh Gupta)
Director
Tel: 23063211
rajesh.gupta66@gov.in

Annexure-Z

Restrictions under Rule 144 (XI) of the General Financial Rules (GFRS), 2017

Rule 144 of the General Financial Rules 2017 entitled 'Fundamental principles of public buying', has been amended by inserting sub-rule (xi) as under: Notwithstanding anything contained in these Rules, Department of Expenditure may, by order in writing, impose restrictions, including prior registration and/or screening, on procurement from bidders from a country or countries, or a class of countries, on grounds of defense of India, or matters directly or indirectly related thereto including national security; no procurement shall be made in violation of such restrictions.

For this Tender, Public Procurement No.1 dated 23.07.2020, Public Procurement No.2 dated 23.07.2020 & Public Procurement No.3 dated 24.07.2020 issued by Department of Expenditure, Public Procurement Division and subsequent orders issued by the Nodal Ministry shall be applicable even if issued after issue of the NIT but before finalization of contract/ PO/WO against this NIT. Tenderers are requested to go through the above-mentioned order. The following requirements need to be met by the bidder for participating in the tender.

i. Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. However the above mentioned circular - Public Procurement No.1 dated 23.07.2020 issued by Department of Expenditure, Public Procurement Division will not apply to bidders from those countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in which the Government of India is engaged in development projects as per circular no F.No.S/18/2019-PPD, Order (Public Procurement No. 2) dated 23-072020 , issued by Department of Expenditure, Public Procurement Division.

ii. "Bidder" (including the term 'tenderer', 'consultant', ‘vendor’ or 'service provider’, 'Know-how supplier’, ‘Technology provider’, ‘Licensor’ in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.

iii. "Bidder from a country which shares a land border with India" for the purpose of this Order means:

   a. An entity incorporated, established or registered in such a country; or b. A subsidiary of an entity incorporated, established or registered in such a country; or c. An entity substantially controlled through entities incorporated, established or registered in such a country; or d. An entity whose beneficial owner is situated in such a country; or e. An Indian (or other) agent of such an entity; or f. A natural person who is a citizen of such a country; or g. A consortium or joint venture where any member of the consortium or joint venture falls under any of the above.

The beneficial owner for the purpose of (iii) above will be as under:

1. In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.

   Explanation

   a. "Controlling ownership interest" means ownership of or entitlement to more than twenty-five percent of shares or capital or profits of the company;

   b. "Control" shall include the right to appoint the majority of the directors or to control the management or policy decisions, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;

2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;

3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;

4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;

5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

   i. "Agent" for the purpose of this Order is a person employed to do any act for another, or to represent another in dealings with third persons.

   ii. The successful bidder shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority.

SECTION – B
BID DATA SHEET

The following bid-specific data for the work / services shall amend and/or supplement the provisions in the Notice Inviting Tender (NIT) and Instructions to Tenderer (ITT). Whenever there is a conflict, the provisions herein shall prevail over those in the NIT and ITT.

<table>
<tr><td>1</td><td>Name of Facilities</td><td>Design, Development, Hosting, Commissioning, Testing & Go- Live etc. of Contract Labour Management System (CLMS) at NMDC.</td></tr>
<tr><td>2</td><td>Name of Employer</td><td>NMDC Limited.</td></tr>
<tr><td>3</td><td>Language of Bid</td><td>Language of bid shall be in English language. In case any document is submitted by Bidder in other than English language, authenticated English translation of the same shall be submitted along with the bid complying with the requirements set forth given in the bidding document.</td></tr>
<tr><td>4</td><td>Consortium Requirement</td><td>Not Applicable</td></tr>
<tr><td>5</td><td>Eligibility / Qualification requirements for Bidders</td><td>Eligibility Requirement:

Bidder should fulfil the Technical and Financial eligibility requirements in totality as detailed below:

Bids shall be submitted by a sole bidder only. Bid from consortium / associate / JV is not allowed.

I. Technical requirement:

The technical requirements of eligibility criteria are as follows:

<table>
<tr><th>SNO</th><th>Pre-Qualification Criteria</th><th>Required Documents to be submitted</th></tr>
<tr><td>1.</td><td>The bidder must be a business entity registered in India and should be in business of IT / ITES for at least 7 years prior to the date of issue of the Notice Inviting Tender (NIT).</td><td>Copy of the certificate of incorporation.</td></tr>
</table>
</td></tr>
</table>

		2.	The bidder should have successfully implemented/ completed similar Software Development Projects/ Work Orders (*) in India within the last 7 years prior to the date of issue of NIT as under: i. One work with value not less than ₹ 28.56 lakhs. OR ii. Two works with value not less than ₹ 17.85 lakhs each OR iii. Three works with value not less than ₹ 14.28 lakhs each (*) Similar Software Development project means- “Contract Labour Management System/ Employee Management System/ Human Resources Management System The above system must have been in successful operation for a minimum period of One year from the date of commissioning/ implementation/go-live.	a) The experience in support of technical eligibility requirements should be supported by relevant documentary evidence such as notarized copies of Work Order **And** Completion certificates/ Go Live Certificate / Final Acceptance Test Certificate (FAT) issued by the Client/ Owner with details of name & address of client, actual date of start & completion of work etc., copies of work orders with the scope of work undertaken by the bidder, functions/ system implemented and date of commissioning, contract

		agreements along with BOQ. Notarized client certificate for successful operation.
3.	The bidder should certify that the implemented Contract Labour Management System/ Employee Management System/ Human Resources Management System in any organisation should be managing for a minimum of 3,000 employees or contract labourers.	A notarized Self-declaration along-with necessary supporting documents viz., PO / Contract Agreement / Email / Letter from client / System Generated Reports etc., should be submitted by the bidder to establish for the quoted work.

Note:

1. Bids shall be considered only from Sole Bidding entity. Bids in Consortium / JV / Partnership / Associate shall not be considered for evaluation.
2. Technical and financial credentials of parent company will not be allowed.
3. During tender evaluation, NMDC reserves the right to ask the bidders for clarification only related to shortfall information on the documents submitted along with the original offer at the time of tender opening. No new Citation/ Work Orders/ Purchase Orders will be considered for evaluation.
4. NMDC reserves the right to verify the documents / inspect the works done by the bidder. The Bidder shall provide necessary facilities for this purpose.

		5. Project implementation time is six months from the Effective Date of Contract, followed by 1 year warranty and 1 year AMC. 6. The tenderer not meeting the eligibility requirements and not producing supportive documents shall be rejected. 7. The certificates submitted, as evidence of works executed for private organizations should be accompanied with TDS (Tax Deduction at Source) certificates. These certificates in addition to the certificate issued by the organization shall form the basis for considering experience of work executed for private organization. 8. Even if an applicant meets the eligibility criteria and PQC, he / she shall be subject to disqualification if he or any of the constituent partners is found to have: *a. Made **misleading or false representations** in the forms, statements, affidavits and attachments submitted in proof of the qualification requirements; and/ or;* *b. Records of poor performance during the **last fifteen years**, as on the date of application, such as abandoning the work, rescission of the contract for reasons which are attributable to non-performance of the contractor, inordinate delays in completion, consistent history of litigation resulting in awards against the contractor or any of the constituents, or financial failure due to bankruptcy, and so on. The rescission of a contract of venture JV on account of reasons other than non-performance, such as the most experienced partner (major partner) of JV pulling out;* *c. On account of currency of debarment by any Government agency.* **II. Financial requirement:** **a) Average Annual Turnover:** The average annual financial turnover of the bidder during the last three years should be at least **₹ 45.00 Lakhs.**

		Remarks: *In case the tenders are having the bid closing date up to 30th September of the relevant financial year, and audited financial results of the immediate preceding financial year are not available, the bidder/ associate has an option to submit the audited financial results of the 3 years immediately prior to that. Wherever the closing date of the bid is after 30th sept. of the relevant financial year, bidder/ associate has to compulsorily submit the audited financial results for the immediate 3 preceding financial years.* *If annual turnover for the last 3 years (as per above clause) is not available then the aggregate turnover of the available years shall be divided by three shall be considered for calculation of average turnover.* *Audited Annual Reports including Profit and Loss statements for the last three consecutive financial years shall be submitted by the bidder and associate in support of their financial credentials.* *In case of non-availability of Audited Annual Reports for any genuine reasons, as an alternative, with reasoned proof, the bidder shall submit Certified Annual Turnover for last three (3) consecutive financial years from statutory auditor / cost auditor, duly notarized, in support of their financial credentials, in lieu of the Annual Reports.* **b) No Default by the bidder**: The bidder should not be in default to any banker/financial institution as per the audited annual report for the immediate preceding financial year. The bidder shall submit the audited annual report for the immediate preceding financial year. However, the firms who do not have audited annual report, certificate in this regard shall be obtained from statutory auditor / cost auditor, duly notarized and copy of the same shall be submitted **c) Net-worth of the bidder:**

		The net-worth of the bidder should be positive in each of the three previous years as per the audited financial statements and Net-worth means the sum total of the paid-up share capital and free reserves. Free reserves means all reserves credited out of the profits and share premium account but does not include reserves credited out of the revaluation of the assets, write back of depreciation provision and amalgamation. Further any debit balance of profit and Loss account and miscellaneous expenses to the extent not adjusted or written off, if any, shall be reduced from reserves and surplus. Remarks: In case the tenders are having the bid closing date up to 30th September of the relevant financial year, and audited financial results of the immediate preceding financial year are not available, the bidder/ associate has an option to submit the audited financial results of the 3 years immediately prior to that. Wherever the closing date of the bid is after 30th September of the relevant financial year, bidder has to compulsorily submit the audited financial results for the immediate 3 preceding financial years. **d) Working Capital** The working capital (Current asset minus current liabilities) of the bidder shall be at least **₹ 46.00 Lakhs.** Remarks: For calculating the working capital, current assets and current liabilities will be considered as classified in the audited balance sheet of the year immediately preceding the date of issue of tender. In case the tenders having the bid closing date up to 30th September of the relevant financial year, and audited financial results of the immediate preceding financial year are not available, in such case the audited financial results of the year immediately prior to that year will be considered as last financial year for Working capital calculation. Wherever the closing date of the bid is after 30th September of the

		relevant financial year, bidder/ associate has to compulsorily submit the audited financial results for the immediate preceding financial years. **<u>Note:</u>** 1. In case the tenders are having the bid closing date up to 30th September of the relevant financial year and audited financial results of the immediate preceding financial year are not available, the bidder has an option to submit the audited financial results of the 3 years immediately prior to that. Wherever the closing date of the bid is after 30th Sept. of the relevant financial year, bidder has to compulsorily submit the audited financial results for the immediate 3 preceding financial years. 2. Annual financial turnover of entities participating in the tender on their own strength only shall be considered and not their related entities like holding company, parent company, subsidiaries or group companies etc. i.e., bidder shall be independent legal entities and shall have its own independent financial accounting systems as per laws of the country. 3. The bidder's financial evaluation vis-a -vis the requirement as stipulated above shall be done on the basis of duly printed Annual Report for the immediately preceding three (3) years submitted by the bidder along with the bid, except for Net-worth as mentioned the relevant clause. Further, standalone Audited Annual Financial Statement of the bidder shall be forming part of the Annual Report. 4. In case of non-availability of Audited Annual Reports for any genuine reasons, as an alternative, with reasoned proof, the bidder may submit Certified Annual Turnover for last three (3) consecutive financial years from a statutory auditor / cost auditor, duly notarized, in support of their financial credentials, in lieu of the Annual Reports in the following cases: a) Where the value of tender is above ₹10 Crores b) Where the bidding entity is a company governed by Companies Act and registered with Register of Companies

		c) Where Statutory Audit is mandated for the bidding entity under any other act. Certification by Practicing Chartered Accountant / Cost Accountant for the cases where none of the above conditions are applicable, may be accepted. d) In case of not submitting the above and average annual turnover of all the three years are not available. The turnovers of available years will be added and divided by 3 to arrive at average annual turnover for 3 years. 5. In case current assets and / or current liabilities are not classified separately in audited Balance Sheet, a certificate from Statutory Auditor carrying out the Statutory Audit, for current assets and / or current liabilities, as the case may be, clearly defining the items considered for the same, should be enclosed. However, trade payables shall be a part of current liabilities. 6. Wherever, the annual report / duly notarized copies of Audited Printed Annual financial statement are in language other than in English, then copy of duly translated & printed in English language and certified by approved recognized English translator shall be submitted with the bid.
6	**NIL DEVIATION TENDER**	This is a **NIL deviation** tender. The final tender document along with corrigendum / addendum / clarifications, if any, issued after conducting pre - bid meeting and till last date of submission of Tender shall be final and binding on all participating bidders. Hence, Clause 17 of ITT are not applicable. In case of receipt of any deviation from any bidder after opening of bid, they will be asked to withdraw the same. If any bidder, refuses to withdraw their deviation then their offer shall be rejected. **Note:** The above clause will prevail over all other clauses mentioned anywhere / elsewhere in the tender with regard to deviation.
7	**Bidding Cost**	*Not applicable*

SECTION II
SPECIAL CONDITIONS OF CONTRACT

The following Special Conditions of Contract [SCC] *will* supplement the General Conditions of Contract [GCC]. Whenever there is a conflict, the provisions herein *will* prevail over those in the GCC.

A. **GENERAL**

1. **Definitions [GCC Clause 1]**

1.1 Employer

NMDC Limited
10-3-311/A, Khanij Bhavan, Castle Hills
Masab Tank, Hyderabad – 500028 (TS)
Telephone No. +91 – 40 2353 8761
E-mail: contracts@nmdc.co.in

1.2 Engineer

The following will be furnished at the time of placement of order/ signing of contract.

NMDC Limited

Telephone No.
Facsimile No.
E-mail:

Other stipulations remain unchanged

1.3 **Contractor**

The following shall be furnished at the time of placement of order/ signing of contract.

M/s. ___________________
_______________________ ([Name and address)

Telephone No. ___________
Facsimile No. ____________
E-mail:______________

Other stipulations remain unchanged.

2. Notices [GCC Clause 55]

The details at 2.1 and 2.2 given herein below *will* be furnished at the time of placement of order/ signing of contract.

2.1 Employer's Address for Notice purposes

NMDC Limited
10-3-311/A, Khanij Bhavan,
Castle Hills, Masab Tank,
Hyderabad – 500028 (TS)

2.2 Contractor's Address for Notice purposes

M/s. ___________________
____
____
[Name and address]
Telephone No. ___________
Facsimile No. ___________
E-mail:_________________

3.0 GST Compliance Terms:

(a). Supply of goods or services or both covered under this tender shall attract Goods and Service Tax (GST) at applicable rate as amended from time to time. The Tenderer should clearly mention GST in addition to the basic cost i.e., CGST+ SGST+ Compensation Cess if any in case of intrastate supplies or IGST + Compensation cess, if any in case of interstate supplies and imports in their price bid along with the rate applicable unless notified as exempted.

(b). The tenderer shall mention in the Invoice, their GST registration Number (GSTIN), 2 digit or 4 digit HSN code (as applicable) along with description of goods as per Goods and Service Tax Act, Rules and Notifications made thereunder for the items listed in the price schedule of the tender.

(c). Tenderer should submit GST invoice for the supplies made to Owner as per the provisions of Goods and Service Act for availing input tax credit by the owner. Further, tenderer shall ensure to file monthly returns along with payment of taxes to the appropriate authority as applicable within the prescribed time as per GST Rules made thereunder.

(d). Tenderers must submit a copy of certificate of registration, i.e., GST REG – 06.

(e). **Tenderers who opted for composition levy under GST, shall submit a copy of the intimation filed in From GST CMP-01. The tenderer however shall submit a copy of final certificate of registration i.e., GST REG – 06 after the receipt of the same.**

(f). Tenderer opting for composition scheme shall not quote any taxes under GST and such bids would invariably be evaluated without taxes under GST.

(g). The Composition tenderer shall submit "Bill of Supply" with the terms mentioned in bill of supply as "Composition taxable person, not eligible to collect tax on Supplies" for the supplies made by him.

(h). At the time of evaluation of offers of the registered Tenderer, OWNER will consider Input Tax Credit (ITC), if eligible, in respect of eligible goods or services or both indicated in the Commercial Bid Format and their commercial status will be arrived at accordingly.

(i). **At the time of evaluation of offers of unregistered Tenderer, OWNER will, in addition to the price quoted in the bids, consider the taxes under GST that the OWNER shall pay under reverse charge mechanism in respect of goods or services or both indicated in the Commercial Bid, if the same are notified under RCM. For this purpose, the OWNER at their discretion may rely on the tax rates quoted by other bidder registered under GST. However, OWNER will consider the Input Tax Credit (ITC), if eligible, in respect of goods or services or both while evaluating the bids.**

(j). In case of overseas supplier, Basic Customs duty (BCD), Integrated Goods and Service tax (IGST), Compensation Cess as applicable shall be considered for evaluation. All other charges borne by OWNER in case of FOB quotations shall also be considered for evaluation purpose.

(k). **GST TDS shall be deducted at 2% or any other rate as may be amended from time to time on the goods or services procured by the bidder at the time of making payment. This will be deducted by the owner and the same will be deposited to the Government as per the timelines prescribed. GST TDS certificate can be downloaded by the tenderer for claiming credit of the same.**

(l). In case any credit, refund or other benefit is denied or delayed to Owner due to any non-compliance by the supplier (Such as failure to upload the details of the sale on the GSTN portal, failure to pay GST to government) or due to non-furnishing or furnishing of incorrect or incomplete documents by the supplier, the supplier would reimburse the loss to Owner, including loss of credit, interest and penalty.

Other GST Compliance Related Terms:

(m). Tenderer shall issue tax invoice indicating all the specified fields in the Tax invoice Rules as notified including HSN/SAC codes, GSTIN Number.

(n). Tenderer is responsible for uploading his outward supplies data with GSTN in the month of supply and any demand of interest and penalty from Revenue Authorities to the OWNER for failure of the Tenderer to upload the invoice or to accept purchase data filed by OWNER in GSTR-2 shall be to the account of Tenderer.

(o). In the event of non-reporting of invoices for supplies effected to OWNER during the month or non-acceptance of purchase data submitted by OWNER relying on the invoice received from Tenderer, OWNER is entitled to withhold the GST claimed in the Tax Invoice.

(p). Whenever advance against supplies is received by the Tenderer, Tenderer shall issue receipt voucher and pay the applicable GST in the month of receipt.

(q). Tenderer shall attend to all issues on reconciliation of invoices, mismatch reports etc. to the satisfaction of OWNER.

(r). In case, the government notifies the activity covered in the contract for the purpose of TDS under GST Act, OWNER shall deduct TDS from the Tenderer bills and will issue necessary certificate to the Tenderer to claim credit of the same.

(s). It is the responsibility of the Tenderer to determine the place of supply in terms of the place of supply rules.

4.0 Special Relief for NMDC Production Project applicable for Contract Laborer's (SRNPP Provisions) are indicated below: *Not applicable in this tender*

5.0 Section VI: Safety code for contractors including MoU: *Not applicable in this tender*

SECTION III

INSTRUCTIONS TO TENDERERS (ITT)

TABLE OF CONTENTS

Pro-forma as enclosed:

Sl. No.	Annexure / Appendix no.	Details	Page No.
1.	Annexure-1	Letter of undertaking.	
2.	Annexure-2	Bank Guarantee towards EMD	
3.	Annexure-3	Form of Integrity Pact	
4.	Annexure-4	Information about the Tenderer	
5.	Annexure-5	Details of work done as per eligibility requirements	
6.	Annexure-6	Details of Turnover	
7.	Annexure-7	Details of work in hand	
8.	Annexure-8	Proforma for Solvency Certificate / Line of Credit: *Not applicable*	
9.	Annexure-9	Statement of Exceptions & Deviations: NIL Deviation	
10.	Annexure-10	Pro-forma for Bank Guarantee for Contract Performance	
11.	Annexure-11	Letter of Undertaking Towards PF code	
12.	Annexure-12	Certificate regarding compliance on restrictions under Rule 144 (XI) of the General Financial Rules (GFRS), 2017	
13.	Annexure-13	Percentage of Local supply items / services offered as per Public Procurement (Preference to Make in India, Order 2017 dated 04.06.2020	

INSTRUCTIONS TO TENDERERS (ITT)

1.0 COST OF BIDDING

The Tenderer shall bear all costs associated with the preparation and submission of its bid, and the Employer will in no case be responsible or liable for these costs, regardless of the conduct or outcome of the bidding process.

2.0 TENDER DOCUMENTS

2.1 The Facilities required, bidding procedures, Contract terms and technical requirements are prescribed in the Bidding Documents. The Bidding Documents include the following sections:

2.1.1 Volume-I: Commercial Document

i. Section I: Notice Inviting Tender (NIT) with Annexure X, Y & Z and Bid Data Sheet (BDS)

ii. Section II: Special Conditions of Contract (SCC)

iii. Section III: Instruction to Tenderers (ITT)

Sl.No	Annexure No.	Details
1	Annexure- 1	Letter of undertaking.
2	Annexure- 2	Bank Guarantee towards EMD
3	Annexure- 3	Form of Integrity Pact
4	Annexure- 4	Information about the Tenderer
5	Annexure- 5	Details of work done as per eligibility requirements
6	Annexure- 6	Details of Turnover
7	Annexure- 7	Details of work in hand
8	Annexure- 8	Performa for Solvency Certificate / Line of Credit: NA
9	Annexure – 9	This is a **NIL Deviation** tender.
10	Annexure- 10	Pro-forma for Bank Guarantee for Contract Performance
11	Annexure- 11	Letter of Undertaking Towards PF code
12	Annexure-12	Certificate regarding compliance of restrictions under Rule 144 (XI) of the GFRS, 2017
13	Annexure-13	Percentage of Local supply items / services offered as per Public Procurement (Preference to Make in India, Order 2017 dated 04.06.2020

iv. Section IV: Form of Contract Agreement with Appendices

Appendix-1	:	Preamble to Price Schedule
Annexure to Appendix – 1	:	Price schedule
Appendix-2	:	Terms of Payment
Appendix-3	:	Price Adjustment due to variation in indices

v. Section V: General Condition of Contract (GCC)

vi. Section VI: Safety code for contractors including MoU

2.1.2 Volume – II: Technical Specifications (TS)

3.0 CLARIFICATION OF BIDDING DOCUMENTS

3.1 The Bidder is required to carefully examine the Bidding Documents, terms & conditions of Form of Agreement, drawings and other details relating to work given in the Bidding Documents and fully acquaint himself as to all conditions and matters which may in any way affect the work or the cost thereof. Bidder is deemed to have known the scope, nature and magnitude of the work and the requirements of materials, labour involved, site conditions etc.

3.2 A prospective Bidder requiring any clarification of the Bidding Documents may notify the Employer in writing or by telefax or e-mail at the Employer's mailing address indicated in the NIT. The Employer will respond in writing to any request for clarification or modification of the Bidding Documents that it receives no later than 7 (seven) days prior to the deadline for submission of bids prescribed by the Employer.

3.3 Any clarification issued prior to submission of Bids would be put on the websites as given in the NIT. All prospective Bidders including those who have **downloaded** bidding document would be presumed to have examined all clarifications on the website & have submitted their bids accordingly. In case any queries remain un-replied, it shall be construed that in respect of those queries, the respective stipulations of the Bidding Documents shall continue to apply and/or no new stipulations are made with respect to those queries.

3.4 The Bidder and any of its authorized personnel or representative will be granted permission by the Employer to enter upon its premises and lands for the purpose of inspection, but only upon the condition that the Bidder, its personnel and representative will release and indemnify the Employer and its representatives from and against all liability in respect thereof and will be responsible for death or personal injury, loss of or damage to property and any other loss, damage, costs and expenses incurred as a result of the inspection.

3.5 The Bidder shall be deemed to have acquainted itself of local/ Government taxes, duties, laws, statute, regulations, levies and other charges relating to supplies to be made, services to be rendered and works to be done at site as applicable at the work site.

3.6 Any neglect or omission or failure on the part of the Bidder in obtaining necessary and reliable information or on any other matter affecting the Bidder, shall not relieve the Bidder from any risk or liability or the entire responsibility for completion of the work in accordance with the Bidding Documents.

4.0 AMENDMENT OF BIDDING DOCUMENTS

4.1 Before the deadline for submission of bids, the Employer may, for any reason, whether at its own initiative, or in response to a clarification requested by a bidder, amend the Bidding Documents.

4.2 The amendments shall be hosted on websites given in the NIT for viewing / downloading by the other prospective bidders who have downloaded tender documents from such websites.

4.3 The amendments to bidding documents shall be issued as addenda / corrigenda. Any addendum / corrigendum thus issued shall form part of the Bidding document. Before the due date of submission of tender, the prospective bidders on regular basis are required to visit the Employer's websites for viewing / downloading addenda / corrigenda. All the prospective bidders would be presumed to have examined all amendments & have submitted their bids accordingly.

4.4 In order to afford bidders reasonable time to take the amendment into account in preparing their bid, the Employer may, at its discretion, extend the deadline for the submission of bids in which case the extended date will shall be put on the Employer's web-site also.

5.0 LANGUAGE OF BID

5.1 The bid prepared by the bidder and all correspondence & documents related to the bid exchanged by the bidder and the Employer, shall be written in the English language. Bid submitted in any other language is liable to be rejected

5.2 In case any printed literature/ any documents furnished by the Tenderer, is written in another language, it must be accompanied by a translation of its pertinent passages in the English language, duly authenticated/ certified by a notary/ local chamber of commerce/ any legal authority of the Tenderer's country/ authorized representative of Indian Embassy/ consulate in Tenderer's country and for the purposes of interpretation of the bid, such translation shall govern. However, the Bidder shall be responsible for the accuracy and completeness of such translation provided by him.

6.0 BID FORM AND PRICE SCHEDULES

The Tenderer shall complete the Bid Forms and appropriate Price Schedules furnished in the Bidding Documents in the manner and detail indicated therein and submits the same with its bid. Detailed price format in which price for each item and each entry is to be filled by Tenderer is given at Annexure to Appendix - I. Tenderer shall ensure that price against each entry is filled.

7.0 EMD

EMD as specified in NIT shall accompany in Part I of the tender as tender guarantee. Any bidder (except by MSME bidder) not submitting EMD as stipulated may render the bid liable for rejection by the Employer.

7.1 The EMD will be forfeited if,

7.1.1 The Tenderer modifies or withdraws his offer after due date and time of submission of the bid.

7.1.2 The Tenderer resiles from his offer during the validity period.

7.1.3 The tender is revoked during its validity period by the Tenderer.

7.1.4 The validity of the BG is not extended / kept valid for a period of 90 days beyond the extended validity of the offer.

7.1.5 The Tenderer increases the prices unilaterally after the opening of Part II and during the validity period of the tender.

7.1.6 Subsequent to acceptance of the Work Order / Purchase Order by the successful Tenderer, the Tenderer refuses to enter into Contract Agreement within the specified time or its authorised extensions.

7.1.7 The successful Tenderer fails to submit the BG towards the Performance Guarantee (Security Deposit) within the period specified.

7.2 The EMD shall be made payable without any condition to the Owner `On Demand'. The EMD shall be valid for a period of 90 days beyond the validity of the tender, i.e. 180 days from the due date of submission of the tender. In case of extension of validity of the offer, the BG submitted towards EMD will also to be extended for a further period of 90 days beyond the extended period of validity of offer, failing which the validity extension given by the Tenderer (as submitted in validity extension letter) shall not be considered.

7.3 In consideration of the Owner considering the Tender for purpose of award, the Tenderer shall keep his Tender valid for a period of 90 days from the due date of opening of Part-I of the Tender, during which period the Tenderer agrees not to vary, alter or revoke his tender as a whole or in part. If the Tenderer, however, fails to keep his Tender valid for 90 days or varies it during the validity period then the Owner shall be entitled to forfeit the EMD amount without any notice or proof of damages etc.

7.4 In case the Tenderer is requested to extend the validity of the offer along with extension of validity of BG towards EMD, the Tenderer may refuse the request in writing. In such a case the Tenderer's offer will be rejected and the EMD submitted by the Tenderer shall be returned within 15 (fifteen) days on Tenderers request.

7.5 The EMD shall be returned within 15 (Fifteen) days to those Tenderers whose offers do not meet the eligibility requirements or whose offers are not found techno commercially acceptable after scrutiny.

7.6 The EMD of those Tenderers whose offers are found techno commercially acceptable after scrutiny but are unsuccessful after price bid opening, their EMD shall be returned within 15 (fifteen) days after the award of work.

7.7 The EMD of the successful Tenderer to whom the contract is awarded will be returned after the said Tenderer provides the Contract Performance Guarantee and signs the Contract Agreement.

7.8 In case any Tenderer submits the EMD by way of Demand Draft the EMD amount will be refunded by cheque / NEFT only.

7.9 If the successful Tenderer fails to submit Contract Performance Guarantee as specified within 30 (thirty) days after the date of issue of Work Order / Purchase Order, or fails to sign the contract agreement then the EMD amount will be forfeited by the Owner, without any notice or proof of damages etc.

No interest will be payable by NMDC on the EMD.

8.0 PERIOD OF VALIDITY OF BID

Bids shall remain **valid for 90 days** from the due date of opening of PART-I of Bid and accordingly Tenderer shall submit Letter of undertaking as Per Annexure – 1 to ITT. A bid valid for a shorter period shall be rejected by the Employer as being non-responsive.

If required, the Employer may request the Tenderer to extend the bid validity period. The request and responses thereto shall be made in writing. The tenderer, accepting such request, shall not modify their bid on their own.

9.0 DEADLINE FOR SUBMISSION OF BIDS

Bids must be received by NMDC at the address specified in NIT and no later than the time and date (deadline) stated in the NIT.

The Employer may, at its discretion, extend this deadline for submission of bids by amending the bidding documents in accordance with ITT, in which case all rights and obligations of Employer and Tenderers will thereafter be subject to such extended deadline.

10.0 LATE BIDS

VOID

11.0 MODIFICATION AND WITHDRAWAL OF BIDS

The Bidder may modify or withdraw its bid after submission prior to the deadline prescribed for bid submission.

No bid shall be withdrawn in the interval between the bid submission deadline and the expiration of the bid validity period specified in ITT Clause 8. Withdrawal of a bid during this interval may result in **forfeiture of EMD / suspension of the MSME bidder for participation in NMDC Tenders / contracts for a period of 2 years from date of occurrence of such event**.

12.0 OPENING OF BIDS BY NMDC

Opening of Bids shall be as specified in NIT.

13.0 CLARIFICATION OF BIDS

During bid evaluation, the NMDC may, at its discretion, ask the Tenderer for a clarification of its bid. The request for clarification and the response shall be in writing. While responding, no change in the price or substance of the bid shall be sought, offered or permitted unless otherwise asked by NMDC after completion of evaluation of bids.

14.0 PRELIMINARY EXAMINATION OF BIDS

14.1 The Employer will examine the bids to determine whether they are complete, whether the documents have been properly signed and whether the bids are generally in order. Any bids found to be non-responsive for any reason or not meeting the minimum levels of the performance or other criteria specified in the Bidding Documents will be rejected by the Employer and not included for further consideration.

14.2 Prior to the detailed evaluation, the Employer will determine whether each bid is of acceptable quality, is complete and is substantially responsive to the bidding documents. For purpose of this determination, a substantially responsive bid is one that conforms to all the terms, conditions and specifications of the bidding documents without deviations, objections, conditionality or reservations. A material deviation, objection, conditionality or reservation is one:

(i) that affects in any substantial way the scope, quality or performance of the Contract;

(ii) that limits in any substantial way, inconsistent with the bidding documents, the Employer's rights or the successful Bidder's obligations under the Contract; or

(iii) whose rectification would unfairly affect the competitive position of other Bidders who are presenting substantially responsive bids.

14.3 In particular, bids with deviations from, objections to or reservations about any one or more of following critical provisions that the Tenderer is not prepared to withdraw may be rejected by the Employer as being non-responsive;

(i). Bid Security / EMD

(ii). Settlement of Disputes

(iii). Terms of Payment

(iv). Performance Bank Guarantee

(v). Taxes and Duties

(vi). Time for completion

(vii). Limitation of Liability

(viii). Loss of or Damage to Property; Accident or Injury to Workers; Indemnification

(ix). Negligence

(x). Force Majeure

(xi). Termination

14.4 VOID.

15.0 TECHNICAL & COMMERCIAL EVALUATION OF BID

15.1 The Employer will carry out a detailed evaluation of the bids previously determined during preliminary examination of bids, to be substantially responsive, in order to determine whether the technical & commercial aspects are in accordance with the requirements set forth in the Bidding Documents. In order to reach such a determination, the Employer will examine and compare the technical and commercial aspects of the bids on the basis of the information supplied by the Tenderers and other requirements in the Bidding Documents, taking into account the following factors:

(a). Overall completeness and compliance with the Technical Specifications and Drawings and deviations from the Technical Specifications;

(b). Acceptance of specified criteria given in TS

(c). Compliance with the time schedule

(d). Acceptance to rectify defects

(e). Any other relevant technical factors, if any, or that the Employer deems necessary or prudent to take into consideration.

(f). Overall completeness and compliance with the commercial bid and any deviations to the commercial and Contractual provisions stipulated in the Bidding Documents.

15.2 Evaluation of tender will be done on overall price calculated by totalling the value of all the section / items arrived based on the item-wise rate quoted by the Tenderers and the corresponding quantity given in the tender schedule.

15.3 Preference to Make in India pursuant to Rule 153 (iii) of the General Financial Rules (GFRS), 2017

Bidder to provide an undertaking as per the provisions of Public Procurement (Preference to Make in India), Order 2017 dated 15.06.2017, 28.05.2018, 29.05.2019, 04.06.2020, 16.09.2020 and subsequent orders / revisions / amendments (Refer Annexure-Y to NIT) issued by the respective Nodal Ministry in LOU & Annexure-13(A) & 13(B) to ITT. Moreover, Class -II Local supplier and Non-local supplier offer shall not be considered and same shall be rejected.

Bidder to indicate Percentage of Local supply items / services offered as per Annexure – 21 to ITT. Bidder to scan & upload Annexure 21.

Note: The evaluation of offers among MSE firms, Class-I Local supplier, Class-II Local supplier & non-local supplier will be as per Clause 15 of NIT;

As per the Public Procurement Policy, Govt. of India, in case of any Micro/Small Enterprise (MSE) bids, the price preference / distribution shall be as per Govt. guidelines stipulated for MSEs.

15.4 **Restrictions under Rule 144 (xi) of the General Financial Rules (GFRS), 2017:**

Bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority (Refer **Annexure-Z to NIT**).

The bidders shall furnish Certificate regarding compliance as per the format provided in **Annexure-12 to ITT** along with their bid.

16.0 QUALIFICATION

To ascertain Tenderers capabilities as per NIT, the Tenderer may be asked to submit further clarification/ confirmation by Employer so as to ensure satisfactory performance of the Contract.

17.0 CLARIFICATION OF BIDS AND REVIEW OF TENDERERS' PROPOSED DEVIATIONS

17.1 The NMDC may seek clarification with each or any Tenderer to clarify any aspects of its bid that require explanation at this stage of the evaluation. During these meetings, the Employer may bring to the attention of the Tenderer any matters, technical or otherwise, where for whatever reason, it requires clarification / details about the bid, to be provided to the bidder. All such amendments or changes required by the Employer will be listed in the Record Notes of discussions documenting the clarification meeting entitled "Changes Required Pursuant to Evaluation of the Employer" and will be formally notified to the Tenderer as part of the invitation to submit the Updated Bid.

17.2 The Employer will advise the Tenderer of any exceptions or deviations in the bid, that are to be withdrawn in the Updated Bid, and of such exceptions or deviations that the Employer finds acceptable.

18.0 INVITATION TO SUBMIT UPDATED BID

As a result of techno-commercial discussions/ clarifications, the Tenderer at Employer's discretion, may be permitted to submit the Updated Price Bid in the form of "increment/ decrement in unit rate" or "revised price bid" as the case may be, towards compliance of updated terms & conditions at the time of confirmation to updated technical & commercial terms of tender. Updated price bid with "incremental / decremental rate" would be for relevant items only as per price schedule. If this is applicable uniformly on all items, it shall be evenly distributed on all items of price schedule.

18.1 Price bid opening and Evaluation of Price bids

18.1.1 During price bid opening, the original price bid along with Updated Price Bid with "incremental / decremental Price or "revised price bid", if any of only those bidders whose offers have been found to be meeting stipulated minimum Eligibility Criteria and are found to be techno-commercially acceptable (substantially responsive) by the Employer. The date of opening of price bid shall be intimated to such techno-commercially qualified bidders.

18.1.2 Arithmetic errors will be rectified on the following basis;

If there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, or between sub totals and the total price, the unit price or subtotal price (as the case may be) shall prevail and the total price shall be corrected. If there is a discrepancy between words and figures, the amount in words will prevail. If the Bidder does not accept the correction of errors, its bid will be rejected.

19.0 AWARD CRITERIA

The Employer through Work Order / Purchase Order will award the Contract to the successful Tenderer, whose bid / updated bid has been determined to be substantially responsive and to be the lowest evaluated bids (on net price implication after, after adjustment of Input Tax credit), provided that the Tenderer is determined to be qualified to perform the Contract satisfactorily.

20.0 EMPLOYER'S RIGHT TO ACCEPT ANY BID AND TO REJECT ANY OR ALL BIDS

The Employer reserves the right to accept or reject any bid (Original or Updated bid), and to annul the bidding process and reject all bids at any time prior to award of Contract, without thereby incurring any liability to the affected Tenderer or Tenderers or any obligation to inform the affected Tenderer or Tenderers of grounds for the Employer's such action.

21.0 NOTIFICATION OF AWARD

Notification of Award of Contract will be given to the successful tenderer suitably.

22.0 SIGNING OF CONTRACT AGREEMENT

22.1 Subsequent to Acceptance of Work Order / Purchase Order by the contractor, the Employer shall dispatch within 15 days a copy of the draft Contract Agreement to the contractor. Within 15 days, the Contractor shall prepare the final contract documents in two (2) original copies and sign the Contract Agreement.

22.2 The Contractor shall furnish for signing of the Contract, appropriate power of attorney and other requisite materials.

22.3 30 days from the date of issue of Work Order / Purchase Order or any other date as mentioned in the Form of Contract Agreement, is the effective date of contract.

22.4 The Agreement will be signed in two (2) originals and the Contractor shall be provided with one signed original and the Owner will retain the second. All expenses for making agreements including cost of stamp papers shall borne by the Contractor.

22.5 Subsequent to signing of the Contract, the Contractor at his own cost shall provide the owner with Four (04) photocopies of Agreement and one soft copy.

23.0 PERFORMANCE GUARANTEE / SECURITY DEPOSIT

23.1 Amount of Contract Performance Bank Guarantee shall be equivalent to ***10% of Total Contract Value.***

23.2 **Manner of submission of Contract Performance Guarantee:**

The Contractor shall submit **10% of the Total Contract Price** in the form of EFT / Demand Draft / Bank Guarantee (BG) as per Annexure-10 to ITT, from a Nationalized Indian Bank / Scheduled Commercial Bank (including a foreign bank having a branch in India), within 30 days from the Effective Date of Contract.

This Bank Guarantee (referred to as the 1st CPG) shall remain valid up to 3 months beyond the scheduled completion period of the entire works.

However, a penal interest of 12% per annum shall be charged for the delay beyond 30 days i.e., from the 31st day from the effective date of Contract.

23.3 The Contract Performance Bank Guarantee is for faithful performance of the contract in accordance with the terms and conditions specified in these tender documents. Performance Guarantee shall initially be kept valid till 3 months beyond the scheduled completion of contract period.

23.4 Payments shall be affected only after submission of Contract performance Bank Guarantee. Failure of the successful Tenderer to comply with the above requirements of submission of Performance Bank Guarantee shall constitute sufficient grounds for cancellation of the award of work and forfeiture of EMD / **suspension of the MSME bidder for participation in NMDC Tenders / contracts for a period of 2 years from date of occurrence of such event**.

23.5 Return of Performance Bank Guarantee: The Bank Guarantee shall be returned to the Contractor upon request after the expiry of contract completion period and on certification of Engineer as **'no pending issues'**.

24.0 GENERAL

24.1 **Disqualification of Bidder:**

Even if a Bidder meets the technical and commercial requirements, he is liable to be disqualified, without prejudice to Employer's rights to take legal actions as per applicable law, if he has made untrue or false representations in the forms, statements, translations and enclosures submitted in proof of eligibility and qualification requirements, and/or made any misrepresentation of facts in order to influence the tendering process and its outcome.

24.2 There shall be no post tender negotiations. However, in exceptional cases negotiations with successful bidder may be held by the Employer.

25.0 NMDC POLICY ON BANNING OF BUSINESS DEALINGS WITH AGENCIES

NMDC has introduced NMDC Policy on Banning of Business Dealings with Agencies, which covers both suspension and banning of business dealings with the Agency that commits fraud and/or transgression in the dealings with NMDC. The Policy is on the NMDC website, www.nmdc.co.in

25.1 The Grounds for Banning of Business Dealings and the Banning Period as per the Policy are given below:

For the sake of clarity, the grounds on which banning of business dealings can be considered are given below. These are only illustrative, not exhaustive. The Competent Authority may decide to ban Business Dealings with an Agency for any good and sufficient reason.

(a) Security considerations, including questions of loyalty of the Agency to the State

(b) Conviction of the Director / owner / proprietor / partner of the Agency by a Court of Law for offences involving moral turpitude in relation to its business dealings with the Government or any other public sector enterprises or NMDC during the last five years.

(c) Evidence / strong justification for believing that the Director / owner / proprietor / partner of the Agency has / have been guilty of malpractices such as bribery, corruption, fraud, substitution of tenders, interpolation in tenders, etc.

(d) The Agency's continuous refusal to return / refund the dues to NMDC without showing adequate reason and this is not due to any reasonable dispute which would attract proceedings in arbitration or Court of Law.

(e) The Agency employs an employee who was dismissed removed by NMDC for an offence involving corruption or abetment of such an offence.

(f) The banning of business dealings with the Agency by the Government or any other public sector enterprise.

(g) The Agency restored to corrupt or fraudulent practices that may include misrepresentation of facts and / or fudging / forging / tampering of documents

(h) The Agency used intimidation / threatening or brings undue outside pressure on NMDC / its official in relation to a Business Dealing.

(i) The Agency resorts to repeated and / or deliberate use of delay tactics in complying with contractual stipulations.

(j) Wilful act of the Agency to supply sub-standard material irrespective of whether pre-despatch inspection was carried out by NMDC or not

(k) The findings of CBI / Police about the Agency's involvement in fraud and / or transgressions in relation to the Business Dealings with NMDC

(l) Established litigant nature of the Agency to derive undue benefit'

(m) Continued poor performance of the Agency in at least three preceding contracts with NMDC

(n) The Agency misuses the premises or facilities of NMDC and / or forcefully occupies tampers or damages NMDC's properties including land, water resources, forests / trees, etc.

(o) False allegation on NMDC officials by the Agency if found proved by the Investigating Department including Independent External Monitor.

25.2 Banning Period

The Banning Period may range from six months to three years depending on the gravity of the case as decided by the Competent Authority. While deciding the Banning **Period**, the Suspension Period, if any, shall also be taken into account.

26.0 LOCAL CONDITIONS

26.1 It will be imperative on each tenderer to fully inform himself of all local conditions and factors which may have any effect on the execution of the works covered under these tender documents and specifications. The Owner shall not entertain any request for clarifications from the tenderers, regarding such local conditions.

26.2 It must be understood and agreed that such factors have been properly investigated and considered while submitting the proposal. No claim for financial adjustment to the contract awarded will be entertained by the Owner on this account. Neither any change in the time schedule of the Contract nor any financial adjustments arising thereof shall be permitted by the Owner, which are based on the lack of such clear information or its effect on the cost of the Works to the Tenderer.

ANNEXURE-1
PROFORMA OF
LETTER OF UNDERTAKING (LOU)
(To be submitted by the Tenderer along with the tender)
(in Company's Letterhead)

Bidders Ref. No. -------------------------- Dated :

M/s NMDC Ltd,
Khanij Bhavan, 10-3-311/A,
Castle Hills, Masab Tank,
Hyderabad - 500 028

Dear Sirs,

1. I/We have read and examined the following Tender documents relating to ***Design, Development, Hosting, Commissioning, Testing & Go- Live etc. of Contract Labour Management System (CLMS) at NMDC***.

a) Notice Inviting Tender (NIT) including Bid Data Sheet
b) Instruction to Bidder (ITT) with Annexures
c) Form of Contract Agreement with Appendices
d) General Conditions of Contract (GCC) with Annexures
e) Special Conditions of Contract (SCC)
f) Safety Code for Contractors with Annexures
g) Technical Specifications
h) Any other documents (specify) including addenda / Corrigenda, if any.

1. Having examined the bidding documents, including addenda / Corrigenda, the receipt of which is hereby acknowledged, we, the undersigned, offer the above-named Facilities in full conformity with the said bidding documents for the sum as mentioned in Price Bid or such other sums as may be determined in accordance with the terms and conditions of the Contract. We hereby submit our tender as per terms of NIT and other documents.

2. We further undertake, if invited to do so by you, and at our own cost, to attend a clarification meeting at a place of your choice, for the purpose of reviewing our Bid and duly noting all amendments and additions thereto and noting omissions there from that you may require.

3. We understand that this is a **'NIL' deviation** tender. In case of submission of tender with deviations then same shall be withdrawn upon intimation by NMDC, failing which our offer stands rejected.

4. We undertake, if our bid is accepted, to commence execution of work of the facilities and to achieve completion within the respective times stated in the bidding documents / quoted by us in our bid.
5. If our bid is accepted, we undertake to provide a Performance Guarantee in the form, in the amount, and within the time specified in the bidding documents.
6. We undertake to keep our Tender valid initially for a period of **Ninety (90)** days from the due date of opening of tender i.e., up to …………………… We hereby further undertake that I/We shall not vary/alter or revoke my/our Tender during the said period or extended period, if any.
7. We also submit herewith the prescribed EMD. NMDC shall have the right to forfeit the EMD, in addition to any other provision of ITT, if I/We do not comply with the undertaking given at 4, 5 and 6 above.
8. We undertake that *I/we are not associated, nor has been associated in the past, directly or indirectly, with the Consultant or any other entity that has prepared the design, specifications and other documents for the subject tender.
9. We declare that we are not convicted by a court of Law for an offence involving moral turpitude in relation to business dealings during the past seven years for acceptance of the bid.
10. Should this Tender be accepted, We also agree to abide by and fulfil all the terms, conditions and provisions of the above mentioned tender documents.
11. I/We have

    a) Downloaded the bid document and subsequent clarifications / amendments / corrigendum, if any from NMDC’s website
    b) Downloaded the bid document and subsequent clarifications / amendments / corrigendum, if any from Central public procurement portal
    c) Downloaded the bid document and subsequent clarifications / amendments / corrigendum, if any from MSTC Portal
12. We hereby confirm that before submission of this bid, We have fully acquainted with local conditions and factors for execution of the works covered under these bid documents and technical specifications and that we shall have no claims against NMDC on these counts at any time”.
13. Until a formal Contract is prepared and executed between us, this bid, together with your written acceptance thereof and your notification of award shall constitute a binding Contract between us.
14. We understand that you are not bound to accept the lowest or any bid you may receive and in-turn we will not have any rights to raise any claim, whatsoever it may be, due to or arising out of rejection of our bids.
15. We shall abide by the provisions of the Integrity Pact in completeness.
16. We confirm that we have submitted our bid as a sole Bidder */ as a consortium of companies* and we comply with requirements of the bidding document and in particular the clause on joint bidding as applicable to us.

17. We hereby confirm and declare that we, M/s --, is not blacklisted/ De-registered/ debarred by any Government department/ Public Sector Undertaking/ Private Sector/ or any other agency for which we have Executed/ Undertaken the works/ Services.
18. We hereby declare that we, M/s --, including any subcontractors or suppliers for any part of the contract, do not have any conflict of interest which will call into question our participation in the procurement process and award of contract.
19. We, M/s ______________________solemnly declare that I/ we am/are not convicted in any criminal case.

Signature along with Seal of Co.

……………………………….

(Of the person duly authorised to sign the Bid)

Name	………………………..
Designation	………………………
Name of Company	………………………
(In block letters)	
Date and Postal Address	………………………..

WITNESS

Signature	…………………………………
Telegraphic Address	……………………………
Date	………………
Name and Address and	……………………
Telephone No.	……………………

Strikeout whichever is not applicable.

ANNEXURE-2

PROFORMA FOR BANK GUARANTEE IN LIEU OF EARNEST MONEY DEPOSIT

(On Non-judicial stamp paper of value not less than Rs.100/-)

______________________________Bank Ltd.

__________ Bank Ltd.

____

B.G. No. __________

A/c of (Name of address) __________

Limit of liability__________

Date of expiry__________

Ref: Tender Notice No. __________ dt. __________

For (Name of work) __________

Subject: Earnest Money Deposit

Kind Attention,
__________ ***(Tender Inviting Authority)***
NMDC Limited,

Dear Sirs,

1. In consideration of the NMDC Limited, (hereinafter called "the Company") which expression shall unless repugnant to the subject or context include his successors and assigns having agreed to exempt M/s______________________ from demand under the terms and conditions of Tender No. ____________ issued by the Company for the works (hereinafter called "the said Document") from deposit of Earnest Money for the due fulfillment by the M/s__________ (name of the Bidder) of the terms and conditions contained in the said Document on production of Bank Guarantee for ____________ (Rupees _________ only).

1. I/We the ____________ Bank. Ltd. (hereinafter referred to as "the said Bank"), a company under the companies Act. 1956 and having our registered office at ______________ do hereby undertake and agree to indemnify and keep indemnified the Company to the extent of Rs./____________ (Rupees ____________ only) against any losses, damage cost, charges and expenses caused to or suffered by or that may be caused or suffered by the Company by reason of any breach or breaches by M/s__________ (name of

the Bidder) of any of the terms and conditions contained in the said Document and unconditionally pay the amount claimed by the Company on demand and without demur to the extent aforesaid.

2. We ___________Bank Ltd. do hereby undertake to pay the amount due and payable under the guarantee without any demur, reservation, protest and not withstanding any dispute between the Company and the Bidder merely on a demand by you stating that the amount claimed is due by way of loss or damage caused to or would be caused or suffered by you by reason of any breach by M/s ___________ (name of the Bidder) of any of the terms or conditions contained in the said Document by reason of the M/s___________ (name of the Bidder)'s failure to perform conditions of the said Document. Any such demand on the Bank shall be conclusive as regards the amount due and payable by the Bank under this guarantee. However, our liability under this guarantee shall be restricted to an amount not exceeding Rs. ___________ /.

3. We _________________ Bank Ltd. further agree that the Company shall be the sole judge of and as to whether the M/s……………..(name of the Bidder) has committed any breach or breaches of any of the terms and conditions of the said Document and the extent of loss, damages, costs charges and expenses caused to or suffered by or that may be caused to or suffered by the Company on account thereof to the extent of the Earnest Money required to be deposited by M/s___________ (name of the Bidder) in respect of the said Document and the decision of the Company that M/s___________ (name of the Bidder) has committed such breach or breaches and as to the amount or amounts of loss, damages, costs, charges and expenses caused to or suffered by or that may be caused to or suffered by the Company shall be final and binding on us.

4. We ________________ Bank Ltd. further agree that guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said Document and that it shall continue to be enforceable till all your dues under or by virtue of the said Document have been fully paid and its claims satisfied or discharged or till you certify that terms and conditions of the said document have been fully and properly carried out by the said M/s___________ and accordingly discharge the guarantee. Unless a demand or claim under this guarantee is made on us in writing on or before the _____________ we shall be discharged from all liability under this guarantee.

5. We ______________ Bank Ltd. further agree with you that you shall have the fullest liberty without our consent and without affecting in any manner our obligations hereunder to vary any of the terms and conditions of the said Document or to extend time asked by M/s___________ from time to time or to postpone for any time or from time to time any of the powers exercisable by you against M/s___________ and to forbear or enforce any of the terms and conditions relating to the said document and we shall not be relieved from our liability by reason of any such variation or extension being granted to M/s___________ or for any forbearance act or omission on your part or any indulgence by you to M/s___________ or by any such matter or thing whatsoever under the law relating to sureties would but for this provision have effect of so relieving us.

6. It shall not be necessary for the Company to proceed against M/s___________ before proceeding against the Bank and the Guarantee herein contained shall be enforceable against the Bank, notwithstanding any security which the Company may have obtained from M/s___________ at this time when proceedings are taken against Bank hereunder be outstanding or unrealised.

7. We _________________ Bank Ltd. further undertake to unconditionally pay the amount claimed by the Company merely on demand and without demur to the extent aforesaid.

8. We, the said Bank lastly undertake not to revoke this guarantee during its currency except with the previous consent of the Company in writing and agree that any change in the constitution of the Company or of M/s……………… or the said Bank shall not discharge our liability hereunder.

Notwithstanding anything contained herein our liability under this bank guarantee shall not exceed Rs ___________ (Rupees___________)

(i) This bank Guarantee shall remain valid up to ………………

(i) Our liability to make payments shall arise and we are liable to pay the guaranteed amount or any part thereof under this guarantee only and only if you serve upon us a written claim or demand in terms of guarantee on or before ……….

For___________ Bank Ltd.

Signature___________

Seal

Witness

Dated___________ day of ___________ 20 ___________

While issuing the Bank Guarantee for Earnest Money, the issuing Bank must furnish following details:
Name and address of the Bank
Contact person
Telephone no.
Fax no.
E-mail address:

The Bidder while getting the Bank Guarantees issued by the Banker must take care of the above details.

ANNEXURE – 3
INTEGRITY PACT
(in Company's Letterhead)

Between

NMDC Limited, hereinafter referred to as "The Principal"/ Employer

And

_______________________ hereinafter referred to as "The Bidder / Contractor"

Preamble

The Principal intends to award, under laid –down organizational procedures, contract/s for "***Design, Development, Hosting, Commissioning, Testing & Go- Live etc. of Contract Labour Management System (CLMS) at NMDC***". The Principal values full compliance with all relevant laws and regulations, and the principles of economical use of resources, and of fairness and transparency in its relation with its Bidder/s and /or Contractor/s.

In order to achieve these goals, the Principal Cooperates with the renowned international Non-Governmental Organization "Transparency International" (TI). Following TI's national and international experience, the Principal will appoint an external independent Monitor who will monitor the tender process from the beginning till execution of the contract for compliance with the principles mentioned HEREIN.

Section 1- Commitments of the Principal.

(1) The Principal commits itself to take all measures necessary to prevent corruption and to observe the following principles:-

I. No employee of the Principal, personally or through family members, will in connection with the tender for, or the execution of a contract demand, take a promise for or accept, for him/herself or third person, any material benefit which he/she is not legally entitled to.

II. The Principal will, during the tender process treat all Bidders with equity and reason. The principal will in particular, before and during the tender process, provide to all Bidders the same information and will not provide to any Bidder confidential/additional information through which the Bidder could obtain an advantage in relation to the tender process or the contract execution.

III. The Principal will exclude from the process all known prejudiced persons.

(2) If the Principal obtains information on the conduct of any of its employees which is a criminal offence under the relevant Anti-Corruption Laws of India, or if there be a substantive suspicion in this regard, the Principal will inform its Vigilance Office and in addition can initiate disciplinary action.

SECTION – 2 Commitments of the Bidder/Contractor

(1) The Bidder / Contractor commit himself to take all measures necessary to prevent corruption. He commits himself to observe the following principles during his participation in the tender process and during the contract execution.

I. The Bidder / Contractor will not, directly or through any other person or firm, offer, promise or give to the Principal, to any of the Principal's employee involved in the tender process or the execution of the contract or to any third person any material or immaterial benefit which he/she is not legally entitled to, in order to obtain in exchange an advantage during the tender process or the execution of the contract.

II. The Bidder / Contractor will not enter with other Bidders into any illegal agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or action to restrict competitiveness.

III. The Bidder / Contractor will not commit any criminal offence under the relevant Anti-corruption Laws of India, further the Bidder/Contractor will not use improperly, for purposes of competition or personal gain, or pass on to others, any information provided by the Principal as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically.

IV. The Bidder/Contractor will, when presenting his bid, disclose any and all payments he has made, is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract.

(2) The Bidder / Contractor will not instigate third persons to commit offences outlined above or be an accessory to such offences.

(3) The Bidder / Contractor may indicate the advantage of his offer compared to the tender terms and conditions. The Bidder / Contractor shall not make any commitment whatsoever on the offers / products of other bidder(s) thereby influencing the principal to take decision of the former.

(4) A person signing Integrity Pact shall not approach the Courts while representing the matters to IEMs and he/she will wait their decision in the matter.

(5) Foreign bidders to disclose the name and address of agents and representatives in India and Indian Bidders to disclose their foreign principals or associate.

(6) Bidders to disclose the payments to be made them to agents/brokers or any other intermediary.

(7) Bidders to disclose any transgressions with any other company that may impinge on the anti-corruption principle.

Section 3 – Disqualification from tender process and exclusion from future contract

1. If the Bidder, before contract award, has committed a serious transgression through a violation of Section 2 or in any other form such as to put his reliability or credibility as Bidder into question, the Principal is entitled to disqualify the Bidder from the tender process or to terminate the contract, if already signed, for such reason.

2. If the Bidder/Contractor has committed a serious transgression through a violation of section – 2 such as to put his reliability or credibility into question, the principal is entitled also to exclude the Bidder / Contractor from future contract award processes. The imposition and duration of the exclusion will be determined by the severity of the transgression. The severity will be determined by the circumstances of the case, in particular the number of transgressions, the position of the transgressors with the company hierarchy of the Bidder and the amount of the damage. The exclusion will be imposed for a minimum of 6 months and maximum of 3 years.

3. If the Bidder / Contractor can prove that he has restored/recouped the damage caused by him and has installed a suitable corruption prevention system, the Principal may revoke the exclusion prematurely.

4. A transgression is considered to have occurred if in light of available evidence, no reasonable doubt is possible.

Section 4 – Forfeiture of Earnest Money Deposit/Security Deposit

(1) If the Principal has disqualified the Bidder from the tender process prior to the award according to Section 3, the Principal is entitled to forfeit the bidders Earnest Money Deposit.

(2) If the Principal has terminated the contract according to section – 3, or if the Principal is entitled to terminate the contract according to section – 3, the principal shall be entitled to forfeit *the* Earnest Money Deposit/Security Deposit.

Section 5 – Previous Transgression

(1) The Bidder declares that no previous transgression occurred in the last three years with any other company in any country confirming to the TI approach or with any other Public Sector Enterprise in India that could justify its exclusion from the tender process.

(2) If the bidder makes incorrect statement on this subject, he can be disqualified from the tender process or the contract, if already awarded, can be terminated for such reason.

Section 6 – Equal treatment of all bidders/contractors/sub-contractors.

(1) The bidder/contractor undertakes to demand from all sub-contractors the commitment consistent with this integrity pact, and to submit it to the Principal before contract signing.

(2) The principal will enter into agreement with identical conditions as this one with all bidders, contractors and sub-contractors.

(3) The principal will disqualify from the tender process all bidders who do not sign *this pact and submit it to the Principal along with the offer*.

Section 7 – Criminal charges violating Bidders/Contractors/Sub-Contractors

If the principal obtains knowledge of conduct of a Bidders/Contractors/Sub-Contractors, or of an employee or a representative or an associate of a Bidders/Contractors/Sub-Contractors which constitutes corruption, or if the principal has substantive suspicion in this regard, the principal will inform the vigilance office.

Section 8 – External Independent Monitor

(1) The principal appoints competent and credible external independent Monitor for this Pact. The task of the monitor is to review independently and objectively, whether and to what extent the parties comply with the obligations under this agreement.

(2) The monitor is not subject to instructions by the representatives of the parties and performs his functions neutrally and independently. He reports to the Chairman of the Board of the Principal.

(3) The Monitor has the right of access without restriction to all Projects documentation of the Principal. The Contractor will also grant the monitor, upon his request and demonstration of a valid interest, unlimited access to his project documentation. The same is applicable to Subcontractors. The Monitor is under contractual obligation to treat the information and documents of the Bidder/Contractor/Subcontractor with confidentiality.

(4) The Principal will provide to the Monitor sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the Principal and the Contractor. The parties offer to the Monitor the option to participate in such meetings.

(5) As soon as the Monitor notices, or believes to notice, a violation of this agreement, he will so inform the Management of the Principal and request the Management to discontinue or heal the violation, or take other relevant action. The monitor can in this regard submit non-binding recommendations. Beyond this, the Monitor has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action.

(6) The Monitor will regularly submit a written report to the Chairman of the Board of the Principal and, should the occasion arise, submit proposals for correcting problematic situations.

(7) If the Monitor has reported to the Chairman of the Board a substantiated suspicion of an offence under relevant Anti-Corruption Laws of India, and the Chairman has not, with reasonable time, taken visible action to proceed against such offence or reported it to the Vigilance Officer, the Monitor may also transmit this information directly to the Central Vigilance Commissioner, Government of India.

Section 9 – Pact Duration

This Pact begins when both parties have legally signed it. It expires for the Contractor 12 months after the last payment under the respective contract, and for all other Bidder's 6 months after the contract has been awarded.

Section 10 – Other Provisions

(1) This agreement is subject to Indian Law. Place of performance and jurisdiction is the Corporate Office of the Principal.

(2) Changes and supplements as well as termination notices need to be made in writing: Side agreements have not been made.

(3) Should one or several provisions of this agreement turn out to be invalid, the remainder of this agreement remains valid. In this case, the parties will strive to come to an agreement to their original intentions.

_____________________________ _______________________

For the Principal For the Bidder/Contractor

Place _________ Witness 1 : ___________________

Date___________ Witness 2: ____________________

FORMAT FOR COMPLETENESS OF INTEGRITY PACT

PART-A

CERTIFICATE

NAME OF THE TENDER:

TENDER ENQUIRY NO:

DATE OF TENDER ENQUIRY:

I/WE hereby undertake that M/s. ……………………………….. confirm completeness of " Integrity Pact" provided in Part-A of the tender document.

Signature of the authorized person

On behalf of M/s.______________

Place:

Date: **Seal and Signature:**

ANNEXURE - 4

INFORMATION ABOUT THE BIDDER

SN	Information Requested	Tenderer's reply [to be filled-in / replied appropriately by the tenderer along with supporting documents as applicable.]
1	Name of the Firm	
2	Type of the Firm (Limited/ Partnership/ Proprietorship etc.)	
3	Year of incorporation/ Establishment	
4	Place of incorporation/ registration	
5	Registration Number, if any	
6	Registered Postal Address	
7	Telephone No. (s)	
8	E-mail ID, if any	
9	Address on which Order /LAC to be placed	
10	Type of Account and A/C No.	
11	Name (s) of Authorized Representatives (s) Note: Power of Attorney signed by the Director(s)/ Partners / Proprietor in favour of the authorized Person signing the tender documents must be enclosed.	
12	Constitution or legal status of Bidder / Consortium members (Attach Copy)	

13	Details of GSTN	
14	Bidder hereby declares that, *(a) "I/We am / are not associated, nor has been associated in the past, directly or indirectly, with the Consultant or any other entity that has prepared the design, specifications, and other documents for NMDC for this Contract."* *(b) "The Proprietor / any Partner of my / our firm / Director of my/ our Company (as the case may be), does not have any relation with any of Owner's employees / Director(s)"* *OR* *"The Proprietor / Partner of my / our firm / Director of my/ our Company (as the case may be), has relation with Owner's employees / Director(s), the details of which are enclosed" ** *(*Strike off whichever is not applicable)* *(c) "I/ We hereby certify that my/our firm has not been debarred/ banned by any Office/Department/Undertaking of the State / Central Govt. of India, at any time for supplying stores or services of any description."*	

ANNEXURE – 5

DETAILS OF WORK DONE AS PER TECHNICAL ELIGIBILITY CRITERIA

Sl. No	Name and Address of Client including phone and Fax nos. including Email IDs	Project(s) Location(s)	Brief about scope of work of Project Execution	Work order values/ Project Cost	Date of Award of work and Date of commissioning / completion	Copy of order document(s)/ completion certificates Submitted (Yes / No)

Note:

(1) During evaluation of eligibility criteria, NMDC may ask the Bidders for clarification only related to shortfall information of the pre-existed works in the offer, submitted at the time of tender opening. No New credentials of works not pre-existed in the offer, submitted at the time of tender opening, will be considered for evaluation of eligibility criteria.

(1) NMDC, may verify the documents / inspect the works done by the Tenderer.

(2) The bidder who has executed the work as a sub-contractor, then bidder has to substantiate their credentials through any other relevant documents issued by client in addition to the completion certificates and work order / contract issued by Main Contractor.

(3) In addition to the above, NMDC may insist the Bidder on the submission of further details/information as necessary during evaluation of bids.

(4) NMDC reserves its right to verify the documents / information submitted or inspect the installation done. The bidder shall provide necessary assistance for this purpose.

(5) The offers of the bidders not meeting the eligibility criteria and not producing supportive documents are likely to be rejected and no correspondence whatsoever shall be entertained.

SEAL AND SIGNATURE OF THE BIDDER

FORMAT OF DETAILS OF WORK DONE AS PRE-QUALIFICATION REQUIREMENTS

Details of work done by the Bidder as per Technical requirement given at PQ Criteria Clause of NIT (*clause no…..*) / Bid Data Sheet

(Use separate sheet for each work)

1.	Name of the Tenderer	
2.	Country (*Place of Work done*)	
3.	Name of the client	
4.	Client's full postal address including telephone nos./ fax nos., e-mail etc. of client	
5.	Name of work and special features relevant to this contract	
6.	Contract role (*Strike-off whichever is not applicable*)	Sole-Contractor
		Sub-Contractor
7.	Value of the total contract (Rs.)	
8.	Actual Executed Value of work (Rs.)	
9.	Date of Award	
10.	Date of Commencement	
11.	Scheduled Date of Completion	
12.	Date of Initial Operation and Commissioning / Actual Date of Completion (*Please specify*)	
13.	Contract duration	
14.	Reasons for delay, if any	
15.	Whether copy of work order / relevant pages of contract agreement furnished? (Yes/No)	
16.	Whether satisfactory completion certificate furnished from client? (Yes/No)	
17.	Whether successful commissioning certificate furnished from client? (Yes/No)	

Signature of the tenderer with date and seal

ANNEXURE - 6

DETAILS OF TURNOVER

S. No.	Financial Years	Annual Turnover (Rs. in Lakh)	Upload Relevant Documents as stated in NIT and BDS
1	2022-23		
2	2023-24		
3	2024-25		

Signature of the Tenderer with date and seal

ANNEXURE – 7

DETAILS OF WORKS IN HAND AT PRESENT

SN	Full address of the client	Value of contract	Date of commencement	Scheduled completion as per contract	Reasons for delay if any	Status as on date of submission of the tender

Note:
The above shall be supported by the copies of the relevant certificates like copies of work orders, agreements, from the clients.

Signature of the Tenderer with date and seal

ANNEXURE - 8

(To be issued by Banker of the bidder)

Pro-forma for solvency certificate: *Not applicable for this tender*

To the best of our knowledge and information, M/s………………, a customer of our bank, is a known company and may be regarded as good up to a sum of Rupees …………………… as on ………………………

This certificate is issued at the request of M/s …………………………………………

Yours faithfully

( )
Name, authorized designation and seal
Name of the bank
Date:

OR

Pro-forma for Line of Credit

The Company has sanctioned credit limit of …………………….. INR from our bank out of which unutilized balance as on date --------------- is …………………….. INR.

This certificate is issued at the request of M/s …………………………………………

Yours faithfully

( )
Name, authorized designation and seal
Name of the bank
Date:

ANNEXURE - 9

STATEMENT OF EXCEPTIONS & DEVIATIONS: *Not applicable*
(Refer Sl. No. 6 of Bid Data Sheet)

Sl. No.	Clause No.	Clause as per Tender Document	Clause as proposed by the Tenderer	Remarks

Signature of the Tenderer with date and seal

Note:
(i) This is a NIL Deviation tender.

ANNEXURE - 10

PROFORMA BANK GUARANTEE FOR CONTRACT PERFORMANCE

(on non – judicial stamp paper of value not less than Rs 100/-)

The non-judicial stamp paper should be in the name of issuing bank

Ref. _________ Bank Guarantee No. _________

Date _________

NMDC Ltd.,
Khanij Bhavan,
10-3-311/A, Castle Hills,
Masab Tank,
Hyderabad - 500 028.

Dear Sirs,

In consideration of the NMDC Ltd, (herein after referred to as the `Employer' which expression shall unless repugnant to the Context or meaning thereof include its successors, administrators and assigns) having awarded to M/s. ________________________________ with its Registered/Head office at ______________________________ (hereinafter referred to as the `Contractor' which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns), a contract by issue of Employer's Letter of Award of Contract no. ___________ dated___________ for "___________ valued at Rs. ___________ (Rupees___________ only) and the same having been unequivocally accepted by the Contractor resulting in a "Contract" and Contractor having agreed to provide a contract performance guarantee for the faithful performance of the entire contract equivalent to **10 % (Ten percent)** of the said value of the contract to the owner i.e. Rs ___________ (Rupees ___________only).

We___________ having (Name and Address) its Head Office at ___________ (hereinafter referred to as the `Bank', which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the Employer, on demand any and all monies payable by the Contractor to the extent of _______________________________________ as aforesaid at any time up to ____________________________ (days/month/year) without any demur, reservation, recourse or protest and/or without any reference to the Contractor. Any such demand made by the owner on the Bank shall be conclusive and binding not withstanding any difference between the Employer and Contractor or any dispute pending before any court, tribunal or any other authority. The Bank undertakes not to revoke this guarantee during its currency without previous consent of the Employer and further agrees that the guarantee herein contained shall continue to be enforceable till the Employer discharges this guarantee.

The Employer shall have the fullest liberty without affecting in any way the liability of the Bank under this guarantee from time to time to extend the time for performance of the contract by the Contractor. The owner shall have the fullest liberty, without affecting this guarantee, to postpone from time to time the exercise of any Employers, vested in them or of any right which they might have against the Contractor, and to exercise the same any time in any manner, and either to enforce or to forbear to enforce any covenants, contained or implied, in the contract between the Employer or any other course of or remedy or security available to the Employer. The Bank shall not be released of its obligations under these presents by any exercise by the owner of its liberty with reference to the matters aforesaid or any of them or by reason of any other acts of omission or commission on the part of the Employer or any other indulgence shown by the Employer or by any other matters or thing whatsoever which under law would, but for this provision, have the effect of relieving the Bank.

The Bank also agrees that the Employer at its option shall be entitled to enforce this Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the Contractor and notwithstanding any security or other guarantee that the owner may have in relation the Contractor's liabilities.

Notwithstanding anything contained herein above our liability under this guarantee is restricted to ________________________ and it shall remain in force up to and including _____________________* * and shall be extended from time to time for such period (not exceeding one year), as may be desired by M/s. _____________________ whose behalf this guarantee has been given.

Dated this __________ day of _______20 at ________________.
WITNESS

Signature __________
Name __________
Official address__________
Designation with Bank stamp
Bank's Rubber Stamp
Attorney as per Employer of Attorney
No. -----------------------------
Dated ----------------------------

Signature __________
Name __________

NOTE:
*This sum shall be Ten percent (10%) of the contract fee
**The date will be as specified in the contract.

(Subject to Modifications by NMDC)

Annexure – 11

Letter of Undertaking towards PF code
(Applicable to bidders who do not possess the PF code)
(on a non-judicial stamp paper of value not less than Rs.100/-)

I / We hereby confirm that I/We am/are not registered with any of the Regional Provident Fund Authorities and /or I/We are not possessing a valid Provident Fund code number at present.

I / We hereby undertake to register with Regional Provident Fund Authorities and/or obtain a valid provident fund code number within one month from the date of issue of Work Order / Purchase Order.

I / We also agree that any payment due to us arising out of the execution of the contract shall be released by the owner only after submission of a copy of the valid PF code number allotted to us.

Signature of the bidder with seal

Annexure-12

CERTIFICATE REGARDING COMPLIANCE
on Restrictions under Rule 144 (XI) of the General Financial Rules (GFRS), 2017

I have read the Order (Public Procurement No.1) dated 23.07.2020 issued by Department of Expenditure, Public Procurement Division and subsequent orders issued by the Nodal Ministry. In terms of the requirement of the aforesaid order, we hereby certify that:

a) I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I hereby certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority. I hereby certify that this bidder fulfils all requirements in this regard and is eligible to be considered. [Copy of valid registration by the Competent Authority shall be attached.]

b) I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on subcontracting to contractors from such countries; I hereby certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that this bidder fulfills all the requirements in this regard and is eligible to be considered. [Copy of valid registration by the Competent Authority shall be attached.]

Yours truly,

Date ………………..
Place …………………

Signature: ………………………..
Name: ……………………………
Designation: ……………………..
Name of Bidder: …………………
Seal……………………..……..

Note:
The above certificate given by a bidder whose bid is accepted, if found to be false, this would be a ground for immediate termination and further legal action in accordance with law.

*** Strikeout whichever is not applicable.**

Annexure-13

DECLARATION ON LOCAL CONTENT

(*To be submitted in the letter head of statutory auditor or cost auditor of the company (in the case of companies) or in letter head of practicing cost accountant or practicing chartered accountant*)

I/We have read the provisions of Public Procurement (Preference to Make in India), Order 2017 dated 15.06.2017, 28.05.2018, 29.05.2019, 04.06.2020, 16.09.2020 and subsequent orders/revisions/amendments issued by the respective Nodal Ministry. In terms of the requirement of the aforesaid provisions, I/We hereby declare the following:

1. I/We confirm that, I/We am/are a Class-I Local Supplier / Class-II Local Supplier, and the local content included in the Package Work is **……….%** of our total offered price for complete scope of work for **Tender Enquiry No.:** *HO(Works)/ Contracts/ ERP/CLMS/ 2025/ 1132/ 322dtd 20.04.2026*.

2. Further, I/We hereby confirm the following:

Whether the bidder is presently debarred / banned by any other procuring entity for violation of 'Public Procurement (Preference to Make in India), Order 2017' (PPP-MII Order) dated 15.06.2017 issued by Department of Industrial Policy and Promotion (DIPP) and its subsequent orders/amendments/revisions.	YES / NO

3. I/We agree to furnish any information as a proof of the above as and when required.

Date ……………….. Signature of the tenderer

Place ……………… Seal…………….

SECTION IV

FORM OF CONTRACT AGREEMENT (FoCA)
(To be executed on non-judicial stamp paper of value not less than Rs.100)

THIS CONTRACT NO ____________________ made this ____________ Day of ____________, Two Thousand ……. at _____________________

BETWEEN

NMDC LIMITED, a Company incorporated under the Companies Act, 1956 and having its registered office at ……………., India, (hereinafter referred to as the "Employer") which term or expression unless excluded by or repugnant to the context or the meaning thereof, shall be deemed to include its successors and permitted assigns, OF THE ONE PART,

AND

M/s.__________________________, a Company organised and existing under the laws of _______ (Name of the Country) and having its Registered Office at _____________________ (hereinafter referred to as "Contractor"), which term or expression unless excluded by or repugnant to the context or meaning thereof, shall be deemed to include its successors and permitted assigns, OF THE OTHER PART

AND WHEREAS

(a). The Employer has decided to engage a Contractor for ……………………………. (hereinafter referred to as the " Facilities "), and

(b). The Contractor has declared that the Contractor has valuable and specialized knowledge and expertise for ……………………………………………. ……………………………………………. …………… as detailed in enclosed Technical Specification and BOQ.

(c) The Contractor has obtained clarifications on technical and commercial aspects, inspected the site and surroundings of Facilities and has examined and considered all other matters, conditions and things, probable contingencies including delays, hindrances and interferences and generally all matters incidental thereto and ancillary thereof, affecting in performance of the facilities, and the contractor has agreed to undertake to execute the Facilities.

NOW IT IS HEREBY AGREED as follows:

Article 1. Contract Documents

1.1 Definitions (Reference GCC Clause 1)

1.2 Contract Documents (Reference GCC Clause 2)

(a). This Contract Agreement and Appendices hereto

(b). Special Conditions of Contract hereto

(c). General Conditions of Contract and Annexures hereto

(d). Safety code for Contractors including MOU for safety

(e). Technical Specifications including Drawings

(f). Any other documents

1.3 **Order of Precedence**

In the event of any ambiguity or conflict between the Contract Documents listed above, the order of precedence shall be the order in which the Contract Documents are listed below :

(a). This Contract Agreement and Appendices hereto

(b). Special Conditions of Contract hereto

(c). General Conditions of Contract and Annexures hereto

(d). Technical Specifications including Drawingsgt

Article 2 Effective Date

Effective Date of Contract is 30 days from the date of issue of Letter of Award of Contract OR signing of Contract Agreement, whichever is earlier.

Article 3 Scope of Work

The Contract is for the execution of Scope of Work as specified in the Technical Specifications and GCC Clause 3 as per terms and conditions of this contract agreement. The scope of services shall also include any and all work, supplies and services as described in Technical Specification.

The Contractor shall also execute all such works which, in the opinion of the Employer, are required to be executed for the successful completion of the work. All such works shall be deemed to have been included in the original scope of the tender.

Article 4 Contract Period

Contract Period is for **06 months for implementation, followed by 12 months of Warranty and 12 months of maintenance contract** from the effective date of Contract.

Article 5 Contract Price

5.1 Total Contract Price (Reference Appendix-1)

The Employer hereby agrees to pay to the Contractor the Total Contract Price in consideration of the completion of the services and performance by the Contractor of its obligations under the Contract and in accordance with the Contract. The Contract Price shall be: [amount in local currency in words], [amount in figures], or such other sums as may be determined in accordance with the terms and conditions of the Contract as indicated in the price schedule.

The Employer hereby agrees to pay to the Contractor the Contract Price in consideration of the performance by the Contractor of its obligations.

Article 6 Terms of Payment - Reference Appendix-2

Article 7 Price Adjustment due to change in Labour wages – Refer Appendix 3: *Not applicable in this tender*

Article 8 Liquidated Damages

LIQUIDATED DAMAGES (LD) FOR DELAY IN COMPLETION: ***during implementation of the Project.***

Time is the essence of the contract. It shall be the responsibility of the successful bidder to complete the work within the stipulated period of completion.

If the bidder fails to complete the work / facilities within the time fixed under the contract or any extension thereof and / or to fulfil his obligations in time under the contract, he shall be liable to pay as agreed liquidated damages and not by way of penalty a sum equivalent to 0.5% of total implementation contract value (Part - I of Price Schedule) plus escalation, if any, excluding taxes and duties per week of such delay or part thereof subject to maximum of 10% (Ten Percent) of the total implementation contract value (Part - I of Price Schedule) plus Escalation, if any, excluding Taxes and Duties..

1. Penalty for non-availability / under performance of the project during AMC Period.

i. In case of non-fulfilment of performance parameters, the successful bidder shall be liable to pay in the form of Penalty for the various parameters as per Service Level Agreement (SLA).

ii. Penalty for non – availability of system during Contract Period: - The system availability and the penalty shall be applicable as per SLA given below.

iii. SLA would be applicable in Warranty and AMC period of the project after issue of Final Acceptance Certificate (FAC). The penalties shall be applicable on cost of Warranty, Manpower, Cloud Hosting and AMC of the project calculated quarterly.

iv. Service Level parameters defined below shall be monitored on monthly basis, as per the individual parameter requirements. The successful bidder shall be responsible for providing appropriate web based online SLA measurement and monitoring tools.

v. The successful bidder shall be expected to take immediate corrective action for any breach in SLA. In case issues are not rectified to the complete satisfaction of NMDC, within 10 days of reporting, then the successful bidder shall replace the system at its own cost or NMDC shall have the right to impose penalty as per the SLA or terminate the contract.

2. Service Level Agreement (SLA):

a) A maximum level of performance Penalties, Measurement & Targets is as follows:

Sl. No	Measurements	Definitions	Target Uptime in %	Percentage Penalty Per Quarter
1	Availability of the complete system includes : • Contract Labour Management Syste (CLMS)	Uptime = {1 - (Application downtime - maintenance downtime) / (Total Time – maintenance downtime)} • Application Downtime shall be measured from the	>= 99	No penalty
			>= 98 and < 99	0.1 %
			>= 97 and < 98	0.2%
			>= 96 and < 97	0.3%
			>= 95 and < 96	0.4%
			>= 94 and < 95	0.8%

Sl. No	Measurements	Definitions	Target Uptime in %	Percentage Penalty Per Quarter
	• Cloud Hosting Infrastructure	time system becomes unavailable (due to any software issue, Server issue etc. whatsoever attributable to the Bidder) for Business processing to the end user to the time it becomes fully available. • Any downtime for maintenance shall be with prior written intimation to the NMDC. • Measurement Tool: System Generated Report and the uptime measured on quarterly basis.	>= 93 and < 94	1.0%
			>= 92 and < 93	2.0%
			>= 91 and < 92	2.5%

3. Manpower availability during contract period:

In case of un-authorised absence of any of the manpower provided by the successful bidder, pro-rata deduction per day will be done. Penalty for Manpower unavailability will be arrived based on the formula given below:

Deduction (in INR) = {(Average Monthly Salary/30) + 500)} * no. of absence days.

The above rates of penalty shall be used only for calculation of deduction to be imposed in case of absence of manpower during the warranty and AMC period.

The leave of Manpower will be applicable as per site wise NMDC Calendar.

Note:

a) Maximum liability on account of Liquidated Damages for delay in completion and shortfall in performance/availability during the Contract Period of the system are independent of each other and are applicable separately and concurrently.

b) NMDC may, without prejudice to any other method of recovery, deduct the amount of such damages and penalties from any money in hands, due, or which may become due, to the successful bidder under the contract or any other contract between the successful bidder and NMDC. The payment or deductions of such damages and penalties shall not relieve the successful bidder of his obligation to complete the works or from any other of his obligations and liabilities under the contract.

Article 9 Conciliation and Arbitration

Conciliation and Arbitration shall be as per clause no. 57.0 of GCC.

Article 10 Liability of Govt. of India

It is expressly understood and agreed between the Contractor and the Employer that the Employer is entering into this Agreement solely on its own behalf and not on behalf of any other person or entity. In particular, it is expressly understood and agreed that the Govt. of India is not a party to this Agreement and has no liabilities, obligations or rights hereunder. It is expressly understood and agreed that the Employer is an independent legal entity with power and authority to enter into Contracts solely on its own behalf under the applicable laws of India and general principles of Contract Law. The Contractor expressly agrees, acknowledges and understands that the Employer is not an agent, representative or delegate of the Govt. of India. It is further understood and agreed that the Govt. of India is not and shall not be liable for any acts, omissions, commissions, breaches or other wrongs arising out of the Contract. Accordingly, the Contractor hereby, expressly waives, releases and foregoes any and all actions or claims, including cross claims, impleder claims or counter claims against the Govt. of India arising out of this contract and covenants not to sue the Govt. of India as to any manner, claim, and cause of action or thing whatsoever arising of or under this Contract.

Article 11 Appendix

The following Appendices shall be deemed to form an integral part of this Contract Agreement. Reference in the Contract to any Appendix shall mean the Appendices attached hereto, and the Contract shall be read and construed accordingly.

(a).	Preamble to Price Schedule including price schedule:	Appendix – 1
(b).	Terms of Payment:	Appendix – 2
(c).	Price Adjustment due to change in Labour indices:	Appendix – 3

Article 12 **Validity of modification**
No modifications of this Contract including Appendices hereto, shall be valid unless the same is agreed to in writing by the parties and issued as amendments to the Contract.

Article 13 This Contract is signed in English language in two (2) originals, the Employer receiving one duly signed original and the Contractor receiving one duly signed original. Both the originals are authentic. The Contractor shall be required to provide ten (10) copies of signed contract agreement for Employer's use and one soft copy (scanned) in CD.

IN WITNESS WHEREOF, the Employer and the Contractor have caused this Agreement to be duly executed by their duly authorised representatives the day and year first above written.

Signed by for and on behalf of the Contractor	Signed by for and on behalf of the Employer
……………………………………..	**NMDC LIMITED**
(**Contractor)**	**(Employer)**
*[**Signature**]*	*[**Signature**]*
*[Name & **Designation**]*	*[Name & **Designation**]*
In the presence of	**In the presence of**
1)	1)
*[**Signature & Designation**]*	***[Signature & Designation]***
2)	2)
[Signature & Designation]	***[Signature & Designation]***

APPENDIX - 1
Preamble to Price Schedule

PRICE BASIS

1.1. Study of tender documents and visits to site:

Tenderer(s) should study the tender documents carefully before quoting. The Tenderer(s) should visit the site and acquaint themselves with site conditions. The Tenderer(s) are also expected to know about the availability of water, power, approach road cum construction materials, as per our specifications and any/all other ancillary facilities since these are to be provided / arranged by the Tenderer(s) (unless otherwise specified) at their cost to execute the works. All these factors must be taken into account.

1.2. The Tenderer shall quote their all-inclusive rates under **Price Schedule** considering Minimum Labour wages for Engineers/supervisor, skilled and un-skilled labor as per prevailing statue during the entire contract period, tools & tackles, general consumables and compliance to provisions given in GCC on Labour rules. The quoted price is including transportation, handling, insurance, establishments, overheads, contingencies etc., and all taxes, duties, levies as applicable **including 18% Goods and Services Tax (GST)** thereon, which will be paid against proper GST tax invoice issued as per GST Tax invoice rules for availing GST Input tax credit by employer, subject to eligibility.

1.3. The Tenderers may be required to explain/ justify the basis of their quoted price as and when asked for. In case, any Tenderer fails to justify his quoted price or refuse to co-operate in this regard, such Tenderer will not be considered for participating in the re-tendering, if the contract is not finalized from the present bidding.

1.4. In case of any work is to be done which is not part of scope, however, if it is required to be done in the opinion of Engineer-in-charge for completion of the activity, the Contractor shall complete such work with the available Manpower at no additional cost. However, if additional Manpower has to be deployed for carrying out such work, the Contractor shall deploy such additional Manpower for completion of the activity and payment shall be made for the deployment of additional Man power as per the quoted price calculated on pro-rata basis with due approval for the additional work.

1.5. Contractor's rate for any item of work in the schedule shall be deemed to include cost of all materials including wastage, loading, transportation and handling, unloading, labour, tools and plant, fuel consumable, erecting and removal of scaffolding and other temporary works, all incidentals such as setting out, site drainage, offering samples for approval, cost of all tests including soil test for establishing Bearing Capacity etc., rectification of all defects, replacement of defective material and work, removal of debris etc., interruption of work required to accommodate the work of other agencies working in that area, site clearance before, during and after completion of work and maintenance of completed works during period of maintenance, providing facilities for inspection of existing structures etc.

The rates for all items shall include working at all locations and levels and for all necessary leads and lifts.

1.6. General site cleaning of work site shall be required at regular intervals of time including VIP visits. These site clearances shall be done by the contractor at no extra cost to the Employer as per the instructions of the Employer without damage to existing facilities.

1.7. Any damage caused to existing facilities while carrying out the work shall be made good by the contractor to entire satisfaction at his own risk and cost. During execution of work if it is found necessary, to dismantle any facilities to facilitate the movement of materials and equipment, the same shall be made good at the contractor's own cost after completion of work.

2. Price shall be evaluated on the basis of *Net Price Implication, after adjustment of Input Tax Credit.*

3. Party shall have to visit the site, study the system in detail & understand the system in totality before submitting the tender & quote accordingly.

4. The contractor shall be entirely responsible for executing the work covered in the scope of work in a proper and expeditious manner as per time schedule, formats & instruction of the concerned in-charge.

5. Record keeping and maintenance schedule forms, logbooks, other maintenance, records on daily basis, collection of above documents including its printing is contractor's responsibility.

6. The contractor shall have to give a declaration about the detail Bio data, educational qualification, work experience, years of experience in the relevant field, category wise payment details & date of payment of salary in each month of the workmen within a month of award of work.

7. The number and categories of manpower to be deployed from time to time on activities can vary and will correspond to actual requirements as assessed by contractor in agreement with the Engineer in-charge. It may be necessary to carry out the work round the clock based on requirement and shutdown provided. The contractor's rate shall cover such eventualities.

8. The contractor has to organize the Operation wing/Maintenance Wing for round the clock operations & maintenance matching with the shift timings as per instruction of the Engineer In-charge.

9. Contractor should comply with all statutory requirements like labour license, Insurance, PF, ESCI & others.

10. Discipline, attitude & behaviour of work force.

    In any of these above areas if the performance of the contractor is not satisfactory or if there is any hindrance, loss in production because of above or damage to the equipment because of the above. In such instance, Employer will empower to deploy it's men & material to carry out the operation & maintenance job at the risk & cost of contractor.

11. Decision of Employer regarding the performance of the contractor is final & binding for the application of LD/penalty.

12. The contractor has to furnish contact Telephone number & contact place for passing the information.

13. The conveyance for workmen to reach the duty post/site with tools & tackles shall have to arrange by the Contractor.

14. **Price Schedule** - Price Format shall be as per format enclosed herewith as Annexure to Appendix-1.

Annexure to Appendix 1
PRICE SCHEDULE

NMDC Limited, Hyderabad.					
Design, Development, Hosting, Commissioning, Testing & Go-Live etc. of Contract Labour Management System (CLMS) at NMDC					
Name of Bidder:					
Price Schedule (Item wise BoQ)					
#	**Bill of Material**	**UNIT**	**Quantity**	**Unit Rate (Excl. GST) (INR)**	**Total Amount (Excl. GST) (INR)**
	i	*ii*	*iii*	*iv*	*v = (iii*iv)*
A	**Part - I : CLMS Implementation**				***₹ 0.00***
1	Supply, Design, Development, Hosting, Commissioning, Testing, Go-Live and Final Acceptance Certificate (FAC) etc. of Contract Labour Management System (CLMS) Software.	Lump Sum	1	₹ 0.00	₹ 0.00
B	**PART- II (C+D) : Manpower, Cloud Hosting and AMC Cost**				**₹ 0.00**
C	**MANPOWER COST: Manpower Requirement during 1 year warranty and 1 year AMC Period**				**₹ 0.00**
1	Support Engineer Cost during 1 Year Warranty Period	Nos.	4	₹ 0.00	₹ 0.00
2	Support Engineer Cost during 1 year AMC Period	Nos.	4	₹ 0.00	₹ 0.00
D	**Cloud Hosting and AMC Cost**				**₹ 0.00**
1	Cloud Hosting during 1 Year Warranty period	Lump Sum	1	₹ 0.00	₹ 0.00
2	Cloud Hosting and 1 Year AMC Cost	Lump Sum	1	₹ 0.00	₹ 0.00
E	**Total quoted price (excl. GST) = A+B**				**₹ 0.00**
F	**GST @18% on E**				**₹ 0.00**
G	**Total quoted price (incl. GST) = E+F**				**₹ 0.00**

Note: Bidders to quote only the Unit Rates (Excluding GST) in the coloured cells. Bidders shall not quote prices in the Dummy Price Schedule. The GST shall be at 18%.

PROFORMA FOR BILL FOR PAYMENTS

PROJECT: ____

Date of Bill: ____

Description: ____

Order No. ______________________________ Date: _______________

Name of Supplier:

Contract Value:

Serial Number of Bill:

To
NMDC Ltd.,

BILL FOR PAYMENT

1. Pursuant to the above referred contract dated .... the undersigned hereby applies for payment of the sum of Rupees............................ (Specify amount).

2. The above amount is on account of: (Check whichever applicable)

   Progressive payment against receipt of equipment at site. Other (Specify).

   Final payment as detailed in the attached schedule (s) which form an integral part of this bill.

3. The payment claimed is as per item (s) No. (s).............. of the payment schedule annexed to the above-mentioned order.

4. This bill consists of this page, details of claim statement (schedule) and the following signed schedules:

   1.
   2.
   3.

   The following documents are also enclosed

Signature of Contractor
Authorised Signatory

APPENDIX – 2
TERMS OF PAYMENT

1. In accordance with the provisions of the contract, the Employer shall pay the contractor for the scope of services detailed under Technical Specification (TS), on the basis of the price given in the price schedule.

2. Subject to any deductions that may be made as per the Contract, the Contractor shall be entitled to receive the contract price in the following manner as per the agreed rates. Payments shall be affected only after (i) Execution of the Contract Agreement by both parties and (ii) Submission of Bank Guarantee as per clause no.23 of ITT towards Contract Performance.

3. All Payment to the successful bidder shall be made in Indian Rupees through account payee cheque / NEFT / RTGS as following

Terms of Payments (As per Price Schedule)

1 **Part – I : Design, Development, Hosting, Commissioning, Testing & Go-Live etc. of Contract Labour Management System (CLMS) Software.**

(a) 80% on Design, Development, Hosting, Commissioning, Testing of Contract Labour Management System (CLMS) Software with 100% GST and certified by Owner/ Engineer-in-Charge.

i. Signed commercial invoice-3 copies.
ii. Test Certificate

(b) 10% on Go Live and issuance of Final Acceptance Certificate (FAC) from Owner/Engineer-in-Charge. This payment will be released against submission of following documents.

i. Signed commercial invoice-3 copies.
Ii. Submission of approvals from concerned Authority, if any.

(c)10% after completion of 1 year Warranty Period.

2. **Part – II : Manpower Charges, Cloud Hosting and AMC**

(a) Payment for Manpower and Cloud Hosting services during 1 year Warranty period will be made on a quarterly basis, after the end of each quarter, along with applicable GST. The attendance of manpower will be certified by the Engineer-in-Charge at the respective project sites. Payment will be released upon submission of the following documents:

(i). Signed commercial invoice-3 copies.
(ii). Attendance sheet of Manpower duly certified by the Engineer-in-Charge of respective project sites.
(iii). Proof of cloud hosting.
(iv). System Generated SLA Report

(b) **Payment for the 1 year AMC, which includes Manpower and Cloud Hosting services** during the AMC period, will be made on a quarterly basis after the end of each quarter along with applicable GST. This payment schedule will commence following the completion of the one-year warranty period. The attendance of Manpower will certify by the Engineer-in-Charge of respective project sites. This payment will be released against submission of following documents.

(i) Signed commercial invoice-3 copies.
(ii) Attendance sheet of Manpower duly certify by the Engineer-in-Charge of respective project sites.
(iii) System Generated SLA Report.
(iv) Proof of cloud hosting.

Note:

1. No advance will be provided to the contractor and the payments will be linked with the progress of work.
2. Payments shall be released on fulfilment of above activities as per scope of work specified in tender document and within 30 days from the date of submission of invoice and certificate from Engineer-in-Charge.

3. If the Successful Bidder is liable for any penalty as per the scope of work (refer to the related clause of this agreement), the same shall be adjusted from payments due to the Successful Bidder.

4. *NMDC will release the ad-hoc payments of 75% of eligible running account bill/ due stage payment within 10 working days of the submission of the bill. All processes including prima facie scrutiny and certification by the engineer in-charge (as declared by procuring entities) will be completed within the period of 10 days. The remaining payment shall be made after final checking of the bill within 28 working days of submission of bill by the contractor, subject to the condition that invoice and all supporting documents produced are in order and work has been performed as per the scope of the project*.

5. The Invoice for the services shall separately indicate the Goods and Service Tax (@18%) claimed by the Contractor along with their relevant Goods and Service Tax Identification Number (GSTIN) obtained by the Contractor.

Payment against the invoice cum bill shall be made after recovery of Liquidated Damages (LD) / penalty, if any.

4. **Income Tax**

Any Indian Income Tax which Employer may be required to deduct by law or statute, shall be deducted at the source under relevant Chapter of Income Tax Act and the same shall be paid to Income Tax Authorities on account of the Contractor. Employer shall provide the Contractor a certificate for such deduction of Tax. The Contractor shall indicate their Permanent Account Number with the relevant Income Tax Authority to Employer. Contractors shall maintain books of account and shall get the account audited as per relevant Section of Income Tax Act.

If the Contractor is exempted from the deduction /recovery of Income Tax, no such recovery shall be made by Employer. Contractor shall furnish valid exemption Certificate issued by Income Tax Department to this effect.

5. Goods and Services Tax payments shall be made at actuals against requisite documents i.e., invoice-wise; however, the Contractor's invoices shall bear their relevant Goods and services Tax Identification number.

6. Payment to Contractor shall be made on monthly basis. The Contractor shall raise monthly invoice in triplicate enclosing certificate from Engineer-in-charge for Monthly performance of work, Levy of LD & Penalty, if any. The Monthly bills shall be paid to Contractor subject to deductions of LD, if any and all other Statutory Deductions viz. Income Tax, Workmen's Compensation etc. if any shall be made from Contractor Bills as per Rules/Regulations/ Acts in force. GST TDS, if any will be deducted from the date of notification at applicable rate.

7. VOID.

8. The contractor shall also submit any other document required by the employer in compliance with GST Act and rules made thereunder. In case, the contractor fails to submit the required document, the amount of GST paid on such jobs shall be recovered by Employer unless the Contractor furnishes proper justification.

9. The payment to the Contractor shall be released within thirty (30) days from the date of receipt of the complete and correct invoices & relevant documents.

10. All interim / progress payments shall be regarded as ad-hoc payments against the final payment only and not as payment for work completed and shall not preclude defective / imperfect / incomplete Facilities / services to be removed / rectified. It will not be considered as an admission by the Employer of the due performance of the Contract, or any part thereof by the Contractor nor

shall it preclude, determine or affect in any way the powers of the Employer under these conditions or in any way vary or affect the Contract.

11. Operation Register shall be signed and dated by both parties each day on the Site on completion of work.

12. **Time limit for payment of final bill:** The final bill shall be submitted by the CONTRACTOR within three months of physical completion of the entire work as certified by the Engineer in accordance with tender conditions. No further claim shall be made by the CONTRACTOR after submission of the final bill and these shall be deemed to have been waived and extinguished. All approved samples, as-built drawings shall be submitted along with final bill. An undertaking stating that all statutory payments have been made and the OWNER shall be fully indemnified from any claims from statutory authorities, shall also be enclosed. Payment of these items of the bill in respect of which there is no dispute, shall be made within six (6) months, the period being reckoned from the date of receipt of the bill by the OWNER.

13. **Deduction of recoverable Costs**: Wherever any claim for the payment of a sum of money to the OWNER arises out of or under this contract against the CONTRACTOR, the same may be deducted by the OWNER from any sum then due or which at any time thereafter may become due to the CONTRACTOR under this contract and failing that under any other contract with the OWNER or from any other sum due to the CONTRACTOR from the OWNER which may be available with the OWNER or from his Contract Performance Guarantee or he shall pay the claim on demand.

APPENDIX – 3

PRICE ADJUSTMENT DUE TO VARIATION IN LABOUR WAGES: *Not applicable in this tender*

~~1.0 The price variation due to change in indices for labour wages shall be paid from the second year of the contract reckoned from the base date i.e. due date of submission of tender / updated bid, if the contract period is extended beyond 1st year and is applicable for price schedule at Table-1A only.~~

~~2.0 The Base Date of the Contract Price is ______ [due date of submission of tender / updated bid].~~

~~3.0 Year 1: No price variation is payable in first year.~~

~~4.0 Year 2: Price variation due to change in labour wages shall be paid from 13th month onwards along with monthly contract price excluding taxes, if the contract period is extended beyond 1st year.~~

~~5.0 Any increase or decrease in prices of labour wages, shall be adjusted based on the formulae / provisions given below and no other claim on account of any other variations except statutory variations, if any shall be paid;~~

~~**Calculation of Monthly Price variation:**~~

~~Price variation due to change in labour wages shall be adjusted as per the following formula from the second year of the contract onwards;~~

$$\cancel{VL = \frac{80 \times W}{100} \times \frac{\{LI - Lio\}}{Lio}}$$

~~Where VL = Escalation / de-escalation amount payable / deductable in Rupees on account of variation in indices of Labour Wages.~~

~~W = Monthly Contract value for O&M works~~
~~Monthly contract price for O&M works = Total Contract price under Table-1A / 12~~

~~LI = Present Month **Consumer Price Index for Industrial Labour (All India)** declared by Labour Bureau, Govt of India and Published in RBI Bulletin, as applicable for the period under consideration.~~

~~Lio= Consumer price Index for Industrial Labour (All India) declared by Labour Bureau, Govt of India, and Published in RBI Bulletin, as applicable on **Base date.**~~

SECTION V
GENERAL CONDITIONS OF CONTRACT (GCC)
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21.	Contractors supervision
22.	Labour & Labour rules
23.	Provision of Minimum wages Act. and payment of wages
24.	Reporting of Accidents
25.	Provision of Workmen's Compensation Act. and other laws
26.	Payment of Wages
27.	Provision of Apprentices Act.
28.	Labour Returns
29.	Labour Camps
30.	Preservation of Peace
31.	Sanitary Arrangements
32.	Infectious Diseases
33.	Medical Facilities at Site
34.	Use of Intoxicants
35.	Age Limits of labour
36.	Provident Fund & ESI
37.	Observance by Sub-Contractor
38.	Contractors Equipment
39.	Site Regulation and Safety
40.	Site Clearance
41.	Lighting, Fencing & Watching
42.	Work at night & on holidays
43.	Access to possession of site
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49.	Care of works
50.	Permits & Licences
51.	Insurance
52.	void
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54.	Changes in Law & Regulations
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74.	Material Obtained from Dismantling
75.	Sub-Contracting
76.	Misuse of the works
77.	General
78.	Guidelines for settlement for claims on accidents

1.0 DEFINITIONS

The following words and expressions shall, unless repugnant to the context, have the meanings hereby assigned to them:

“Contract” means the Contract Agreement entered into between the Employer and the Contractor, together with the Contract Documents referred to therein; they shall constitute the Contract, and the term “the Contract” shall in all such documents be construed accordingly.

“Contract Documents” means the documents of the Contract Agreement (including any amendments thereto).

“GCC” means the General Conditions of Contract hereof.

“SCC” means the Special Conditions of Contract.

“Technical Specifications/Contract Technical Specification” mean the technical specifications, schedules, detailed designs, statements of technical data, performance characteristics value and all other particulars of the Contract.

“GTS” means the General Technical Specifications.

“Day” means calendar day of the Gregorian Calendar.

“Month” means calendar month of the Gregorian Calendar.

“Employer */ Owner*” means NMDC LIMITED and includes the legal successors or permitted assigns of the Employer.

AMC Services means Annual Maintenance Contract Services.

“Engineer ” / “Engineer-in-Charge” means the person appointed by the Employer in the manner and to perform the duties delegated by the Employer.

“Contractor” means the person(s) whose bid to perform the Contract has been accepted by the Employer and is named as such in the Contract Agreement, and includes the legal successors or permitted assigns of the Contractor. In case the Contract is with Consortium of two or more members then the Contractor shall mean one or more members of Consortium as the case may be.

“Contractor’s Representative” means any person nominated by the Contractor and approved by the Employer in the manner provided herein to perform the duties delegated by the Contractor. For site work Contractor’s Representative shall also mean the representative of Sub-Contractors and Sub-Contractor’s Sub-Contractors.

"Sub-Contractor", including vendors, means any person to whom execution of any part of the Facilities, including preparation of any design or supply of any Plant and Equipment, is sub-Contracted directly or indirectly by the Contractor, and includes its legal successors or permitted assigns.

"Contract Price" means the sum specified in Appendix-1 of the Form of Contract Agreement, subject to such additions and adjustments thereto or deductions therefrom, as may be made pursuant to the Contract.

"Base Date" means the date of submission of bid / updated bid.

"Facilities"/ "Works" mean the work specified in the Technical Specification, BoQ including General Technical Specification (if any).

"Site" means the land and other places upon which the Facilities are to be installed, and such other land or places as may be specified in the Contract as forming part of the Site.

"Effective Date" of Contract: **30 days from the date of issue of Letter of Award of Contract (LAC) or the date of signing of Contract Agreement, whichever is earlier**.

"MOBILISATION" shall mean establishment of sufficiently adequate infrastructure by the CONTRACTOR at 'site' comprising of construction equipment, aids, tools and tackles including setting up of site offices with facilities such as power, water, communication, etc. establishing man-power organization comprising Project Manager/Resident Engineer, Engineers, supervisory personnel and an adequate strength of unskilled, semi-skilled and skilled workmen in order to carry out the work at site(s) in accordance with the 'CONTRACT'

"Tenderer/Bidder" shall mean a person/firm or company who submits his bid/offer in response to the Notice Inviting Tenders of the Employer and shall include his heirs, legal representatives, successors and permitted assignees.

"Consortium" is a person or a firm who has been retained by the Contractor to meet all obligations stipulated therein for performing part of the Contract as required by the Employer and shall include his heirs, legal representatives, successors and permitted assignees

"Inspector" / "Inspecting Engineer" shall mean any person or firm nominated by or on behalf of the Employer or his duly authorised agent to inspect equipment, materials, supplies or work under the Contract.

2.0 <u>CONTRACT DOCUMENTS</u>

Subject to Article 1.3 (Order of Precedence) of the Contract Agreement, all documents forming part of the Contract (and parts thereof) are intended to be correlative, complementary and mutually explanatory. The Contract shall be read as a whole.

3.0 SCOPE OF WORK

In consideration of payments of Total Contract Price as specified in the Contract Agreement, subject to other provisions of the Contract, to be made by the Employer, the scope of the Contractor shall be, as included under the Contract and other documents referred and annexed thereto and Technical Specification / Volume – II (Scope of Work).

Unless otherwise expressly limited and/or excluded elsewhere in the Contract from the scope, the Contractor's scope under the Contract shall be including but not limited to as stipulated in the Technical Specification / Volume – II (Scope of Work).

4.0 CONTRACT PERIOD

Contract Period shall be as per Article 4 of FOCA.

5.0 EMPLOYER'S RESPONSIBILITIES

5.1 The Employer shall ensure the accuracy of important information and / or data to be supplied by the Employer, except when otherwise expressly stated in the Contract.

5.2 The Employer shall be responsible for acquiring and providing legal and physical possession of the Site and access thereto, and for providing possession of and access to all other areas reasonably required for the proper execution of the Contract, including all requisite rights of way. The Employer shall give full possession of and accord all rights of access thereto on or before the mutually agreed date(s).

5.3 If requested by the Contractor, the Employer shall use its best endeavours to assist the Contractor in obtaining in a timely and expeditious manner all permits, approvals and / or licenses necessary for the execution of the Contract from State or Central Government Authorities.

6.0 CONTRACTOR'S OBLIGATIONS

Unless expressly excluded and/ or limited elsewhere in the Contract, the Contractor shall discharge the responsibilities as specified herein below at no extra cost to the Employer in addition to such other obligations and responsibilities as have been specified elsewhere in this contract;

6.1 The contractor shall be deemed to have obtained independently on his own all necessary information and shall be deemed to have carefully examined all details relating to works as given in the contract including its scope, nature and magnitude, requirements of associated materials and services and shall be deemed to have fully acquainted himself as to all conditions and matters which may in any way affect the execution of works in accordance with the Contract and/or the cost associated therewith.

The employer shall assume no responsibility and/or liability whatsoever as may arise due to lack of inadequacy of such information no matter whatever be the defects, omissions or errors that may be found in the information / documents furnished by the Employer.

6.2 The Contractor shall be deemed to have acquainted himself with the Indian Income Tax Act, 1961, Indian Companies Act, 1956, Indian Electricity Act, Electricity Rules, Factories Act, Labour laws, Pollution Control Regulation and other acts & laws, rules and regulations as applicable in execution of works and prevalent in India, respective state(s) and at Project site and as amended from time to time.

The Contractor shall further confirm in all respects with the provisions of any such Statue, Ordinance or Law as aforesaid and the rules, regulations or by-law of any local or other duly constituted authority which may be applicable to the works or to any Temporary Works and with such rules and regulations of public bodies as aforesaid.

The Contractor shall keep the Employer indemnified against all penalties and liability of every kind for breach or non-compliance, by him including his sub-contractor(s), of any such Statue, Ordinance, law, Rule, Regulation or Bye-Law as aforesaid.

6.3 The Contractor shall provide sufficient fencing, notice boards and lights as may be considered necessary by the Employer / Consultant to protect and warn others. All materials used for providing these facilities shall be properties of the Employer.

6.4 The Contractor shall take all precautions during execution, especially while excavation to avoid interference with or damage to underground works such as cables, drains, etc. whether shown in the drawing or not and provide all possible protection to these works and in case they are damaged, rebuild/divert them at his own cost.

6.5 Materials brought to the site shall not be removed from the site without the written consent of the Employer. Any material brought to site and rejected by the Employer shall be removed by the Contractor from the site of work immediately at Contractor's expense.

6.6 The contractor shall be deemed to have visited the site and surroundings of the proposed work at his own Cost and satisfied himself with all aspects, nature and extent of work and / or any other factor, (e.g. availability of Labour, water, power, ground and sub-soil conditions, uncertainties of weather, general and local conditions etc.) which might influence his tender and shall be deemed to have verified and / or checked the data furnished by the EMPLOYER, if any.

The contractor shall be deemed to have satisfied himself as to the accessibility to site by roads and feasibility of taking materials and Equipment to the site of work, erection of their Equipment and suitability of site for the proposed work.

6.7 All the services shall be in conformity with accepted norms and best available engineering standards including Indian Standards and IPSS.

7.0 CONTRACT PRICE

7.1 The Contract Price as specified in Article – 5 of the Contract Agreement shall be for the entire scope of the Facilities. The break-up of the contract price is given in the Annexure to Appendix-1 (Price schedule) to the Contract Agreement.

7.2 The Total Contract Price in respect of the scope of the Contract covered by and in accordance with all terms & conditions, stipulations, specifications, requirements and other conditions of the Contract shall be as specified in the Contract Agreement.

7.3 Unless otherwise specified the Total Contract Price is inclusive of all applicable taxes, levies & duties including GST. **Further details are provided in Appendix-1 to the Contract Agreement**.

8.0 TERMS OF PAYMENT

8.1 All payments shall be made as specified in Appendix-2 (Terms of Payment), directly by the Employer to the Contractor unless otherwise provided in the Contract or agreed between the Parties.

8.2 If as per provisions of Contract any payment is made directly by the Employer to the Sub-Contractors, such payments shall constitute a proper discharge of Employer's obligations for such payments to the Contractor.

9.0 WORKS TO BE MEASURED

The Engineer shall, except as otherwise stated, ascertain and determine by measurement the value of work done under the Contract. He shall, when he requires any part or part of the Works to be measured, give notice to the Contractor's authorised agent or representative who shall forthwith attend or send a qualified agent to assist the Engineer or the Engineer's Representative in making such measurement and shall furnish all particulars required by Engineer. Should the Contractor not attend or neglect or omit to depute his representative during such measurements of Works or any part thereof then the measurement made by the Engineer or approved by him shall be taken to be the correct measurement of the work and binding on the Contractor.

In the event of any dispute or conflict with regard to the measurement of the work executed, the decision of the Employer shall be final and binding on the Contractor.

9.1 **Deductions from Contract Price;**

All costs, charges, damages or expenses which the Employer may have paid or incurred, shall be reimbursed by the Contractor to the Employer, if and to the extent to which the Contractor is liable under the Contract to pay, within (thirty) 30 days upon written request of the Employer, failing which such costs, charges, damages or expenses shall be deducted by the Employer from any money due or becoming due by him to the Contractor under the Contract or any other Contract, failing which, such amounts shall be considered as debt due from the Contractor to the Employer and shall be recoverable accordingly including but not limited to, by way of forfeiture of the Bank Guarantee(s) submitted by the Contractor under the Contract.

10.0 TAXES & DUTIES

10.1 Except as otherwise specifically provided in the Contract, the Contractor shall bear and pay all taxes, duties, levies and charges assessed on the Contractor, his Sub-Contractors or their employees by Municipal, State or Central Government Authorities.

10.2 The Contract Price shall comprise basic price, any other duties, taxes and levies, prevailing on base date of the Contract. Goods and Service Tax thereon shall be payable extra at actuals against documentary evidence (Tax Invoice), however, rate and amount of the same shall be quoted by the bidder.

10.3 In no case the reimbursement towards duties and taxes, etc., shall exceed the amount indicated in Annexure to Appendix 1 towards duties, taxes, levies, etc. except for statutory variation in taxes and duties and/or imposition of new statutory taxes and duties occurring during contractual Time for Completion. However, Goods and Service Tax thereon shall be payable extra at actuals against documentary evidence (Tax Invoice) as mentioned above

10.4 Effect of variation in taxes and duties viz., Goods and service Tax (GST) thereon due to variation in quantities of the BOQ by the Employer shall be to the Employer's account.

10.5 GST TDS, if any, which Employer may be required to deduct by law/statute/regulation shall be deducted at source and shall be paid to the Government on account of the Contractor.

10.6 Any Indian Income Tax which Employer may be required to deduct by law or statute shall be deducted at the source and the same shall be paid to Income Tax Authorities on account of the Contractor. Employer shall provide the Contractor a certificate for such deduction of Tax. The Contractor shall indicate their Permanent Account Number with the relevant Income Tax Authority to Employer.

10.7 The Contractor shall bear and pay all the liabilities in respect of non-observance of all legal formalities as per various statutory provisions.

11.0 <u>STATUTORY VARIATIONS IN TAXES & DUTIES</u>

11.1 For the purpose of the Contract, it is agreed that the 'Contract Price' specified in the Contract Agreement is based on the taxes, duties, levies etc. and charges prevailing on Base date. If any rate of tax is increased or decreased, a new tax is introduced applicable for the Works/ facilities under the Contract, an existing tax is abolished, or any change in interpretation or application of any tax occurs in the course of the performance of Contract, which was or will be assessed on the Contractor, Sub-Contractors in connection with performance of the Contract, an adjustment of the Contract Price shall be made by addition to the Contract Price or deduction thereof as the case may be, as appropriate in accordance with provisions of the Contract .

11.2 The adjustment in the Contract Price towards statutory variations in taxes due to increase in tax rates or enactment of new tax shall be applicable for the variations in the taxes enacted within the scheduled date of the "Time for Completion" of the Contract.

For any upward variations in taxes enacted after the scheduled date of the "Time for Completion" the adjustment in the Contract Price shall not apply in case the reasons for delay are not attributable to the Employer not withstanding extension to the "Time for Completion" is granted. However, if the completion of the Works/ facilities is delayed due to reasons attributable to the Employer and extension to the "Time for Completion" is granted, statutory variations in taxes and duties enacted after the scheduled date of the "Time for Completion", the adjustment in the Contract Price shall be allowed up to the period within the extended "Time for Completion" of the Contract.

However, if the completion of Works/ facilities is delayed beyond scheduled date of the "Time for Completion" due to reasons attributable to both the parties, then the period for delay attributable to the Employer will be considered as initial delay and the price adjustment shall be applicable during this period as well.

Any increase/decrease in taxes and duties on account of statutory increase /decrease/fresh imposition of any duty or taxes which take place during the extended period (to the extent extension is for reasons attributable to the Employer) shall be admissible

11.3 It is further provided that, in case of abrogation of any existing tax or any downward statutory variation in any tax, the Contract Price shall be adjusted downwards irrespective of actual date of completion of Works/ facilities.

11.4 The adjustment in the Contract Price towards variation in the taxes shall be made by the Employer on production of the documentary evidences by the Contractor.

12.0 <u>CONFIDENTIAL INFORMATION</u>

12.1 The Employer and the Contractor shall keep confidential and shall not, without the written consent of the other party hereto, divulge to any third party any document, data or other information furnished directly or indirectly by the other party hereto in connection with the Contract, whether such information has been furnished prior to, during or following termination of the Contract. Notwithstanding the above, the Contractor may furnish to his Sub-Contractor(s) such documents, data & other information it receives from the Employer to the extent required for Sub-Contractor(s) to perform his work under the Contract, in which event the Contractor shall obtain from such Sub-Contractor(s) an undertaking of confidentiality similar to that imposed on the Contractor under this clause.

12.2 The Employer shall not use such documents, data and other information received from the Contractor for any purpose other than the work.

13.0 <u>REPRESENTATIVES</u>

13.1 **Engineer / Engineer-in-charge**

If the Engineer is not named in the Contract, then within fourteen (14) days of the Effective Date, the Employer shall notify the Contractor in writing of the name of the Engineer. The Employer may from time to time appoint some other person as the Engineer in place of the person previously so appointed, and shall give a notice of the name of such other person to the Contractor without delay. No such appointment shall be made at such a time or in such a manner as to impede the progress of work or the Facilities. Such appointment shall only take effect upon receipt of such notice by the Contractor. The Engineer shall represent and act for the Employer at all times during the currency of the Contract. All notices, instructions, orders, certificates, approvals and all other communications under the Contract shall be given by the Engineer, except as herein otherwise provided.

13.2 **Contractor's Representative**

13.2.1 If the Contractor's Representative is not named in the Contract, then within fourteen (14) days of the Effective Date, the Contractor shall appoint the Contractor's Representative and shall request the Employer in writing to approve the person so appointed. If the Employer makes no objection to the appointment within fourteen (14) days, the Contractor's Representative shall be deemed to have been approved. If the Employer objects to the appointment within fourteen (14) days giving the reason therefore, then the Contractor shall appoint a replacement within fourteen (14) days of such objection.

13.2.2 The Contractor shall not revoke the appointment of the Contractor's Representative without the Employer's prior written consent, which shall not be unreasonably withheld. If the Employer consents thereto, the Contractor shall appoint some other person as the Contractor's Representative,

13.2.3 The Contractor's Representative shall represent and act for the Contractor at all times during the currency of the Contract and shall give to the Engineer all the Contractor's notices, instructions, information and all other communications under the Contract. All notices, instructions, information and all other communications given by the Employer or the Engineer to the Contractor under the Contract shall be given to the Contractor's Representative or, in his absence, his deputy, except as herein otherwise provided.

13.2.4 All notices, instructions, information and other communications given by the Contractor to the Employer under the Contract shall be given to the Engineer, except as herein otherwise provided.

13.2.5 The Contractor's Representative may, subject to the approval of the Employer (which shall not be unreasonably withheld), at any time delegate to any person any of the powers, functions and authorities vested in him or her. Any such delegation or revocation shall be subject to a prior notice signed by the Contractor's Representative, and shall specify the powers, functions and authorities thereby delegated or revoked. No such delegation or revocation shall take effect unless and until a copy thereof has been delivered to the Employer and the Engineer. Any act or exercise by any person of powers, functions and authorities so delegated to him , shall be deemed to be an act or exercise by the Contractor's Representative.

13.2.6 In the event any of the Contractor or his sub-contractors, personnel, agents, sub-agents, assistants or other employees shall be guilty of any misconduct or be incompetent or insufficiently qualified or negligent in the performance of their duties or it is undesirable for any administrative reasons for such person to be deployed, the contractor, if so directed, shall immediately remove such person or persons from site. Any person or persons so removed shall not again be utilised in connection with this contract without the written permission of the Employer. Any person so removed shall immediately be replaced by a qualified and competent substitute at the Contractor's cost and expenses. Should the Contractor be requested to repatriate any person he shall do so and shall bear all costs and charges in connection therewith.

14.0 CO-OPERATION WITH OTHER CONTRACTORS

14.1 The Contractor shall, upon written request from the Engineer, provide all relevant technical information to the other Contractors employed by the Employer on or near the Site for any associated facilities to enable the Employer to obtain the efficient & economical design of the associated facilities.

14.2 The Contractor shall, upon written request from the Engineer, give all reasonable opportunities for carrying out the work to any other Contractors employed by the Employer on or near the Site and shall co-ordinate with the other Contractors for any interface activity under his Scope of Facilities.

14.3 The Contractor shall also so arrange to perform his work as to minimise, to the extent possible, interference with the work of other Contractors. The Engineer shall determine the resolution of any difference or conflict that may arise between the Contractor & other Contractors in regard to their work.

14.4 The Contractor shall notify the Engineer promptly of any defects in the other Contractors' work that come to his notice, and that could affect the Contractor's work. The Engineer shall determine the corrective measures, if any, required to rectify the situation after inspection of the Facilities. Decisions made by the Engineer shall be binding on the Contractor.

15.0 <u>WORK PROGRAM</u>

15.1 Contractor's Organisation

The Contractor shall supply to the Employer a chart showing the proposed organisation to be established by the Contractor for carrying out work on the Facilities. The chart shall include the identities of the key personnel together with the curricula vitae of such key personnel to be deployed within twenty-one (21) days of the Effective Date of the Contract. The Contractor shall promptly inform the Employer in writing of any revision or alteration of such an organisation chart.

15.2 **Program of Performance**

Within three (3) weeks after the date of signing the Contract Agreement, the Contractor shall prepare and submit to the Engineer the Master PERT Network for the performance of the Contract, showing the sequence in which it proposes to perform the work

15.3 **Progress Report**

The Contractor shall monitor progress of all the activities specified in the program and submit to the Engineer a progress report along with Computerised Network Analysis Report every month.

The progress report shall be in a form acceptable to the Engineer and shall indicate: (a) percentage completion achieved compared with the planned percentage completion for each activity; and (b) where any activity is behind the program, giving comments and likely consequences and stating the corrective action being taken.

15.4 **Progress of Performance**

If at any time the Contractor's actual progress falls behind the program or it becomes apparent that it will so fall behind, the Contractor shall, at the request of the Engineer, prepare and submit to the Engineer a revised program, taking into account the prevailing circumstances, and shall notify the Engineer of the steps being taken to expedite progress so as to attain Completion of the Facilities within the Time for Completion any extension thereof entitled may otherwise be agreed upon between the Employer and the Contractor.

15.5 **Work Procedures**

The Contract shall be executed in accordance with the Contract Documents including Appendices to the Contract Agreement and Annexures hereof.

The Contractor may execute the Contract in accordance with his own standard project execution plans and procedures to the extent that they do not conflict with provisions contained in the Contract.

16.0 <u>WATER</u>

The Contractor shall ensure that there is no wastage of water. The Contractor will also be responsible for maintaining the taps, pipe lines, etc., in proper condition. The Contractor shall obtain prior approval of the Employer of Contractor's distribution scheme before laying the pipelines.

17.0 POWER

During installation & commissioning power shall be provided by the company.

The Contractor shall ensure that the electrical equipment employed by the Contractor will be such that the aggregate power factor does not fall below 0.8 at the Employer's terminal point.

The Contractor shall obtain Employer's prior approval of the locations of Contractor's fixed construction machinery and the points for tapping of electric supply, laying of distribution lines and wiring.

Display of danger board signs in Hindi and English languages near switches is to be ensured by the Contractor.

The Contractor will employ Electricians having valid Electrical Licence for carrying out the installations as well as for maintenance.

The Contractor shall not effect any change in the temporary installation unless permission is obtained from the Employer or his authorised representative.

The Contractor shall be responsible for all damages, losses, etc., due to fire or otherwise if it is due to the Contractors negligence, improper installation, operation and / or maintenance of Contractors part of installations.

18.0 LAND FOR CONTRACTOR'S OFFICE, STORE, WORKSHOP ETC

The OWNER shall at his discretion and for the duration of execution of the Contract make available at site, free of charge, land for construction of CONTRACTOR's field office, workshop, stores, magazines for explosives in isolated locations, assembling yard etc. required for execution of the Contract. Levelling and dressing of site, any construction of temporary roads, offices, workshop etc. as per plan approved by the ENGINEER shall be done by the CONTRACTOR at his own cost.

On completion of work or on cancellation of contract, the CONTRACTOR shall hand over the land duly cleaned to the OWNER. Until and unless the CONTRACTOR has handed over the vacant possession of land allotted to him for the above purposes, the payment of his final bill shall not be made. The CONTRACTOR shall be liable to pay for the use and occupation of the land at the rates to be determined by the OWNER, if the CONTRACTOR overstays in the land after contract is completed or cancelled

19.0 VOID

20.0 BENCHMARK:

The Contractor shall be responsible for the true and proper setting-out of the Facilities periodically in relation to benchmarks, reference marks, check lines and levels provided to it in writing by or on behalf of the Employer. If, at any time during the progress of installation of the Facilities, any error shall appear in the position, level or alignment of the Facilities, the Contractor shall forthwith notify the Engineer of such error and, at his own expense, immediately rectify such error to the reasonable satisfaction of the Engineer.

21.0 CONTRACTOR'S SUPERVISION

The Contractor shall give or provide all necessary superintendence during the installation of the Facilities, and the Contractor's Representative or his deputy shall be constantly on the Site to provide full-time superintendence of the installation. The Contractor shall provide and employ only such technical personnel who are skilled and experienced in their respective discipline and supervisory staff who are competent to adequately supervise the work at hand.

22.0 LABOUR & LABOUR RULES

22.1 The Contractor shall provide and employ on the Site in the installation of the Facilities such skilled, semi-skilled and unskilled labour as is necessary for the proper and timely execution of the Contract.

22.2 The Contractor shall at all times during the progress of the Contract use his best endeavours to prevent any unlawful, riotous or disorderly conduct or behaviour by or amongst his employees & labour and labour of his Sub-Contractors / Vendors.

22.3 The Contractor shall, in all dealings with his labour and the labour of his Subcontractors employed on or connected with the Contract, pay due regard to the laws and regulations pertaining to the employment of labour.

22.4 In respect of all labour directly or indirectly employed on the works by the Contractor, the Contractor shall comply with and implement all the Provisions of the Contract Labour (Regulation and Abolition) Act 1970, or any amendment thereof, and all labour legislations and Rules of the State and / or Central Government or other local authority formed from time to time governing the protection of health, sanitary arrangements, wages, welfare and safety of labour employed on the works and the Contractor shall be deemed to the Principal Employer for this purpose. The rules and other statutory obligations with regard to fair wages, welfare and safety measures, maintenance of register, etc., will be deemed to be part of the Contract. The Contractor will get himself registered with the concerned statutory authorities as provided in the Act and shall be directly responsible of the authorities thereunder for compliance with the provisions thereof.

22.5 Contractor shall have to submit valid Contractor's License before commencement of Work as statutorily required.

22.6 **Model Rules for Labour Welfare:** The CONTRACTOR shall at his own expense comply with or cause to be complied with Model Rules of Labour Welfare as appended to these conditions or rules framed by Central or State Government from time to time for the protection of health and for making sanitary arrangements for the workers employed directly or indirectly on the works. In case the CONTRACTOR fails to make arrangements as aforesaid, the ENGINEER shall be entitled to do so and recover the cost thereof from the CONTRACTOR (Annexure-1 to GCC).

22.7 **Observance of Contract Labour Regulations:** The Contractor shall in respect of labour employed by him or his sub-Contractors comply with or cause to be complied with the Contract Labour Regulations in regard to all matters provided in the tender(Annexure-2 to GCC).

22.7.1 The Contractor shall comply with all the provisions of the payment of Wages Act 1936, Minimum Wages Act 1948, Employer's Liability Act 1938, Workmen's Compensation Act, 1923, Industrial Disputes Act 1947, Maternity Benefit Act 1961 and Mines Act, 1952, Contractor Labour

Regulation & Abolition Act 1970, Provident Fund Act or any order made there under / thereof or any other law relating thereto and rules and made hereunder from time to time.

22.7.2 The Contractor shall be liable to pay his contribution and the employee's contribution to the State Insurance Scheme in respect of all labour employed by him for the execution of the contract, in accordance with the provision of "The Employees State Insurance Act, 1948" and Provident Fund Act as amended from time to time. In case of default, the Engineer will be entitled to withhold an amount of contribution as assessed by him from the Contractor's bills till such time the Contractor produces evidence of remittance of the same to the concerned authorities.

22.7.3 The Owner shall, on a report having been made by the Inspecting Officer as defined in the Contract Labour Regulations, have the power to deduct from the moneys due to the Contractor any sum required or estimated to be required for making good the loss suffered by a worker or workers by reason of non-fulfillment of the conditions of the Contract for the benefit of workers non-payment of wages or of deductions made from his or their wages which are not justified by the terms of the Contract or non-observance of the said Contract Labour Regulations.

22.7.4 The Contractor shall indemnify the Owner against any payments to be made under and for observance of the Regulations aforesaid without prejudice to his right to claim indemnity from his sub-Contractors.

22.7.5 The Contractor shall take out necessary license under the Contract Labour (Regulation and Abolition) Act, 1970 within the time limit allowed by the appropriate Government and on his failing to do so within the prescribed time limit, the contract will be liable for termination including forfeiture of Earnest Money /Security Deposit.

22.8 **Safety Code:** The CONTRACTOR shall at his own expense arrange for the relevant safety provisions as appended or as required by the Engineer in respect of all labour directly or indirectly employed for performance of the works and shall provide all facilities in connection therewith. In case the CONTRACTOR fails to make arrangements and provide necessary facilities as aforesaid, the Engineer shall be entitled to do so and recover the cost thereof from the CONTRACTOR (Annexure-3 to GCC).

23.0 PROVISION OF MINIMUM WAGES ACT AND PAYMENT OF WAGES

23.1 The Contractor shall comply with the provisions and procedures of State Government's minimum wages Act 1948 & State Government's Minimum Wages Fixation Act. 1962 and rules made there under in respect of all employees employed by the Contractor or his Sub-Contractor(s) directly or indirectly for the purpose of carrying out the works. The Contractor shall pay employees wages not less than the minimum rates of wages, if any, fixed by the State Government from time to time.

23.2 The Contractor shall make regular and prompt payment of wages to the labour engaged in the work and in no case shall the payment be delayed more than seven days following the period for which, the wages are due. The Contractor shall send a certificate to the Employer to this effect every month. If it is found that workers are not paid regularly, the Contract is liable to be terminated.

23.3 In respect of labour employed by the Contractor or his Sub-Contractor on the works the Contractor shall provide at his own cost reasonable amenities for securing proper working and living condition such as water supply, lavatories, bathing place, cleanliness, etc. Where a women labour is employed urinals, lavatories will be provided separately by the Contractor for female workers as well as crèches for the infant children of women labourers. Labourers engaged on hazardous jobs and occupations, will be provided with necessary safety appliances by the Contractor(s) free of charges.

23.4 The Contractor's / Sub-Contractor's establishment will be subject to inspection, investigation, etc., by the Employer or his representative for assuring proper and faithful compliance of the provisions of the Contract by the Contractor (so with regard to the implementations of labour laws & other matters anticipated herein). The Contractor / Sub-Contractors shall abide by the decisions and orders of the Employer with regard to any such matter and furnish if required, necessary compliance.

23.5 In the event of retrenchment of workers by the Contractor or Sub-Contractors employed by the Contractor during or after the completion of Facilities the retrenchment compensation and other benefits will be paid by the Contractor to the workers as per the Industrial Dispute Act and other laws.

23.6 If any money shall, as a result of any claim of application made under the said acts, be directed to be paid by the Employer, such money shall be deemed to be money payable to the Employer by the Contractor and / or failure by the Contractor to repay the Employer, and money paid by the Employer as aforesaid, latest within 30 days after the same shall have been demanded from the Contractor, the Employer shall be entitled to recover the same from any money due or accruing to the Contractor under this or any other Contract with the Employer, failing which such amount shall be considered as debt due from the Contractor to the Employer.

23.7 The Contractor shall comply with the provisions of by-partite and tripartite agreement entered into by the Employer from time to time with Labour Union and / or the circulars issued by the Employer regarding payment of minimum wages and benefits applicable.

23.8 The Contractor shall strictly comply the statutory rules and regulations in respect of working hours of female labourers at site.

23.9 **Special Relief for NMDC Production Project applicable for Contract Labourer's (SRNPP Provisions) are indicated below: *Not applicable in this tender***

NMDC's initiative towards improvement in the benefits to the Contract labour under the scheme named SRNPP has been implemented in the NMDC production projects of the company viz Kirandul Complex, Bacheli Complex, Donimalai and Panna Projects from 01.10.2010. Under this scheme an additional amount of Rs. 170/- per day over and above statutory minimum wages on actual attendance is payable as "Special Relief for NMDC Production Project (SRNPP)" to the Contract Labourer's working in production projects of the company.

The payment of fair wages shall be ensured strictly by the contractors to the contract Labourer's without fail. The fair wages shall not be less than SRNPP plus the minimum wages prescribed by the Statutory Authority.

Accordingly, Terms and Conditions regarding payment of SRNPP have been incorporated. The Contractor must provide above said additional amount to be paid to all Contract Labour on actual attendance and record the same in attendance register along with maintaining the records of payment at the time of weekly payment. This shall be certified by the Engineer-in-charge concerned. The Contractor's quoted rate is inclusive of SRNPP as per above details.

24.0 REPORTING OF ACCIDENTS

The Contractor shall be responsible for the safety of his own and his Sub-Contractors' workmen and employees. All accidents at site are to be immediately reported to the concerned authorities. The Contractor shall be responsible for all such accidents. The guidelines for settlement of claims for compensation on accidents is given at clause no.78 hereof.

25.0 PROVISION OF WORKMEN'S COMPENSATION ACT AND OTHER LAWS

25.1 The Contractor shall be liable for in respect of any damages or compensation payable by law in respect of or in consequences of any accident or injury to any workmen or other person in the employment of the Contractor or any of his Sub-Contractors and the Contractor shall save harmless and shall indemnify and keep indemnified the Employer against all such damages and compensation and against all claims, demands, proceedings, costs, charges and expenses, whatsoever, in respect thereof or in relation thereto. The Contractor shall at all times indemnify and keep indemnified the Employer against all claims for compensation under the provisions of the Workmen's Compensation Act 1923 (VIII of 1923) or any other law for the time being in forces by or in respect of any workmen employed by the Contractor or his Sub-Contractors / agencies in carrying out the Contract and against all costs and expenses or penalties incurred by the Employer in connection therewith. In every case in which by virtue of the provisions of Section-12, Sub-Section(1) of the Workmen's Compensation Act 1923, the Employer is obliged to pay compensation to a workmen employed by the Contractor or his Sub-Contractors / agencies, the amount of compensation so paid and without prejudice to the rights of the Employer, the Employer shall be at liberty to recover such amount or any part thereof from the security deposit or from the sums due or to become due to the Contractor (whether under this Contract or any other Contract).

25.2 The Employer shall not be bound to contest any claim made against him of the said Act, except on the written request of the same or his Sub-Contractors / agencies and upon their giving to the Employer full security for all costs for which the Employer might become liable in consequence of contesting such claims.

26.0 PAYMENT OF WAGES

26.1 The Contractor shall make regular and prompt payment of wages to the labour engaged in the work and in no case shall the payment be delayed more than seven days following the period for which the wages are due. The Contractor shall send a certificate to the Employer to this effect every month. If it is found that workers are not paid regularly, the Contract is liable to be terminated.

26.2 The Employer shall have the right to enquire into and decide against any complaint alleging that the wages paid by the Contractor to any labour for the work done by such labour is less than the wages paid for similar work in the neighbourhood.

26.3 As a number of Contractors may be working at the same time in the erection of different parts of the Works, there is need for pursuance of a co-ordinated policy in regard to employment, wages and other conditions of work. The Contractor shall consult the Employer on all such matters to arrive at mutually agreed settlements.

27.0 PROVISIONS OF APPRENTICES ACT

The Contractor shall comply with the provisions of the Apprentices Act 1961, and the rules and orders issued there under from time to time. If Contractor fails to do so, his failure may be treated as breach of the Contract and the Employer may, in his discretion, terminate the Contract. The Contractor shall also be liable for any pecuniary liability arising on account of any violation by him of the provisions of the said Act.

28.0 LABOUR RETURNS

The Contractor shall, if required by the Employer, submit periodical statements of labour employed by the Contractor in the proforma prescribed by the Employer from time to time.

Contractor shall maintain all record/ register/ card such as

a) Register of workmen employed by Contractor

b) Employment card

c) Muster Roll

d) Register of wage cum muster roll

e) Submission of Return

29.0 LABOUR CAMPS

The Contractor shall, at his own expense, make adequate arrangements for housing, electricity, road, supply of drinking water and provision of lavatories and urinals for his staff and labour, disposal of sewerage and sludge and for temporary crèche (bal mandir) where 50 or more women are employed at a time.

30.0 PRESERVATION OF PEACE

The Contractor shall take requisite precautions and use his best endeavour to prevent riotous or unlawful behaviours by, or amongst his workmen and / or others employed on the works, by the Contractor his Sub-Contractors and for the preservation of peace and protection of the inhabitants and security of the property in the neighbourhood of the works / site. In the event of the Employer requiring the maintenance of a special police force at or in the vicinity of the site during the tenure of the Contract in consequence of the riotous or unlawful behaviour by, or amongst the Contractor's or his Sub-Contractor's workmen and / others employed by the Contractor / Sub-Contractors, all expenses thereof and costs of all damages due to such riotous or unlawful behaviour shall be borne by the Contractor and if paid by the Employer, shall be recoverable from the Contractor from any money due or that may become due to the Contractor by the Employer.

31.0 SANITARY ARRANGEMENTS

The Contractor shall comply with all sanitary rules in force and carry out all sanitary measures and permit inspection of all sanitary arrangements at all reasonable times by the Employer and or Statutory Authorities.

32.0 INFECTIOUS DISEASES

The Contractor shall employ such persons as are found to be free of contagious diseases and shall produce if required by the Employer, certificate of fitness of all his employees working at site. The Contractor shall, if required by the Employer, subject all his employees to regular medical check up and produce satisfactory evidence of their being free from any contagious disease. The Contractor shall remove from his labour camp such labour and their families who refuse protective inoculations and vaccination when called upon to do so by any competent authority.

33.0 MEDICAL FACILITIES AT SITE

The Contractor shall provide medical facilities at the site as per rules in force in relation to the strength of the Contractor's staff and workmen deployed at site.

34.0 USE OF INTOXICANTS

The use or sale of ardent spirits or other intoxicating beverages, upon the works or in any of the building, boarding houses, Encampments or other tenements owned, occupied by or within the control of the Contractor or any of his employees or his Sub-Contractor is strictly forbidden and the Contractor shall secure strict compliance.

35.0 AGE LIMITS OF LABOUR

The Contractor shall not employ for the purpose of the work, any person below the age as his statutorily forbidden. The Employer shall have the right to refuse to allow any labour, whom the Employer considers to be under aged to be employed by the Contractor. The Contractor shall submit periodical statements of labour employed by the Contractor to the Employer.

36.0 PROVIDENT FUND & EMPLOYEE'S STATE INSURANCE (ESI)

36.1 The Contractor shall be solely responsible for deduction and contributions under the Employees Provident Fund and Family Pension Act, 1952 and the scheme made there under as amended from time to time. The Contractor shall be solely responsible for the maintenance of records for payment of contributions and submission of returns in accordance with the said act and scheme.

In case the Contractor fails to make payments under the above Act and the scheme made there under and as amended from time to time, the Employer reserves the right to make such payment on behalf of the Contractor on demand from the authorities under the Act and recover the same from the payments due to the Contractor. Further, the Contractor shall indemnify and keep indemnified the Employer against any loss or damage whatsoever that may be suffered by the Employer as a result of any claims, damages, penalties for any failure, non-compliance on his part with the provisions of the aforesaid Act and the scheme framed there under.

36.2 **Employee's State Insurance (ESI)**

In terms of Section 1(3) of Employee's State Insurance Act, the Central Govt. has vide notification No. S-38013/18/ 2001-SS DT. 8.8.2001 made the provisions of the act applicable to all factories covered under the ACT within the (area) J.L. No. …………… under ……………….. P.S. Accordingly, NMDC ,…..." falls within the purview of Sec.2 (12) of the Act. w.e.f. 01.09.2001.

In view of the above, the Contractor must register the names of the persons employed by him with the Employee's State Insurance Corporation and fulfill all the obligations as provided under the provisions of the E.S.I. Act. 1948. It is to be ensured that each Contractor, before termination of the Contract in NMDC,….." has to be cleared all the liabilities under the E.S.I. Act without which Final Payment shall not be released.

37.0 OBSERVANCE BY SUB-CONTRACTORS

The Contractor shall also be responsible for the compliance of all the above clauses by his Sub-Contractor(s).

38.0 CONTRACTOR'S EQUIPMENT

38.1 All necessary Tools, Tackles and Equipment required for execution of the Work including Welding Machines, Gas Cutting sets, Jack Hammers, Lifting Devices, Pan Mixers, pneumatic rammer, Concrete Mixers, Concrete Vibrators, Pneumatic Portable Air Compressors, Chisels, Hammers, Weigh-Batching Machines, Transit Mixers, Trailers, tipper trucks, Lorries, jeep etc. for executing the contractual work shall have to be arranged by the contractor at his Own Cost including the Cost of Fuel & consumables. Contractor shall prepare templates, jigs for fabrication of structures/positioning of bolts, sleeves, inserts etc. wherever necessary, at no extra Cost to the EMPLOYER.

38.2 All Contractor's Equipment brought by the Contractor onto the Site shall be deemed to be intended to be used exclusively for the execution of the Contract. The Contractor shall not remove the same from the Site without the Engineer's consent that such Contractor's Equipment is no longer required for the execution of the Contract.

38.3 Contractor shall arrange for necessary Security and Safety of their materials, Plant & Equipment etc. till the project is taken over by EMPLOYER. No assistance shall be available from the EMPLOYER in this aspect. Other stipulations on safety mentioned in the General Conditions of Contract shall be adhered to.

39.0 SITE REGULATIONS AND SAFETY

39.1 As the works under the Contract are to be carried out within the Protected area, the Contractor shall abide by all the security regulations promulgated from time to time by the Employer / other concerned authorities.

39.2 The Contractor shall comply with the Site regulations, during the execution of the Contract at the Site, as given in the document of "Safety Code for the Contractors. Contractor shall also maintain hindrance register which shall be periodically examined by Employer.

39.3 Such Site regulations includes, but not limited to, rules in respect of security, safety of the Facilities, gate control, sanitation, medical care, and fire prevention.

39.4 The employees / labour of the Contractor / Sub-Contractor and Plant & Equipment brought to Site shall be subject to gate pass to be issued by Security Department or the respective Department.

39.5 Preparation of gate pass may take around 10 days' time. The Contractor / Sub-Contractor shall plan their programme in advance accordingly.

39.6 All representatives and workers of the Contractors / Sub-Contractors shall possess admit pass issued by the Security Department on the recommendation of the Employer. Employer shall have the right to refuse the admit pass to any workers or representatives without assigning any reasons.

39.7 The Contractor shall ensure that gate pass issued to their workers / representatives / Sub-Contractors by the Employer are not misused by unauthorised persons for entry in the plant area or in specified area inside the plant. It shall amount to breach of rules and regulations regarding entry into a prohibited place by the Contractors in case any admit pass issued on their demand is found to be misused by unauthorised person.

40.0 SITE CLEARANCE

40.1 Site Clearance in Course of Performance: In the course of carrying out the Contract, the Contractor shall keep the Site reasonably free from all unnecessary obstruction, store or remove any surplus materials, clear away any wreckage, rubbish or temporary works from the Site, and remove any Contractor's Equipment no longer required for execution of the Contract.

40.2 Clearance of Site after Completion of Works: On the completion of all parts of the Works, all wreckage, rubbish, debris and surplus material of any kind including Constructional Plants/debris, kilns vats, tanks, materials/rubbish and temporary structures of any short or kind, like scaffolding etc., used for the purpose of or connected with his construction including quarters for Contractor's labours are to be cleared away and removed by the Contractor and all pits and excavations filled up and the Site and Works are to be handed over in clean and safe and workmanlike conditions and no final payment in settlement of the accounts for the Works shall be held to be due or shall be made to the Contractor till such site clearance shall have been effected by him.

40.3 In the event of the Contractor failing to comply with this provision within seven (7) days after receiving notice in writing from the Engineer to the effect, such clearance may be made by the Engineer at expenses of the Contractor. If it becomes necessary for the Engineer to have the site cleared as indicated above at the expense of the Contractor, the Employer shall under no circumstances be held liable for any loss or damage to such Contractor's property as may be on site due to removal therefrom, which removal may be effected by means of public sale of such materials and property or in such way as seems fit and most convenient to the Engineer.

40.4 All debris and/or material(s) that are no longer required for construction / erection purpose shall be removed by the Contractor for disposal to a site designated by the Employer. The Contractor shall be responsible for transporting, loading / unloading and handling of all such materials in respect of disposal to the designated site at no extra cost to Employer

41.0 LIGHTING, FENCING AND WATCHING

The Contractor shall provide and maintain at his own expense all lighting, fencing, and watching when and where necessary for the proper execution and the protection of the Facilities, or for the safety of the owners and occupiers of adjacent property and for the safety of the public.

42.0 WORK AT NIGHT AND ON HOLIDAYS

42.1 As and when the Engineer considers it necessary to carry out work on extended hours / three shift basis or on Public Holidays so as to meet the Time for Completion and request the Contractor to carry out work on three shifts or on Public Holidays, the Contractor shall carry out the work accordingly to meet the Time of Completion.

43.0 ACCESS TO POSSESSION OF SITE

43.1 The Contractor may prescribe the extent of portions of the Site of which the Contractor is to be given possession from time to time and the order in which portions shall be made available to him.

Subject to any requirement stipulated in the Contract and to the order in which the Works are to be executed, the Employer will give to the Contractor possession of so much of the site as may be required to enable the Contractor to commence and proceed with the construction of the Works in accordance with the programme approved by the Employer pursuant to provisions of the Contract (if any) and otherwise in accordance with such reasonable proposals of the Contractor as he shall make by notice in writing to the Engineer.

From time to time, as the works proceed, the Employer shall give to the Contractor possession of such further portion of the Site as may be required to enable the Contractor to proceed with the construction of the Works. If the Contractor suffers delay from failure on the part of the Employer to give possession in accordance with terms of the clause the Employer and contractor shall mutually discuss and agree the changes in approved work program.

43.2 In the execution of the work, no person other than the Contractor, sub-contractor and his or their employees shall be allowed on the site except with the written permission of the Employer. Facilities to inspect the works at all times shall be afforded by the Contractor to the Employer and his representatives and other authorised officials. The Employer's Personnel shall at all reasonable times:

(a) have full access to all parts of the site and to all places from which natural Materials are being obtained, and

(b) during construction (at the site and elsewhere), be entitled to examine, inspect, measure and test the materials and workmanship, and to check the progress of the works.

(C) The Contractor shall give the Employer's Personnel full opportunity to carry out these activities, including providing access, facilities, permissions and safety equipment.

(d) The access to and possession of the site referred above shall not be exclusive to the Contractor but only such as shall enable him to execute the works in accordance with the Contract. Upon specific request of the Employer, the Contractor shall afford to the Employer and to other Contractors of the Employer, reasonable facilities for the execution of the work concurrently with his own.

(e) The Contractor shall bear all expenses and charges for special or temporary way leaves required by him. The Contractor shall also provide at his own cost any additional accommodation outside the Site required by him for the purpose of the Works

(f) The Contractor shall not interfere unnecessarily or improperly with:

(i). the convenience of the public, or

(ii). the access to and use and occupation of all roads and footpaths, irrespective of whether they are public or in the possession of the Employer or of others.

43.3 The Contractor shall indemnify and hold the Employer harmless against and from all damages, losses and expenses (including legal fees and expenses) resulting from any such unnecessary or improper interference.

44.0 DEFECT LIABILITY

The works executed by the Contractor shall be free from defects in the workmanship of the work executed. The contractor shall maintain and attend to all defects arising in the facilities maintained by them during the defect liability period as mentioned in Technical specifications.

If any major defect arises during such period, the contractor shall reconstruct/ rectify the same in stipulated period mutually discussed with Employer/Consultant.

If Contractor fails to commence rectification of defects within 14 days from the date of notice by Employer or does not complete the said rectification with diligence and within mutually agreed time period, EMPLOYER shall be entitled to carry out such work by his own workmen or by other agency at the cost of Contractor.

The issue of EMPLOYER's completion certificate shall in no way exempt the CONTRACTOR from the provisions under this Schedule.

45.0 LIMITATION OF LIABILITY

45.1 Except in case of criminal negligence or wilful non-performance or wilful default,

(i) the Contractor shall not be liable to the Employer, whether in Contract, tort, or otherwise, for any indirect or consequential loss or damage, loss of use, loss of production, or loss of profits or interest costs and

(ii) the aggregate liability of the Contractor to the Employer, whether under the Contract, in tort or otherwise including the cost of repairing or replacing defective equipment, shall not exceed the 100% (Hundred percent) of the Contract Price, plus escalation if applicable as per Contract, provided that this limitation shall not apply to any obligation of the Contractor to indemnify the Employer with respect to copyright, patent infringement, workman compensation and statutory liabilities in general that the Employer may be required to additionally bear due to default of the Contractor".

(iii) In case of termination of the contract due to contractor's default, the amount recoverable under risk and cost shall not be restricted by the provision of 'limitation of liability'.

46.0 VOID

47.0 REPAIR / REPLACEMENT OF DEFECTIVE WORK

47.1 The Contractor shall be responsible for repair/for replacement at no extra Cost to the Employer with all possible pace and to the entire satisfaction of the Engineer of any inadequacies, defects, errors, faults in respect of design, detailing, material workmanship and or any act or omission of the Contractor that may develop in the works executed by the Contractor against the Contract at any point of time before the expiry of Contract Period, irrespective of whether the work/ plant has been taken over by the Employer and regardless of whether the work/ plant was earlier inspected/ accepted by the Employer.

47.2 In case such repair/replacement becomes necessary at site, the following additional responsibilities shall rest on the Contractor without any cost, what-so-ever to the Employer

i) On being informed by the Engineer about any defect in the work by the Contractor, the Contractor shall immediately go to the site to inspect and identify the location and cause of defect.

ii) In case a defective work or component or combination of components is required to be replaced, the Contractor shall arrange for supply and installation of the replacement as expeditiously as possible and within the period approved by the Engineer. The condemned component or combination of components can be taken out of Employer's premises when so permitted by the Engineer.

47.3 If the Contractor fails or refuses to carry out the repair/replacement of defective work within a reasonable period of time, the concerned work/portion, thereof, shall be rejected by the Employer who shall place order elsewhere for such repair/replacement at the sole risk and cost of the Contractor.

48.0 INDEMNIFICATION, STATUTORY LAW, LOSS OF OR DAMAGE TO PROPERTY; ACCIDENT OR INJURY TO WORKERS

48.1 The Contractor shall indemnify and hold harmless the Employer and his employees from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of whatsoever nature, including attorney's fees and expenses, in respect of the death or injury of any person or loss of or damage to any property (other than the Facilities whether accepted or not), arising in connection with execution of the Works and by reason of the negligence of the Contractor or his Subcontractors, or their employees, or agents, except any injury,

48.2 If any proceedings are brought or any claim is made against the Employer that might subject the Contractor to liability hereof, the Employer shall promptly give the Contractor a notice thereof and the Contractor may at his own expense and in the Employer's name conduct such proceedings or claim and any negotiations for the settlement of any such proceedings or claim.

If the Contractor fails to notify the Employer within twenty-eight (28) days after receipt of such notice that it intends to conduct any such proceedings or claim, then the Employer shall be free to conduct the same on his own behalf at the risk of the Contractor.

The Employer shall, at the Contractor's request, afford all available assistance to the Contractor in conducting such proceedings or claim, and shall be reimbursed by the Contractor for all expenses incurred in so doing.

48.3 CONTRACTOR shall ensure compliance with all statutes, laws, rules and regulations of the Central or State Government or any other authority.

48.4 CONTRACTOR shall give all notices and pay all fees required to be given or paid under any Central or State statute, ordinance or other law or any regulation or by-law of any local or other duly constituted authority in relation to the execution of the Contract Work.

48.5 CONTRACTOR shall keep EMPLOYER completely indemnified against all penalties and liabilities of every kind for breach of any such statute, ordinance, law, rule, regulation or by-laws.

48.6 CONTRACTOR shall get himself registered with concerned statutory authorities as provided under various applicable Acts and shall be directly responsible to such authorities for compliance with the provisions thereof.

48.7 CONTRACTOR shall obtain necessary labour license from labour commissioner and shall indemnify EMPLOYER against any action, claim or proceeding relating to infringement of all or any of the prevailing act. By way of illustration of various Acts as stated in the contract, the following Acts with latest amendments, if any, thereof shall be complied with by the CONTRACTOR.

a. Employee Provident fund Act, 1952
b. Contract Labour Act (Regulation and abolition Act, 1970)
c. Minimum wages Act, 1948
d. Payment of wages Act, 1936,
e. Workmen Compensation Act, 1923
f. Factories Act, 1948
g. Apprentice shop Act, 1961
h. Employee Provident fund and family pension Act, 1952.
i. Contract Labour (Regulation and Abolition) Central Rules 1971
j. Employer's liability act. 1938.
k. Industrial Dispute act. 1947.
l. Employee state Insurance act. 1948.
m. Employee Pension Scheme
n. Any other Relevant Statutory Act and all other applicable laws.

48.8 Without prejudice to Employer's other rights as stipulated under Clauses "Insurance", "Defect Liability" and "Employer's Lien of" the Contract, the property and risk of the Contract work shall pass on to the Employer upon issuance of Contract completion Certificate.

49.0 CARE OF WORKS

49.1 The Contractor shall be responsible for the care and custody of the Works or any part thereof from the commencement until completion of the work and shall repair/replace or make good at his own cost any loss or damage that may occur to the Works or the relevant part thereof from any cause whatsoever during such period. The Contractor shall also be liable for any damage to the works occasioned by him in the course of any operations carried out by him or his Sub-Contractors for the purpose of complying with their obligations under the Contract.

49.2 Notwithstanding the foregoing, the Contractor shall not be liable for any loss or damage occurred to the Works or any part thereof caused by reason of any use or occupation of Works or any part thereof by the Employer or any third party (other than a Sub-Contractor) authorised by the Employer.

In such event, the Employer shall pay to the Contractor all sums payable in respect of the Works executed, notwithstanding that the same be lost, destroyed or damaged. If the Employer requests the Contractor in writing to make good any loss or damage to the Works thereby occasioned, the Contractor shall make good the same at the cost of the Employer in accordance with provisions given under "Right to Vary Scope".

50.0 PERMITS AND LICENCES

The Contractor shall at his own expenses obtain all permits and licences from Indian and Foreign Government required for the performance of work under this Contract and the Contractor shall bear any fee paid to the Government or local licensing authority for obtaining permits and licences at their own cost. The Contractor shall perform the work in accordance with the conditions of all applicable permits and licence. The Contractor shall provide evidence of licence granted and any restriction contained therein.

51.0 INSURANCE

51.1 The Contractor, within the Contract price shall arrange, secure and maintain during execution of the Contract, insurance as may be necessary or required by law for purpose of this Contract and for all such amounts to protect the interest of the Employer against all risks as detailed herein. The form and the limit of such insurance as defined herein together with the under-writer thereof in each case shall be acceptable to the Employer. However, irrespective of such acceptance, the responsibility to maintain insurance at all times during the period of `Contract' shall be that of the Contractor alone. All policies as stipulated shall remain valid during the tenure of the Contract. The Contractor's failure in this regard shall not relieve him of any of his contractual responsibilities and obligations.

51.2 The Contractor shall deposit copy of Insurance Policy/Policies along with copies of Receipts for premium to the Employer within 15 (fifteen) days of mobilisation at site or such other lesser time as is necessitated by the work, failing which the Employer shall have the right to take out Insurance covers at Contractor' expenses and deduct the amount of such premium paid/ to be paid from any money due or becoming due to the Contractor, without prejudice to any other rights of the Employer.

The above insurance policies shall be kept valid during the tenure of the Contract. Contractor shall also furnish to Employer any amendments thereto and prompt notification of any cancellation or termination thereof.

The Contractor shall pay necessary premium as required under the terms of the policy. Should the Contractor default in paying any premium when due, Employer, without prejudice to other remedies set forth in this Agreement, shall be at liberty to pay such premium and recover the same from the Contractor.

While the payment of premium may be phased in agreement with the insurance company, at no time shall the Works to be executed by the Contractor shall remain uninsured.

51.3 The Contractor shall arrange Transit Insurance (for transporting materials, under Contractor’s scope of supply, to site), Storage insurance (CAR Policy, if applicable), Erection All Risks insurance, Third Party Liability insurance, Workmen's Compensation Insurance, Comprehensive Automobile Insurance and Comprehensive General liability Insurance, which shall be at the cost and the responsibility of the Contractor.

51.4 The Contractor shall take suitable Group Personal Accident Insurance Cover for taking care of injury, damage or any other risks in respect of his Engineering and other Supervisory staffs who are not covered under policies as stipulated above.

51.5 The Employer shall be the principal beneficiary of the policy along with the Contractor. Sub-Contractors of the Contractor shall not be holders or beneficiaries in the policy nor shall they be named in the policy. Employer reserves the exclusive right to assign the policy.

51.6 The Contractor shall also arrange suitable insurance to cover damage, loss, accidents, risks etc., in respect of all his plant, equipment and machinery, erection tools & tackles and all other temporary attachments brought by him at site to execute the work.

51.7 In all cases, the Contractor shall lodge the claims with the Underwriters and also get the claims settled. However, the Contractor shall proceed with the repairs and/or replacement of the works or part thereto as the case may be, in their scope without waiting for the settlement of the claims. In case of seizure of any materials by concerned authorities, the Contractor shall arrange prompt release against bond, security or cash as required. Employer will extend all assistance to the Contractor in such a case.

51.8 Notwithstanding all these Insurance Policies, the Contractor shall be solely liable and responsible for any or all damages/losses /arising during the execution of the Contract and the Employer shall not be held responsible on any account whatsoever.

51.9 Any such insurance requirements as are hereby established as the minimum policies and coverage which Contractor must secure and keep in force. Contractor shall at all times be free to obtain additional or increased coverage at Contractor's sole expense.

51.10 Workmen’s Compensation Insurance

This insurance shall protect the Contractor against all claims applicable under the Workmen's Compensation Act, 1948 (Government of India) as amended from time to time. This policy shall also cover the Contractor against all claims for injury, disability, disease or death of his or his sub-contractor's employees which for any reason are not covered under the Workmen's Compensation Act, 1948.

The insurance policy shall cover third party liability also. The third party liability shall cover the loss / disablement of human life (persons not belonging to the Contractor) and also cover the risk of damages to others’ materials / equipment / properties during construction, erection and commissioning at site. The value of third party liability for compensation for loss of human life or partial / full disablement shall be of required statutory value but not less than Rs. 2.0 lakh per death, Rs. 1.5 lakh per full disablement and Rs. 1.0 lakh per partial disablement and shall nevertheless cover such compensation as may be awarded by a Court of Law in India or abroad and cover for damage to others’ equipment / property as approved by the Employer.

51.11 Comprehensive Automobile Insurance

This insurance shall be in such a form to protect the Contractor against all claims for injuries, disability, disease and death to members of public including the Employer's personnel and damage to the property of others arising from the use of motor vehicles during on or off the `site' operations, irrespective of the ownership of such vehicles.

51.12 Comprehensive General Liability Insurance

This insurance shall protect the Contractor against all claims arising from injuries, disabilities, disease or death of members of public or damage to property of others due to any act or omission on the part of the Contractor, his agents, his employees, his representatives and sub-contractors or from riots, strikes and civil commotion.

51.13 While carrying out the work at site, appropriate Insurance Policy shall be taken by the Contractor to cover damage, loss, injury, accidents to lives and properties of Contractor, Employer/ Third parties in the vicinity.

51.14 Notwithstanding all these Insurance Policies, the Contractor shall be solely liable and responsible for any or all damages/losses /arising during the execution of the Contract and the Employer shall not be held responsible on any account whatsoever.

51.15 The provisions contained within this clause are not intended and do not impair or in any manner limit the liabilities or obligations assumed by the Contractor as may be set forth elsewhere in this Contract.

51.16 In cases where the erection, modification etc., are to be carried out in the existing shop of the Employer the 'surrounding value' shall be intimated by the Employer to the Contractor, who shall ensure that this value is included in the policy.

52.0 VOID

53.0 NEGLIGENCE

53.1 If the Contractor does not execute the Work in accordance with the time schedule stipulated in the Contract and shall neglect to execute the Work with due diligence or expedition or shall refuse or neglect to comply with any reasonable order given to the Contractor in writing by the Employer in connection with the Work or shall contravene the provisions of Contract, the Employer may give notice in writing to the Contractor to make good the failure, neglect or contravention complained of within such time as may be deemed reasonable by the Employer and in default of compliance with the said notice, the Employer without prejudice to his rights hereof, may rescind or cancel the Contract holding the Contractor fully liable for the damages that the Employer may sustain including all amounts paid to the Contractor by the Employer for all such parts of the Works which may become infructuous due to such cancellation.

53.2 Should the Contractor fail to comply with such notice within the period as mentioned in the notice or any other period considered reasonable by the Employer for such compliance, from the date of serving thereof, then and in such case, without prejudice to the Employer's right hereof, the Employer shall have at its option the right to take the affected Work wholly or in part out of the Contractor's hands and may complete the Work, as envisaged in the Contract either departmentally or by awarding fresh Contract(s) to any other person or firm or company to execute the same, at the risk and cost of the Contractor.

53.3 In such event the Employer shall, without being responsible to the Contractor for wear and tear to the same, be entitled to seize and take possession and use all materials, construction equipment, tools, tackles and other things of the Contractor which may be at the site for use at any time in connection with the Facilities to the exclusion of any right of the Contractor over the same and the Employer shall be entitled to retain and apply any sum which may otherwise be then due as per the Contract or any other Contract from the Employer to the Contractor as may be necessary for the payment of the cost of execution of such Facilities as aforesaid.

53.4 If the cost of executing the Work as aforesaid shall exceed the sum due to the Contractor and the Contractor fails to make good the deficit within the specified period, the Employer shall have the right to lien over the said materials, tools, tackles, construction plant or other things and properties of the Contractor as may not have been used up in the completion of the Work, and may be sold by the Employer after serving due notice to the Contractor and such proceeds applied towards the adjustment of such difference and the cost of incidentals to such sale. Any outstanding balance existing after crediting the proceeds of such sale shall be paid by the Contractor on the demand of the Employer, but when all expenses, cost and charges incurred in the completion of the Facilities are paid by the Contractor, all such materials, tools, tackles, construction plant or other things not used in the completion of the Facilities and remaining unsold shall be removed by the Contractor with the written permission of the Employer.

54.0 CHANGES IN LAW AND REGULATIONS

If, after Effective Date of Contract Agreement, any law, regulation, ordinance, order or by-law having the force of law is enacted, promulgated, abrogated or changed (which shall be deemed to include any change in interpretation or application by the competent authorities) that subsequently affects the costs and expenses of the Contractor, the Contract Price shall be correspondingly increased or decreased.

55.0 NOTICES

Unless otherwise stated in the Contract, all notices to be given under the Contract shall be in writing, and shall be sent by personal delivery, post / airmail post, special courier, cable, telegraph, facsimile to the address of the relevant party set out in the Special Conditions of Contract, with the following provisions.

55.1 Any notice sent by cable, telegraph, facsimile shall be confirmed within two (2) days after dispatch by notice sent by airmail post or special courier, except as otherwise specified in the Contract.

55.2 Any notice sent by airmail post or special courier shall be deemed (in the absence of evidence of earlier receipt) to have been delivered ten (10) days after dispatch. In proving the fact of dispatch, it shall be sufficient to show that the envelope containing such notice was properly addressed, stamped and conveyed to the postal authorities or courier service for transmission by airmail or special courier.

55.3 Any notice delivered personally or sent by cable, telegraph, telex, facsimile shall be deemed to have been delivered on date of its dispatch.

55.4 Either party may change its postal, cable, facsimile address or addressee for receipt of such notices by ten (10) days' notice to the other party in writing.

55.5 Notices shall be deemed to include any approvals, consents, instructions, orders and certificates to be given under the Contract.

56.0 VOID

57.0 CONCILIATION AND ARBITRATION

57.1 **DISPUTE RESOLUTION**

1) The Consultant may resort to dispute resolution process in the cases where the Consultant does not accept NMDC's assessment of Consultant's Claim to be fair and reasonable. Dispute Resolution Process in general covers three stages:

a) Amicable settlement

b) Conciliation

c) Arbitration

Note: For ease in settlement of disputes, a third party may be engaged for independent assessment of disputes.

2) AMICABLE SETTLEMENT:

2.1 If any dispute arises between the Employer and Consultant, the parties shall seek to resolve any such dispute or difference by mutual consultation/ amicable settlement process. The Consultant shall notify the Employer of its intent to initiate an amicable settlement process within a period of 30 days from the date of notification of Employer's/ Engineer's estimate of Consultant's claim.

For Contracts where Integrity Pact is applicable and in case both the parties are agreeable, dispute may be tried to settle through mediation before the panel of IEMs in a time bound manner i.e. not more than five sittings.

The prevailing sitting fee of IEM as per Company rules shall be shared equally by the parties and expenses on travel and stay arrangements of IEMs, which shall be equal to that of Independent Board Member of NMDC, shall be shared equally.

2.2 If the parties fail to resolve such a dispute or difference by mutual consultation, then the dispute may be settled through Conciliation / Arbitration / other remedies available under the applicable laws.

3) CONCILIATION:

3.0 If the parties fail to settle the disputes through amicable settlement process, the parties shall take recourse to the conciliation proceedings for resolving such dispute, question, claim or differences.

3.1 A party ("claimant") shall notify the other party ("respondent") in writing about such a dispute it wishes to refer for Conciliation within a period of 30 days from the date of closing of Amicable Settlement process or 90 days from date of notification of Employer's/ Engineer's estimate of Consultant's claim. Such Invitation for Conciliation shall contain sufficient information as to the dispute to enable the other party to be fully informed as to the nature of the dispute, amount of the monetary claim, if any, and apparent cause of action.

3.2 The conciliation process shall be initiated by appointment of a Sole Conciliator or Conciliatory Committee. The Conciliatory Committee shall comprise of either Sole Conciliator or Conciliatory Committee comprising of three members, one member from each category i.e., Technical, Commercial and Legal. Conciliatory Committee shall be formed from the panel of experts maintained by NMDC. CMD, NMDC shall suggest three names to the Consultant to constitute the Conciliatory Committee within 30 days of receipt of notice for conciliation. The Consultant shall submit the consent for Conciliatory Committee within 14 days of receipt of recommendation from NMDC.

3.3 The selection of Sole Conciliator or the Conciliatory Committee shall be decided based on the claim amount and guidance on the same is provided below. Number of conciliators depending on the claim amount is detailed in the table below:

Claim Amount (excluding Interest)	Number of Conciliator/s

up to ₹ 2 crores	Sole Conciliator to be appointed
Above ₹ 2 crores up to ₹ 250 Crores	Conciliatory Committee to be appointed

3.4 The above committee shall conduct the conciliation proceedings in accordance with the provisions of Arbitration and Conciliation Act 1996 and its amendment thereof. The venue of the conciliation shall be at Hyderabad.

3.5 In the case of any vacancy the CMD, NMDC shall suggest name(s) for substitution on the Conciliatory Committee. The Consultant shall submit the consent within 14 days. Failure of Consultant's consent within 14 days shall be considered as deemed acceptance of the suggested member(s) by the Consultant.

3.6 Upon constitution of the Conciliatory Committee, Law Department of NMDC will issue the appointment letters to Conciliatory Committee members and inform same to the parties concerned.

3.7 The Conciliatory Committee members shall give a declaration of independence and impartiality (in the format at Annexure- I) to both the parties before the commencement of the Conciliatory Committee proceedings.

3.8 Conciliator's Fee (As per SCOPE Forum for Conciliation `& Arbitration – SFCA):Each Conciliator's fee will be fixed with regard to the amount in dispute including determined interest in each case to be shared equally by the parties as under;

Up to ₹ 5 Lakhs	₹ 30,000/-
From ₹ 5 Lakhs one to ₹ 25 Lakhs	₹ 30,000/- + ₹ 2000/- per lakh or part thereof subject to a ceiling of ₹ 70,000/-
From ₹ 25 Lakhs one to ₹ 1 Crore	₹ 70,000/- + ₹ 2000/- per lakh or part thereof subject to a ceiling of ₹ 2,22,000/-
From ₹ 1 Crore one to ₹ 5 Crore	₹ 2,20,000/- + ₹30,000/- per Crore or part thereof subject to a ceiling of ₹ 3,40,000/-
From ₹ 5 Crore one to ₹ 10 Crore	₹ 3,40,000/- + ₹ 25,000/- per Crore or part thereof subject to a ceiling of ₹ 4,65,000/-
From ₹ 10 Crore one to ₹ 50 Crore	₹ 4,65,000/- + ₹ 20,000/- per Crore or part thereof subject to a ceiling of ₹ 12,65,000/-
Over ₹ 50 Crore	₹ 12,65,000/- + ₹ 10,000/- per Crore or part thereof subject to a ceiling of ₹ 25 lakh

In addition to the above, each Conciliator will be entitled to receive fee for study of the pleadings, case material, writing of the award etc. With regard to the amount in dispute in each case to be shared equally by the parties as under;

Up to Rs. 5 Lakhs	Rs.10,000/-
From Rs.5 Lakhs one to Rs. 25 Lakhs	Rs. 20,000/-
From Rs.25 Lakhs one to Rs. 1 Crore	Rs. 30,000/-
From Rs. 1 Crore one to Rs. 5 Crore	Rs. 40,000/-
From Rs. 5 Crore one to Rs. 10 Crore	Rs. 50,000/-
From Rs. 10 Crore one to Rs. 50 Crore	Rs. 60,000/-

Over Rs. 50 Crore	Rs. 70,000/-

Note 1: In the event where the dispute does not involve monetary claim or disputed amount has not been quantified / indicated Conciliator's fee will be consolidated Rs 1.00 Lakh inclusive of fee for study of the pleadings, case material and writing of the award etc.

Note 2: In the event where the dispute does not involve monetary claim or disputed amount has not been quantified / indicated, administrative fee will be Rs. 65,000/-

Note 3: In the event, the Conciliation Committee is of a sole Conciliator in place of three or more Conciliators, he shall be entitled to receive an additional amount of 25% on the fee payable as per the table set out above.

3.9 Upon acceptance of the invitation to conciliate, the respondent shall submit its counter claim, if any, within a period as specified by the Conciliatory Committee.

3.10 The parties may consider filing their claims and counterclaims with details as mentioned below. However more details may be requested during the Conciliation process by either party or by Conciliatory Committee which needs to be complied with promptly;

a) Chronology of the dispute
b) Brief of the contract
c) Brief history of the dispute
d) Issues
e) Details of Claim(s)/Counter Claim(s) supported by documents and other evidence deemed appropriate
f) Basis/Ground of claim(s)/counter claim(s) (along with relevant clause of contract
g) At any stage of the conciliation proceedings the conciliator or Conciliatory Committee may request a party to submit to him such additional information as he deems appropriate.

3.11 Conciliatory Committee will commence its meetings only after completion of the pleadings.

3.12 The parties shall be represented by their in-house employees/executives. Ex-officers of NMDC who have handled the dispute matter in any capacity are not allowed to attend and present the case before Conciliatory Committee on behalf of Consultant. However, ex-employees of parties may represent their respective organizations.

3.13 Solicitation or any attempt to bring influence of any kind on either Conciliatory Committee Members or NMDC is completely prohibited in conciliation proceedings and NMDC reserves the absolute right to close the conciliation proceedings at its sole discretion if it apprehends any kind of such attempt made by the Consultant or its representatives.

3.14 Conciliator or Conciliatory Committee as the case may be, shall do detailed analysis of claims based on the pleadings and contentions of the parties, and make a proposal for settlement to both the parties with possible terms of settlement. Both the parties shall submit their respective consent or objections to the Conciliator or the Conciliatory Committee within the time limit prescribed by the Conciliator or Conciliatory Committee. Considering the response of the parties, the Conciliator or Conciliatory Committee shall attempt to bring about Conciliation between the Parties. Thereafter, the Conciliator or Conciliatory Committee based on the outcome of such an attempt make its final report of Conciliation or failure as accepted by the parties and submit it to CMD, NMDC. Both parties may give effect to the Conciliation Report at the earliest.

3.15 Parties shall not claim any interest on claims/counterclaims from the date of notice invoking conciliation till execution of settlement agreement, if so arrived at. In case, parties are unable to reach a settlement, no interest shall be claimed by either party for the period from the date of notice invoking conciliation till the date of Conciliatory Committee recommendations and 30 days thereafter in any further proceeding.

3.16 Either party shall refer any dispute for Arbitration or judicial proceedings if the conciliation process has failed.

3.17 Confidentiality: The Conciliator or Conciliatory Committee and the parties must keep confidential of all matters relating to the conciliation proceedings. Confidentiality extends also to the settlement agreement, except where its disclosure is necessary for purposes of its implementation and enforcement.

4) ARBITRATION:

4.1 All disputes or differences which may arise between the Employer and Consultant in connection with this Contract (other than those in respect of which the decision of any person is expressed in the Contract to be final and binding) and Excepted Matters, shall, after written notice by either party ("claimant") within sixty (60) days of failure of conciliation to the other ("respondent") and to the Chairman cum managing Director of the NMDC Ltd. (who will be the appointing authority), be referred for adjudication to the sole or three (3) Arbitrator(s) to be appointed as hereinafter provided. The notice invoking arbitration shall specify all the points of disputes with details of the amount claimed to be referred to arbitration at the time of invocation of arbitration and not thereafter. If the claim is in foreign currency, the claimant shall indicate its value in Indian Rupee for the purpose of constitution of the arbitral tribunal.

4.2 A person of any nationality may be an arbitrator, unless otherwise agreed by the parties. Appointment of sole arbitrator or 3 arbitrators shall depend on the claim value as defined below;

Claim Amount (excluding Interest)	**Number of Arbitrator/s**
Claim Amount - up to 25% of contract value (Above claim amount shall be within the limits of Rs. 50 Lakhs and up to Rs. 5 crores)	Sole Arbitrator to be appointed
Claim Amount - up to 25% of contract value (above claim amount shall be within the limits of Rs. 5 crores and up to Rs. 100 crores)	3 Arbitrators to be appointed

Refer clause No. 4.8 for claim amount exceeds the above referred percentage of 25% of contract value or maximum value of total claim value of Rs.100 crores.

4.3 **Appointment of Sole Arbitrator**: The Appointing Authority will send within ninety days of receipt of the notice of arbitration a panel of three names of persons, not directly connected with the work, to the Consultant who will select any one of the persons named to be appointed as a sole Arbitrator and intimate its selection within 30 days of receipt of names. If the appointing authority fails to send to the Consultant the panel of three names, as aforesaid, within the period specified, the Consultant shall send to the appointing authority a panel of three names of persons who shall also be unconnected with the organization by which the work is executed. The appointing authority shall on receipt of the names as aforesaid select any one of the persons named and appoint him as the sole Arbitrator. If the appointing authority fails to select the person and appoint him as the sole Arbitrator within 30 days of receipt of the panel and inform the Consultant accordingly, the Consultant shall be entitled to invoke the provisions of the Indian Arbitration and Conciliation Act 1996 as amended from time to time.

4.4 Appointment of 3 Arbitrators: In case of 3 Arbitrators one arbitrator shall be selected by each party and notified the other party within a period of 30 days from the notice of invoking arbitration. The two individual selected arbitrators shall then select the 3rd Arbitrator, who shall be the presiding arbitrator, within additional period of 30 days. All the three Arbitrators selected as aforesaid shall be independent. If a party fails to appoint an arbitrator within thirty days from the receipt of a request to do so from the other party; or the appointed arbitrators fail to agree on the presiding arbitrator within thirty days from the date of their appointment, the appointment shall be made, upon request of a party.

4.5 The fees of Arbitrators will be guided by Schedule IV of Arbitration and Conciliation Act, 1996 and any amendment thereof or both the parties can negotiate on the Fees before the commencement of Arbitration proceedings.

4.6 The further progress of any work under the contract shall unless otherwise directed by the Employer / Engineer continue during the arbitration proceedings and no payment due or payable by/to the Employer shall be withheld on account of such proceedings. It shall not be open to arbitrator to consider and decide whether or not such work shall continue during the arbitration proceedings.

4.7 The arbitral tribunal shall give reasons for its award. Each party shall bear its own cost and the cost of arbitration shall be equally borne by each party. The award rendered in any arbitration hereunder shall be final and binding upon the parties. The parties agree that neither party shall have any right to commence or maintain any suit or legal proceeding concerning any dispute under this agreement until the dispute has been determined in accordance with the arbitration proceeding provided for herein and then only to enforce or facilitate the execution of an award rendered in such arbitration.

4.8 Notwithstanding anything above, the mechanism for settling the dispute through Arbitration may be considered in cases where the disputed amount or the amount of all claims put together does not exceed 25% of the contract value or maximum of disputed claim amount shall not exceed Rs.100 crores whichever is lower. In case the disputed amount exceeds the above referred percentage of 25% of contract value or maximum value of total claim value of Rs.100 crores, the parties shall be within their rights to take any other recourse / remedies that may be available to them under the applicable laws other than Arbitration also after providing prior intimation to the other party.

4.9 Parties agree that neither party shall be entitled for any pre-reference or pendente-lite interest, i.e. date of cause of action till the date of the Award by the Arbitral Tribunal. Parties agree that claim for any such interest shall not be considered and shall be void. The Arbitral Tribunal shall have no right to award pre-reference or pendente-lite interest in the matter.

4.10 The laws applicable to the Contract shall be the laws in force in India. The Courts of Hyderabad, Telangana State shall have exclusive jurisdiction in all matters arising under this Contract. The seat, place and venue of the arbitral proceedings shall be Hyderabad, Telangana State, India.

4.11 "In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial contract(s) between Central Public Sector Enterprises (CPSEs)/ Port Trusts inter se and also between CPSEs and Government Departments/Organizations (excluding disputes concerning Railways, Income Tax, Customs & Excise Departments), such dispute or difference shall be taken up by either party for resolution through AMRCD as mentioned in DPE OM No. 4(1)/2013-DPE(GM)/FTS-1835 dated 22-05-2018 or any additional notifications / guidelines thereof by Ministry of Heavy industries and Public Enterprises or Ministry of Steel.

4.12 Arbitration in respect of contracts, with foreign parties for value of more than Indian Rs. 50 lakhs and up to Indian Rs. 50 crores shall be governed by the Rules of Indian Council of Arbitration (ICA). Arbitration with foreign Consultant or in consortium contracts (including foreign Consultant), where the contract value is more than Indian Rs. 50 crores shall be governed by the Rules of Arbitration of International Chamber of Commerce (ICC), Paris. The seat, place and venue of the arbitral proceedings shall be Hyderabad, Telangana State, India.

4.13 Parties further agree that following matters shall not be referred to Conciliation and Arbitration;

a. Any claim, difference or dispute relating to, connected with or arising out of NMDC's decision to initiate any proceedings for suspension or banning, or decision to suspend or to ban business dealings with the Bidder/Consultant and /or with any other person involved or connected or dealing with bid/ contract/ bidder/ Consultant.

b. Any claim, difference or dispute relating to, connected with or arising out of NMDC's decision under the provisions of Integrity Pact executed between the NMDC and the Bidder/ Consultant.

The applicable interest on arbitral award i.e., from the date of award till the date of actual payment, shall be at the prevailing rate of interest on General Provident Fund.

58.0 FORCE MAJEURE

58.1 "Force Majeure" shall mean any event beyond the control of the Employer or of the Contractor, as the case may be, and which is unavoidable notwithstanding the reasonable care of the party affected, and shall include, without limitation, the following:

a) war, hostilities or warlike operations (whether a state of war be declared or not), invasion, act of foreign enemy and civil war.

b) rebellion, revolution, insurrection, mutiny, usurpation of civil or military government, conspiracy, riot, civil commotion and terrorist acts.

c) strike, sabotage, unlawful lockout, epidemics, quarantine and plague.

d) earthquake, fire, flood or cyclone, or other natural or physical disaster.

58.2 If either party is prevented, hindered or delayed from or in performing any of its obligations under the Contract by an event of Force Majeure, then it shall notify the other in writing of the occurrence of such event and the circumstances thereof within 14 days after the occurrence of such event.

58.3 The party who has given such notice shall be excused from the performance or punctual performance of its obligations under the Contract for so long as the relevant event of Force Majeure continues and to the extent that such party's performance is prevented, hindered or delayed, the time for Completion shall be extended in accordingly.

58.4 The party or parties affected by the event of Force Majeure shall use reasonable efforts to mitigate the effect thereof upon its or their performance of the Contract and to fulfil its or their obligations under the Contract, but without prejudice to either party's right to terminate the Contract.

58.5 Any delay or non-performance by either party hereto caused by the occurrence of any event of Force Majeure shall not

a) constitute a default or breach of the Contract

b) give rise to any claim for damages or additional cost or expense occasioned thereby

if and to the extent that such delay or non-performance is caused by the occurrence of an event of Force Majeure.

58.6 If the performance of the Contract is substantially prevented, hindered or delayed for a period of more than ninety (90) days on account of Force Majeure during the currency of the Contract, the parties will develop a mutually satisfactory solution.

59.0 <u>VOID</u>

60.0 <u>SUSPENSION</u>

60.1 The Employer may, by notice to the Contractor, order the Contractor to suspend performance of any or all of its obligations under the Contract. Such notice shall specify the obligation of which performance is to be suspended, the Effective Date of the suspension and the reasons therefore. The Contractor shall thereupon suspend performance of such obligation (except those obligations necessary for the care or preservation of the Facilities) until ordered in writing to resume such performance by the Engineer.

If, by virtue of a suspension order given by the Engineer, other than by reason of the Contractor's default or breach of the Contract, the Contractor's performance of any of its obligations is suspended for an aggregate period of more than ninety (90) days, then at any time thereafter and provided that at that time such performance is still suspended, the Contractor may give a notice to the Engineer requiring that the Employer shall, within thirty(30) days of receipt of the notice, order the resumption of such performance.

If the Employer fails to do so within such period, the Contractor may, by a further notice to the Engineer, elect to treat the suspension as termination of the Contract.

60.2 If the Contractor's performance of its obligations is suspended pursuant to this Clause hereof, then the Time for Completion shall be extended in accordance with provisions of the contract hereof, and any and all additional costs or expenses incurred by the Contractor as a result of such suspension shall be paid by the Employer to the Contractor in addition to Contract Price on mutually agreed basis unless such suspension is

a. due to Force Majeure conditions as provided for in the Contract, or

b. necessary for the proper execution of the work or by reason of weather condition or by some default on the part of the contractor or

c. necessary for the safety of the works or and part thereof.

Provided that the Contractor shall not be entitled to recover any such extra cost unless he gives notice in writing of his intention to claim to the Engineer within thirty (30) days of the Engineers order. The Engineer shall settle and determine the extra payment to be made to the contractor in respect of such claim as the Engineer shall consider fair and reasonable.

60.3 During the period of suspension, the Contractor shall not remove from Site any part of the Facilities or any Contractor's equipment, without the prior written consent of the Employer.

61.0 TERMINATION

61.1 **Termination for Employer's Convenience**

61.1.1 The Employer may at any time terminate the Contract for any reason by giving the Contractor a notice of termination that refers to this Sub-Clause of the Contract.

61.1.2 Upon receipt of the notice of termination, under this clause, the Contractor shall either immediately or upon the date specified in the notice of termination.

a) cease all further work, except for such work as the Employer may specify in the notice of termination for the sole purpose of protecting that part of the Facilities already executed, or any work required to leave the Site in a clean and safe condition

b) terminate all subcontracts, except those to be assigned to the Employer pursuant to paragraph (d) (ii) below

c) remove all Contractor's Equipment from the Site, repatriate the Contractor's and his Subcontractors' personnel from the Site, remove from the Site any wreckage, rubbish and debris of any kind, and leave the whole of the Site in a clean and safe condition

d) In addition, the Contractor, shall

(i) deliver to the Employer the parts of the Work executed by the Contractor up to the date of termination.

(ii) to the extent legally possible, assign to the Employer all rights, title and benefit of the Contractor to the Work as may be required by the Employer, in any subcontracts concluded between the Contractor and its Subcontractors.

(iii) deliver to the Employer all drawings, specifications and other documents prepared by the Contractor or his Subcontractors as at the date of termination in connection with the Facilities.

61.1.3 In the event of the termination of the Contract for Employer's convenience, the Employer shall pay to the Contractor the Price, the properly attributable to the parts of the Facilities executed by the Contractor as of the date of termination. However, no consequential damages shall be payable by the Employer to the Contractor in the event of termination.

61.2 **Termination for Contractor's Default**

61.2.1 The Employer, without prejudice to any other rights or remedies it may possess, may terminate the Contract forthwith in the following circumstances by giving a notice of termination and its reasons to the Contractor.

a) if the Contractor becomes bankrupt or insolvent, has a receiving order issued against it, compounds with his creditors, or, if the Contractor is a corporation, a resolution is passed or order is made for his winding up (other than a voluntary liquidation for the purposes of amalgamation or reconstruction), a receiver is appointed over any part of his undertaking or assets, or if the Contractor takes or suffers any other analogous action in consequence of debt.

b) if the Contractor assigns or transfers the Contract or any right or interest therein in violation of the provision of Contract.

61.2.2 If the Contractor

a) has abandoned or repudiated the Contract

b) has without valid reason failed to commence work on the Facilities promptly or has suspended the progress of Contract performance for more than twenty-eight (28) days after receiving a written instruction from the Employer to proceed

c) persistently fails to execute the Contract in accordance with the Contract or persistently neglects to carry out his obligations under the Contract without just cause.

d) refuses or is unable to provide sufficient materials, services or labour (adequate resources) to execute and complete the Facilities in the manner specified by EMPLOYER.

Then the Employer may, without prejudice to any other rights it may possess under the Contract, give a notice to the Contractor stating the nature of the default and requiring the Contractor to remedy the same. If the Contractor fails to remedy or to take steps to remedy the same within fourteen (14) days of its receipt of such notice, then the Employer may terminate the Contract forthwith by giving a notice of termination to the Contractor.

61.2.3 Upon receipt of the notice of termination the Contractor shall, either immediately or upon such date as is specified in the notice of termination,

a) cease all further work, except for such work as the Employer may specify in the notice of termination for the sole purpose of protecting that part of the Facilities already executed, or any work required to leave the Site in a clean & safe condition

b) terminate all subcontracts, except those to be assigned to the Employer pursuant to paragraph (d) below

c) deliver to the Employer the parts of the Facilities executed by the Contractor up to the date of termination

d) to the extent legally possible, assign to the Employer all rights, title and benefit of the Contractor to the Facilities as at the date of termination, and, as may be required by the Employer, in any subcontracts concluded between the Contractor and his Subcontractors.

e) deliver to the Employer all drawings, specifications and other documents prepared by the Contractor or his Subcontractors as at the date of termination in connection with the Facilities.

61.2.4 The Employer may enter upon the Site, expel the Contractor, and complete the Facilities himself or by employing any third party at the risk and cost of the Contractor. The Employer may, to the exclusion of any right of the Contractor over the same, take over and use any Contractor's

Equipment owned by the Contractor and on the Site in connection with the Facilities for such reasonable period as the Employer considers expedient for the supply and installation of the Work.

Upon completion of the Work or at such earlier date as the Employer considers appropriate, the Employer shall give notice to the Contractor that such Contractor's Equipment will be returned to the Contractor at or near the Site and shall return such Contractor's Equipment to the Contractor in accordance with such notice. The Contractor shall thereafter without delay and at his cost remove or arrange removal of the same from the Site.

61.2.5 Subject to other provisions of the Contract, the Contractor shall be entitled to be paid the Price attributable to the Part of Work executed as at the date of termination, and the costs, if any, incurred in protecting the Work and in leaving the Site in a clean and safe condition. Any sums due to the Employer from the Contractor accruing prior to the date of termination shall be deducted from the amount to be paid to the Contractor under this Contract.

61.2.6 If the Employer completes the Work the cost of completing the Work by the Employer shall be determined.

If the sum that the Contractor is entitled to be paid, the reasonable costs incurred by the Employer in completing the Work, exceeds the Contract Price, the Contractor shall be liable for such excess.

If such excess is greater than the sums due to the Contractor under, the Contractor shall pay the balance to the Employer, and if such excess is less than the sums due the Contractor the Employer shall pay the balance to the Contractor.

The Employer and the Contractor shall agree, in writing, on the computation described above and the manner in which any sums shall be paid.

61.2.7 In the event any of the Contractor or his sub-contractors, personnel, agents, sub-agents, assistants, or other employees shall be guilty of any misconduct or be incompetent or insufficiently qualified or negligence in the performance of their duties or it is undesirable

62.0 VOID

63.0 ASSIGNMENT

63.1 The contractor shall not assign his rights and obligations under the terms of this contract either in whole or part to any third party other than its legal successor without the written consent of the Employer.

However, all necessary information and documents shall be furnished by the Contractor in advance to the satisfaction of the Employer, in case the contractor assigns his any and / or all his rights and obligations as defined and declared in this contract to its legal successors. In the event of failure of the Contractor to discharge his responsibility under this clause, the Employer may at his discretion, without prejudice to his other rights under the contract, terminate the contract as per stipulations of this contract.

63.2 Should loan / financial agreement(s) require the Contractor to assign, by way of charge, any money due or to become due to it, to a bank / credit agency for the benefit of receiving payment by the Contractor under this Contract from such bank / credit agency, or if any partial assignment is necessary to be made to any insurer in terms of Insurance Policy approved by the Employer, the Employer may give consent in such cases.

64.0 SURPLUS MATERIALS

For the purpose of removing surplus materials in its original form only, the Contractor shall submit the documents / records evidencing the entry of materials inside the Steel Plant by producing the Gate Entry Permits and RRs or LRs and consumption statements based on approved drawings after allowing for wastages, maximum 8% cutting allowance, and irrecoverable / unaccountable losses (wastages including loss factors being minimum 2% on Steel and reinforcement rods, minimum 5% on cement and minimum 3% on cables, pipes etc.) to establish the surplus quantity of the materials belonging to the Contractor. The Employer shall allow the Contractor to remove such materials from the Employer's premises after being satisfied regarding the evidence produced for such removal. Such removal shall only be permitted after completion of the entire work.

Scrap in any form whatsoever shall not be removed from Plant premises and shall be the property of the Employer. No credit will be given for scrap.

65.0 APPROVAL/ REVIEW

65.1 Without prejudice to Employer's other rights and remedies stipulated under the Contract, the Contractor's following works shall be subject to approval by the Employer / Consultant.

a. The men, material and machinery proposed to be mobilised by the Contractor.
b. All changes from the agreed specifications/ drawings.
c. Design, type, quality, quantity, materials and workmanship of any or all items of supplies, work and services under Contractor's scope to ensure that supplies, work and services made/executed/ performed by the Contractor are in accordance with the provisions of this Contract.
d. Where approval of the Employer is necessary or implied but is not specifically provided for elsewhere in this Contract.

65.2 No certificate other than the Contract Completion Certificate hereof shall be deemed to constitute approval of any works other than matter in respect of which it is issued or shall be taken as admission of the due performance of the Contract or any part thereof, the accuracy of any claim or demand made by the Contractor or of additional or varied work having been ordered by the Employer nor shall any other certificate conclude or prejudice any of the powers of the Employer.

65.3 Notwithstanding with any approval or acceptance which the Employer may grant to the Contractor under the Contract, the Contractor shall be solely and wholly responsible and liable for the execution and performance in terms of the Contract and the Employer reserves the right to reject, any of works/material performed and/or supplied by the Contractor under the Contract.

65.4 Errors and Omissions

(i) Notwithstanding with any approval or acceptance which the Employer/Consultant may grant to Contractor, the Contractor shall be solely responsible for any discrepancies, errors or omissions in the specifications, drawings and other technical documents that it has prepared in terms of the Contract.

(ii) The Contractor shall, within the Contract Price, take all corrective measures arising out of discrepancies, errors and omissions in drawings and other documents/information within the specified time schedule.

(iii) The Contractor shall also be responsible for any delay and/or extra cost, if any, in carrying out engineering and site works by other agencies arising out of discrepancies, errors and omissions stated above as well as of any late revision/s of drawings and information submitted by the Contractor.

65.5 Standards and Codes

a. The Contractor shall execute the work in compliance with the provisions of the Contract and Contract Technical Specification and/or design drawings furnished by the Employer in terms of the Contract and as per codes and standards specified therein. Wherever such references are made to codes and standards in accordance with which the Contract is to be executed, the latest edition or the revised version of such codes and standards current at the date of execution of work shall apply unless otherwise specified. Where no specification or code or standard is specified, work is to be executed in accordance with latest appropriate Indian Standards and Codes. During Contract execution, any changes in such codes and standards shall be applied after approval by the Engineer / Consultant.

b. Unless specifically mentioned otherwise elsewhere, the above stipulations shall govern the design, the workmanship, the quality/properties of the materials, the method of field and laboratory testing, the method of measurement for different items of Works etc.

66.0 <u>TESTING</u>

All Raw Materials e.g. Bricks, Coarse Aggregates, 0Fine Aggregates, Concrete cubes etc have to be Tested and test result submitted to EMPLOYER before use. Tests for equipment and material shall be conducted to the satisfaction of the EMPLOYER as per standard testing procedures of relevant disciplines/codes. Frequency and necessity of the Tests will be guided by B.I.S. and cost to be borne by Contractor.

Structural Load Test: The Contractor shall carry out structural load test on any part of the building / structure at his own cost if such structural load test is warranted due to unsatisfactory test results of concrete cubes and if so directed by the Employer.

However, the tests, if required will be as specified in Contract Technical specification / GTS.

67.0 <u>VOID</u>

68.0 <u>LIQUIDATED DAMAGES: As per Article 8 of FoCA</u>

69.0 <u>COMPLETION CERTIFICATE</u>

69.1 Within fifteen (15) days of the completion of the Works and fulfilment of Contractor's all obligations (except as stipulated under "Defect Liability Period"), the Contractor shall give notice of completion of contract to the Employer.

Upon receipt of such notice of completion of Works the Employer shall carry out all such inspections/checks/tests that are necessary to satisfy him,

(i) that the executed 'Works' is in conformity with the Contract Technical Specifications, design / drawings / sketches / BOQ and modification(s) issued thereof, if any and as per written instructions issued to the Contractor from time to time during execution of works, and

(ii) that all the materials used and/or incorporated in the Works meets the stipulated quality requirements and are in accordance with the Contract and / or the documents referred to therein, and

(iii) that the Contractor has fulfilled all his obligations under the Contract, except obligations stipulated under "Defect Liability Period", in respect of such notified completed works.

69.2 Without prejudice to Employer's other rights under the Contract, Completion Certificate in respect of Works under the Contract shall be issued by the Employer, if satisfied about his completion in terms of the Contract,

69.3 At the option of the Employer, a certificate with respect to any part of Works may be issued if that part of the Works is taken in possession or used by the Employer in accordance with provisions of the Contract prior to completion of whole Works. When such certificate is issued, such part of Works shall be considered as completed and Defect Liability Period for such part shall commence from the date of Completion mentioned in such Completion Certificate, provided that issue of such a certificate shall not be deemed to certify completion of any work or part thereof which requires repair / replacement.

In such event as stipulated herein above, subject to deductions which the Employer is entitled to make from the Contractor's payment(s), Completion Certificate linked payment(s) for the part of the Works so taken in possession or used by the Employer may be released, upon written request of the Contractor.

69.4 No completion certificate shall be issued nor shall the work be considered to be complete until the Contractor has cleaned/cleared the site as per provisions of the Contract in respect of such completed Works or part thereof.

69.5 All guarantees and test certificates obtained by the Contractor and his sub-contractors from the manufacturers or specialist agencies in respect of materials used and works executed during execution of works such as for anti-termite treatment, water proofing, acid resisting materials etc. for the entire works shall be handed over and transferred to the Employer by the Contractor prior to issuance of completion certificate by the Employer.

70.0 REJECTION

70.1 Notwithstanding with any approval/acceptance which the Employer may grant to the Contractor, in respect of any of Contractor's works or any part thereof including materials under the scope or any other services for its quality & quality adequacy and workmanship which the Contractor has discharged or provided in terms of the Contract, the Contractor shall not be relieved in any way of any of his contractual obligations and/or responsibilities to execute and complete the works in conformance to the Contract.

70.2 If the Contract work or any portion thereof, before it is accepted or taken over by the Employer, is found to be defective or not being in conformity with Contract/technical specifications or fails to fulfil the requirements of the Contract, the Employer shall give the Contractor notice setting forth particulars of such defects or failure and the Contractor shall forthwith make good the defects or alter the same to make it comply with the requirements of the Contract. Should he fail to do so within a reasonable time, the Employer may reject and replace at the risk and cost of the Contractor, the whole or any portion of the work as the case may be, which is defective or not in conformity with Contract / technical specifications or fails to fulfil the requirements of the Contract. However, such rejection/ replacement by the Employer shall not absolve the Contractor of his responsibilities under this Contract.

70.3 If the erected, supplied Equipment, materials or completed work/ facilities fail to meet the specified Tests standards or are found to be defective or otherwise fail to fulfil the terms of the Contract, the Employer shall give written notice to the Contractor setting forth the particulars of such defects or failures. The Contractor shall immediately rectify/repair such defects/failures or after the rejected Items to bring them into compliance with the Contractual terms and specification.

70.4 Should the Contractor fail to do so within the time stipulated by the Employer, the Employer may reject the same and place order at the Contractor's sole risk, cost and responsibility the whole or any portion of the erected / supplied plant, equipment, materials and completed works.

70.5 The Contractor's liability under this clause shall be satisfied by repayment to the Employer of all moneys previously paid by the Employer to the Contractor and also by paying to the Employer the ascertained difference, if any, between the replacement Cost of the rectified Items (including the Cost of dismantling and removal of the rejected Items and the erection and commissioning of the replacement Items) and the Contract Price of the rejected Items.

70.6 In the event of such rejection the Employer shall be entitled to use the rejected Items in a reasonable and proper manner for a time reasonably sufficient to enable the Employer to obtain the replacement Items. Thereafter, the Contractor shall at his own expense immediately remove the rejected Items from the Employer's premises after making necessary payments to the Employer as stipulated above.

70.7 Removal of Improper work and materials

The Engineer shall during the progress of the work have power to order in writing from time to time.

(a) The removal from the site within such time or times as may be specified in the order, of any materials which in the opinion of the Engineer are not in accordance with the Contract.

(b) The substitution of proper and suitable materials and,

(c) The removal and proper re-execution (notwithstanding any previous test thereof or interim payment therefore) or any work which in respect of materials or workmanship is not in the opinion of the Engineer in accordance with the Contract.

70.8 The Contractor shall furnish all the test certificates/results in respect of materials and Works conducted in accordance with provisions of the Contract for the necessary approval of the Employer and or its authorised representative.

70.9 Notwithstanding with any approval or acceptance which the Employer may grant to the Contractor in respect of any of his and/or his sub-contractor's materials / works executed, the Contractor shall not be absolved of any of his contractual obligations and responsibilities under the Contract and the Employer reserves the right to reject any of the material/works as stipulated under the Contract.

70.10 The Contractor shall not be entitled to any extension of time or extra cost for fulfilling his obligations stipulated herein above.

71.0 PROTECTION WORK / DIVERSION WORKS

71.1 The Contractor shall be responsible for relocation and realigning of the facilities which are a part of the existing installations but which come in the way of the proposed construction even if the same are not mentioned in the specification at his own Cost. Prior permission in writing shall be taken from the Employer before actually starting such work. Time period for such work shall be assessed properly & to be discussed with the Employer before commencement to ensure that operation of other units is not adversely affected.

71.2 The Contractor shall carry out the work in such a way that it does not affect the operation and maintenance of the existing facilities at site as far as possible.

71.3 Necessary arrangements to safeguard the existing man, materials, Equipment, structures and to enable operation of the existing Equipment during construction shall be the responsibilities of the Contractor.

71.4 During erection work, the Contractor at his own Cost shall replace any damage or loss to the existing plant and Equipment due to negligence/unsuitable treatment and handling in a reasonable time to be specified by the Employer.

71.5 The Contractor shall take all precautions during execution, especially excavation, to avoid interference with or damage to underground work, such as cables, drains, etc. whether shown/mentioned in the drawings and documents or not. He shall provide all possible protection to these works and in case they are damaged, rebuild at his own Cost.

71.6 It is the responsibility of the Contractor to make detail studies before preparing the protection, stabilization of the existing structures/process lines etc.

72.0 HOUSE KEEPING

Contractor shall be responsible for regular removal and cleaning of spillages/fallouts etc., if any, from the roads, operational areas etc. within his battery limits consequent to and arising out of contract Work and maintain ground level, slopes, drainages etc. in and around the dumps and operational areas throughout the operation Period of the Contract by removing and disposing spillages/accumulation as may be necessary and/or directed by the Employer at their Own Cost & arrangement, to dumping sites for refuse etc. Contractor will have to make and maintain new approach roads etc. as may be deemed necessary for proper execution of the Work at their Own Cost but with permission of/intimation to the executing deptt. Employer shall supply no earth moving facility like dozer etc. for this purpose and contractor will have to arrange for the same at their own Cost.

73.0 HANDING OVER SITE

On completion of the work, all rubbish, debris, temporary supports, enabling structures etc. shall be removed from the site and the site (Including the storage site) shall be handed over to the Employer in a tidy manner. All usable bricks will be stacked and removed to a place as shown by the Engineer. Brick bats will also be stored at a place near the pits. All scrap, slag rubbish & muck etc. shall be dumped suitably at a specified place by truck to a dumping yard as directed by the Employer. The successful Tenderer should clean-up the site within a reasonable period of completion of Erection.

The earth and other materials obtained in Railway Land premises are to be deposited back by the contractor as per direction of Railways accordingly.

74.0 MATERIALS OBTAINED FROM EXCAVATION/DISMANTLING

If the Contractor in the course of execution of the Works is called upon to dismantle any part, the materials obtained in the work of dismantling etc. will be considered as the Employer's property and shall be handed over to the Employer or disposed off by the Contractor in accordance with instructions of the Employer. All incidental charges in respect of disposal of such materials as per above shall be deemed to have been included in the Total Contract Price. The Contractor shall be required to dispose the materials obtained from dismantling within 10 KM.

75.0 SUB CONTRACTING

75.1 The Contractor shall not sub-contract the Contract Work in whole or part thereof to third parties for the performance of this Contract without written consent of the Employer / Consultant.

75.2 Selection of any sub-contractor/sub-supplier by the Contractor, in respect of discharge of his contractual responsibilities and obligations shall be subject to prior approval of the Employer. However the Contractor shall alone be responsible and liable for discharge of his obligations and responsibilities including that of his sub-contractor(s) and sub-supplier(s) in terms of the Contract. The Contractor shall remain solely liable for any action, deficiency, and/or negligence on the part of his sub-contractors, his agent, and his workmen as fully as if they were the acts, defaults or neglects of the Contractor.

75.3 The Contractor and/or his sub-contractor/sub-suppliers shall be under contractual obligations to submit any such information/document including but not limited to inspection / Test reports of materials to be incorporated and / or incorporated in the works, to the Employer for his approval/review/perusal, which the Employer may consider it deemed necessary in respect of discharge of contractual obligations/responsibilities by the Contractor and/or his sub-contractor/sub-supplier.

75.4 The Contractor shall submit un-priced copies of purchase orders / work orders with technical specifications included in all orders placed on sub-contractors, if requested by the Employer.

75.5 In the event certain obligations extended by a sub-contractor to the Contractor should extend beyond the guarantee period specified in the Contract, the Employer shall automatically be entitled to the benefit thereof.

75.6 In no event shall the Employer be deemed to have any contractual obligations whatsoever in respect of Contractor's/ sub-contractors and/or title-holders of any sub-orders placed by him.

76.0 MISUSE OF THE WORKS

The Contractor shall ensure that the works or any portion of the work completed or partially completed are not misused by him or his sub-contractors or their employees, workmen, agents, servants etc. leading to deterioration / temporary deterioration of the work.

The Contractor may however be permitted by the Employer to use the work or a portion of the work completed or partially completed for such purposes as may be approved by the Employer.

77.0 <u>GENERAL</u>

77.1 Contractor shall establish all reference survey pillars required for the job and shall maintain the same till the Completion of the entire job.

77.2 Contractor staff and Workers shall be authorised by the Employer to enter premises as required through specified gates only for their Work in connection with Contract. Necessary passes as required will be issued to the bona fide staff and Workers on Completion of formalities as per the Rules of the Employer in force. Particulars of the employees shall have to be furnished in advance to the Employer as directed. The Cost of necessary formalities to be done and photograph etc. required for issue of gate passes shall be Contractor's responsibility at Contractor's Own Cost.

77.3 The Construction machinery/Equipment etc. and other vehicles belonging to and used for the execution of the Contract or for other purposes shall have to follow routes inside Works and Entry/Exit through Works Gates etc. as per rules in force at various locations/projects. Authorization for such plying and/or Gate Passes as may be necessary shall be arranged for by Executing Deptt., in collaboration with other concerned Departments of the Employer.

77.4 In bringing the materials belonging to Contractor for such construction all gate pass formalities as required must be followed so that clear ownership can the established by Contractor if and when taking out the salvaged materials after final site Clearance, dismantling of such structures etc. Failure to establish clear ownership status may lead to withholding of permission to take out the salvaged materials and their forfeiture by Employer. Contractor shall have to dismantle, at Contractor Own Cost, such site office, stores etc. constructed by Contractor, on expiry of the Contract and/or as may be directed by Employer for any other reason. In case of failure to comply, the Employer reserves the right to get the dismantling done by his agencies and realize the Cost from Contractor's dues.

77.5 Contractor shall have to deploy at their Own Cost, competent licensed Workmen (as may be required under relevant Rules/Act) to undertake installation and maintenance of power lines etc. as per stipulations indicated earlier.

77.6 Workers of all categories brought in by Contractor from Contractor's permanent establishment or outside for specialized jobs have to be taken back by Contractor on Completion of the job and on Termination of Contract and no responsibility whatsoever, will be borne by Management of the Employer in respect of any of the Workers.

77.7 **Nuisance**: The CONTRACTOR shall not at any time do, cause or permit any nuisance on Site or do anything which shall cause unnecessary disturbance or inconvenience to owners, tenants or occupiers of other properties near the Site and to the public in general.

77.8 **Treasure Trove, Fossils etc**: All fossils, coins, articles of value or antiquity and structures and other remains of things of geological or archaeological interest discovered on the Site shall be the absolute property of the OWNER and the CONTRCTOR shall take reasonable precautions to prevent his workmen or any other person from removing or damaging any such article or thing thereon and shall immediately upon discovery thereof and before their removal, acquaint the OWNER with such discovery and carry out the OWNER's directions as to the disposal of the same at the expense of the OWNER.

77.9 **Protection of Trees**: The CONTRACTOR shall protect all trees, designated by the ENGINEER, from damage during the course of the Works and earth level within 1 meter of each such tree shall not be changed. Where necessary, such trees shall be protected by providing temporary fencing.

77.10 **Lights, Guards, Fencing and Watching**: For the site allotted to him, the CONTRACTOR shall provide and maintain at his own expense all lights, guards, fencing and watch and ward when and where necessary or required by the ENGINEER for the protection of the Works or for the safety and convenience of those employed on the Works or of the public.

77.11 **Observance of Official Secret Act:** The CONTRACTOR shall take necessary steps to ensure that all persons employed on any work in connection with this Contract have noticed that the Indian Official Secrets Act 1923 (XIX of 1923) are applicable to them and shall continue to apply even after the execution of such works under the Contract.

77.12 **Notice to Local Bodies and payment of fees: The** CONTRACTOR shall give all notices and pay all fees or charges payable under any Act of Parliament, State laws or any Government instrument, rule or order and any regulations or bye-laws of any local authority in respect of the works.

77.13 **Urgent works:** If any urgent work (in respect whereof the decision of the ENGINEER shall be final and binding) becomes necessary and the CONTRACTOR is unable or unwilling to carry it out at once, the Engineer-in-Charge may by his own or by other work people, carry it out as he may consider necessary. If the Urgent work shall be such as the CONTRACTOR is liable under the Contract to carry it out at his expenses, all expenses incurred on it by the OWNER shall be recoverable from the CONTRACTOR and be adjusted or set off against any sum payable to him.

78.0 **GUIDELINES FOR SETTLEMENT OF CLAIMS FOR COMPENSATION ON ACCIDENTS:** *Not applicable for this tender*

TENDER DOCUMENT

FOR

Design, Development, Hosting, Commissioning, Testing & Go- Live etc. of Contract Labour Management System (CLMS) at NMDC

VOLUME – II

SCOPE OF WORK & TECHNICAL SPECIFICATIONS

NMDC LIMITED
(A GOVERNMENT OF INDIA ENTERPRISE)
10-3-311/A, Khanij Bhavan, Masab Tank,
Hyderabad – 500028, Telangana.

Design, Development, Hosting, Commissioning, Testing & Go-Live etc. of Contract Labour Management System (CLMS) at NMDC

SCOPE OF WORK AND TECHNICAL SPECIFICATION

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1 INTRODUCTION

NMDC was incorporated in the year 1958 as a Government of India fully owned Public Sector Enterprise. It is under the administrative control of the Ministry of Steel, Government of India.

Since inception, Company is involved in the exploration of wide range of minerals including Iron ore, Copper, Rock Phosphate, Limestone, Dolomite, Gypsum, Bentonite, Magnesite, Diamond, Tin, Tungsten, Graphite, Beach Sands etc.

Company is India's single largest Iron Ore producer, presently producing about 45 million tonnes of Iron Ore from 3 fully mechanized complex viz., BIOM- Kirandul Complex, BIOM- Bacheli Complex in Chhattisgarh State and KIOM & DIOM - Donimalai in Karnataka State. R&D Centre is in Hyderabad, which has been declared as the "Centre of Excellence" in the field of mineral processing by the Expert Group of UNIDO.

Company is presently producing about 34 million tonnes of Iron Ore from its Bailadila sector mines and has capacity to produce 14 million tonnes from Donimalai sector mines.

Company has made valuable and substantial contribution to the National efforts in the mineral sector during the last five decades and has been accorded the status of Schedule-A Public Sector Company. In recognition to the company's growing status and consistent excellent performance, the company has been categorized by the Department of Public Enterprises as "NAVRATNA" Public Sector Enterprise in 2008. The company has plan to increase Iron Ore production capacity to 100 MTPA by 2030.

Further, NMDC is planning to open new mines in the country and also abroad either independently or through Joint Venture. NMDC Limited is also expanding its activities towards steel making and other value-added products.

The Bailadila range of hills situated in the district of South Buster Dantewada has large iron ore reserves spread across 14 Deposits. NMDC Limited has been operating in this range for about 65 years by setting up mechanized open cast Iron ore mines along with the iron ore crushing, screening & loading plants.

Kirandul Complex:

BIOM Kirandul Complex is situated in Dantewada district of Chhattisgarh state. It is well connected by road to capital city Raipur which is 430 km away (approx.). It is also connected to port city of Vizag through rail route and distance is 475 km (approx.). It has 3 operating Deposits:

i. Deposit 14
ii. Deposit 11C
iii. Deposit 11B

Bacheli Complex:

BIOM Bacheli complex is situated in Dantewada district of Chhattisgarh state. It is well connected by road to capital city Raipur which is 420 km away (approx.). It is also connected to port city of Vizag through rail route and distance is 470 km (approx.). It has 2 operating Deposits.

i. Deposit 5

ii. Deposit 10 &11A

Donimalai Complex:

Donimalai complex is situated in Bellary district in the state of Karnataka, India. It is well connected by road and Donimalai is situated at a distance of 55 km from the Bellary Railway Station by road.

i. Donimalai Iron Ore Mine
ii. Kumaraswamy Iron Ore Mine
iii. Pellet Plant

Digital Transformation Roadmap of NMDC Ltd.:

NMDC has planned digital interventions in phases to automate and integrate operations, aiming to create intelligent mines. The company plans to develop and implement comprehensive digital solutions to capture and seamlessly integrate all activities, ensuring cohesion across existing systems. This underscores NMDC's commitment to robust digital transformation, aiming to set new mining sector standards and enhance operational efficiency, productivity, and safety.

2 PROJECT OBJECTIVES

The primary objective of the project is to supply, design, development, configuration/ customization, installation, commissioning & testing, debugging, integration, data porting, cloud hosting, go-live, stabilisation and performance testing of Contract Labour Management System (CLMS) in the NMDC mining area. The system will be ensuring compliance with statutory regulations, improve workforce efficiency, streamline contractor operations, and enhance safety measures for contract workers. The system will be designed to provide end-to-end automation, transparency, and accountability in real-time managing contract labour.

1. **Ensuring Compliance**: Adhering to all statutory and regulatory requirements related to contract labour, including the Contract Labour (Regulation and Abolition) Act, 1970.
2. **Welfare and Safety**: Ensuring the welfare, health, and safety of contract workers by providing necessary facilities and maintaining a safe working environment.
3. **Efficient Management**: Streamlining the process of hiring, managing, and monitoring contract labour to improve efficiency and productivity.
4. **Transparency**: Maintaining transparency in the engagement and management of contract labour through proper documentation and adherence to ethical practices.
5. **Skill Development**: Providing training and skill development opportunities to contract workers to enhance their capabilities and productivity.
6. **Conflict Resolution**: Establishing mechanisms for addressing grievances and resolving conflicts between contract workers and management.
7. **Integration**: Integration with existing and upcoming Biometric Attendance Management System and ERP.
8. **Hosting**: Cloud hosting of CLMS application for 2 years.

3 SCOPE OF WORK

The successful bidder shall ensure the successful implementation of the proposed Contract Labour Management System (CLMS) across the NMDC sites (i.e., HO, Hyderabad, R&D, Kirandul Complex, Bacheli Complex, Donimalai Complex, Panna Complex etc.) and to provide capacity building support to NMDC as per the scope of work described below. Any functionality not expressly stated in this document but required to meet the needs of the NMDC to ensure successful implementation of the system shall essentially be under the scope of successful bidder and for that no extra charges shall be admissible to NMDC. Any requirement beyond the outlined scope of work will be considered after approval of Change Request from NMDC on mutual consent. Successful bidder shall implement and deliver the systems and components which are described in this tender document. Successful bidder's scope of work shall include but not limited to the following broad areas.

3.1 Software Solution

The service provider shall provide a comprehensive Contract Labour Management Software Solution. The software solution shall be provided on perpetual licence basis on cloud. NMDC will prefer to enter into contract with a service provider who would be a single point contact in implementation of the Contract Labour Management Software as well as future support & maintenance.

The Contract Labour Management Software shall have all features and capabilities as defined in this scope of work document and shall be hosted on a cloud based secured server provided by service provider for a duration of 2 years from the date of Final Acceptance Certificate (FAC). The service provider shall be required to adhere to all guidelines shared by NMDC for hosting the application on Cloud server.

3.2 Features of Contract Labour Management System (CLMS):

User Profile & Database Creation

The deployed software / platform should provide multiple user access and modules for different category of user levels with level-based access controls. Different user modules & levels shall include:

a) NMDC Module:
    i. Personal Department Administrator (HQ/Sites) (Provided below)
    ii. Location Administrator (Provided below)

b) Contractor Module (Provided below)
The service provider shall configure the data access controls, available features, dashboard view for each of the above user module and levels as per the requirement of the NMDC.

Note: User here refer to the number of people who will be provided with individual Login ID & Passwords for actively logging in and using the software. However, it is to be noted that the software shall be used to store data for minimum 10,000 contract labour (the contract labour will not be issued Login ID & Passwords). While quoting rate towards software, the bidder should make note of this.

c) The service provider shall do registration of Users and share relevant User ID & Passwords. Each registered user should be mapped to one of the specified user categories as detailed in point i. Once registered, the platform should enable users to login with their username & password.

d) The service provider shall create / assist in creating the following databases as per details provided by NMDC:

i. Service provider shall create the Master NMDC Database with details of employees as provided by the NMDC. This Master Database shall be used to configure approval workflows at various points of the contract management lifecycle as defined in this document.

ii. **Master Location Database:** The location administrator shall be required to create, update and maintain the details of his location. The following data fields for each location shall be maintained:

- ✓ Location Name and Address
- ✓ Location Code (Unique Code for each location)
- ✓ Type of Location (HO/ Site / Plant etc.)
- ✓ Location State
- ✓ Principal Employer
- ✓ Labour Identification Number (LIN) Number
- ✓ Contract Labour Registration No.
- ✓ Labour Authority details
- ✓ Maximum Approved Contract Manpower Nos.
- ✓ Applicable Rate of Wages (Category wise wage rate for Highly Skilled, Skilled, Semi-Skilled & Unskilled applicable to the location)
- ✓ Created By (mapped to the Master NMDC Database)
- ✓ Approver ID (mapped to the Master NMDC Database)

The list is only indicative and not exhaustive. The software / platform should allow for customization (addition / deletion) of data fields based on the requirement of the NMDC. The software / platform shall also allow for upload of relevant supporting documents against data fields as per the requirement of the NMDC.

The Software / Platform shall trigger an approval workflow for the maximum approved contract manpower number to the Approver ID. Approval workflow shall be triggered for any change in the maximum approved manpower numbers. Automatic email to the associated approver ID should be sent by the Software / Platform on trigger of any approval workflow.

iii. **Master Contractor Database:** The service provider shall create user login access for contractor / vendor as per the details shared by the NMDC. The service provider shall a contractor master with the following details:

- ✓ Firm/Company Name & Registered Address
- ✓ Owner / Proprietor Name
- ✓ Vendor Number
- ✓ Email ID

- ✓ Contact Number

The NMDC shall have the authority to activate / deactivate the user access for contractors based on their requirement from time to time.

e) **Contractor Registration & Master Database** – On being provided user access, the software / platform shall enable the Contractor to login and register himself. The following data fields for each contractor / vendor / service provider shall be created, updated & maintained by the contractor:

- ✓ Vendor Number
- ✓ Name and Contact Details of Supervisor
- ✓ License No. and Copy of License
- ✓ ESI Registration Number
- ✓ PF Registration Code
- ✓ Labour Welfare Fund Code Number (if applicable)
- ✓ PAN Number
- ✓ LIN Number
- ✓ Bank Account Details
- ✓ Work Order No.
- ✓ Date of Commencement of Contract
- ✓ Date of Completion of Contract
- ✓ Location of Engagement (linked to Location Code)
- ✓ Activity / Sub Activity (Contract For)
- ✓ Approved Manpower Cap / Norms
- ✓ Approver ID

The fields will be configured to be auto filled (based on various master database or to be filled manually by the contractor) / manually filled. The list is only indicative and not exhaustive. The software / platform should allow for customization (addition / deletion) of data fields based on the requirement of the NMDC. The software / platform shall also allow for upload of relevant supporting documents against data fields as per the requirement of the NMDC.

Single contractor / vendor may have multiple work orders at multiple work sites of the NMDC. The Software / Platform shall allow the contractor to view all active work orders for NMDC through a single login.

f) On Registration of the contractor/vendor, the software / platform shall trigger an automated approval workflow to the Approver ID associated with the work order. Automatic email to the associated approver ID should be sent by the Software / Platform on trigger of any approval workflow. The approving authority should verify the details provided and enter the following details:

- ✓ Maximum permissible manpower numbers against the work order.

- ✓ The applicable wage rate for different category of manpower (Highly Skilled, Skilled, Semi-Skilled, Unskilled) shall be picked up from the Master Location Database.

g) **Contract Labour Database:** The software / platform shall notify the contractor of the approved work order and allow him to create, update and maintain the details of contract labour being deployed under the contract at the NMDC's site of work. The following data fields are to be maintained for each contract labour:

- ✓ First Name / Middle Name / Last Name
- ✓ Aadhar Number / PAN Number
- ✓ Unique ID (Linked to Aadhar /PAN Number)
- ✓ Date of Birth
- ✓ Gender
- ✓ Permanent & Current Address
- ✓ Skill Category (Supervisor / Manager, Skilled, Semi – Skilled, Unskilled)
- ✓ Applicable Daily Rate of Wage
- ✓ Engaged At – (Linked to Location Code)
- ✓ Contractor Name & Vendor Code
- ✓ Contract Agreement Number / Work Order Number
- ✓ Job Role / Activity Performed
- ✓ Bank Account Detail
- ✓ ESI Number / Insurance Policy Number
- ✓ UAN Number / PF account Number
- ✓ Dependent / Nominee Details
- ✓ Police Verification Certificate Number
- ✓ Medical Fitness Certificate Number
- ✓ Date of Safety Training
- ✓ Date of Engagement under the current contract
- ✓ Date of Termination under the current contract

The list is only indicative and not exhaustive. The software / platform should allow for customization (addition / deletion) of data fields based on the requirement of the NMDC. The software / platform shall also allow for upload of relevant supporting documents against data fields as per the requirement of the NMDC.

h) **Reward Point Management System (RPMS) Module:** The service provider should analyse the existing Reward Point Management System (RPMS) for contract labour. Currently, the reward point system is a standalone system operated by NMDC. Through this system, NMDC provides reward points to contract labour, generates QR code-based reward point slips, and distributes them to the contract labour. These physical reward point slips can be redeemed or encashed at the NMDC cooperative store. The Reward Point Management System (RPMS) should be designed, develop and included in the proposed CLMS software as a module and provide login access to cooperative store officials. The entire process of the reward point management system should be automated within the CLMS.

Details of existing Reward Point Management System (RPMS) for reference only:
The following modules are available in current system.

i. Administrative Module
ii. IR Manager Module
iii. Engineer-In-Charge (EIC)Module
iv. Store Cashier Module
v. Store Manager Module
vi. Finance Manager Module
vii. Reporting Module

i. Administrative Module - should allow administrators to

- ✓ Create users/roles/departments/stores
- ✓ View users/roles/departments/stores
- ✓ Delete users/roles/departments/stores
- ✓ Add/Update Application settings
- ✓ provide role based access
- ✓ Add/View list of contract labor
- ✓ Add/View contractor details
- ✓ Add/View work order details
- ✓ Enable/Disable rewards points entry of departments
- ✓ Add /Update Notifications
- ✓ Generate different reports like Contract labor report,Reward Points report, Claims Transaction History Report etc

ii. Engineer Incharge Module - should allow Engineer Incharge Officers to

- ✓ View list of contract labor
- ✓ View contractor details
- ✓ View work order details
- ✓ Assign reward points to the contract labor employees basedon their attendance
- ✓ Download labor coupon copy and department copy
- ✓ Can do corrections of labor man days and labor work orderfor partially saved records
- ✓ View Attendance of labor by labor wise and by work orderwise
- ✓ View Notifications sent by Admin
- ✓ Send /Receive messages to/from other RPMS users
- ✓ Generate different reports like Contract labor report,Reward Points report, Claims Transaction History Report, Monthly labor report etc.

iii. Store Cashier Detail's module should allow to

- ✓ View dashboard of corresponding cashier for various details
- ✓ View details of a customer and reward usage history onclick on customer name/id
- ✓ Search contract labor on different fields
- ✓ Check the Reward point's status

- ✓ Before redeeming of coupons, check if the labor is a validor invalid
- ✓ Claim reward points of contract labor employees
- ✓ View Notifications sent by Admin
- ✓ Send /Receive messages to/from other RPMS users
- ✓ Generate day wise summary, Month wise summary and detailedreports

iv. Store Manager Detail's module should allow to

- ✓ View dashboard of corresponding cashier for various details
- ✓ View the list of contract labor
- ✓ View details of a customer and reward usage history onclick on customer name/id
- ✓ Search contract labor on different fields
- ✓ Check the Reward point's status
- ✓ Generate Month end report and submit to finance departmentalong with their bills
- ✓ Request reimbursement/View reimbursement status
- ✓ View Notifications sent by Admin
- ✓ Send /Receive messages to/from other RPMS users

v. Finance Manager Module should allow to

- ✓ View the list of contract labor details
- ✓ View details of contract labor reward points
- ✓ View Notifications sent by Admin
- ✓ Send /Receive messages to/from other RPMS users
- ✓ Generate Month end report to pay the bills to cooperative store by cross verifying with their transaction history report

vi. IR Manager Module should allow to

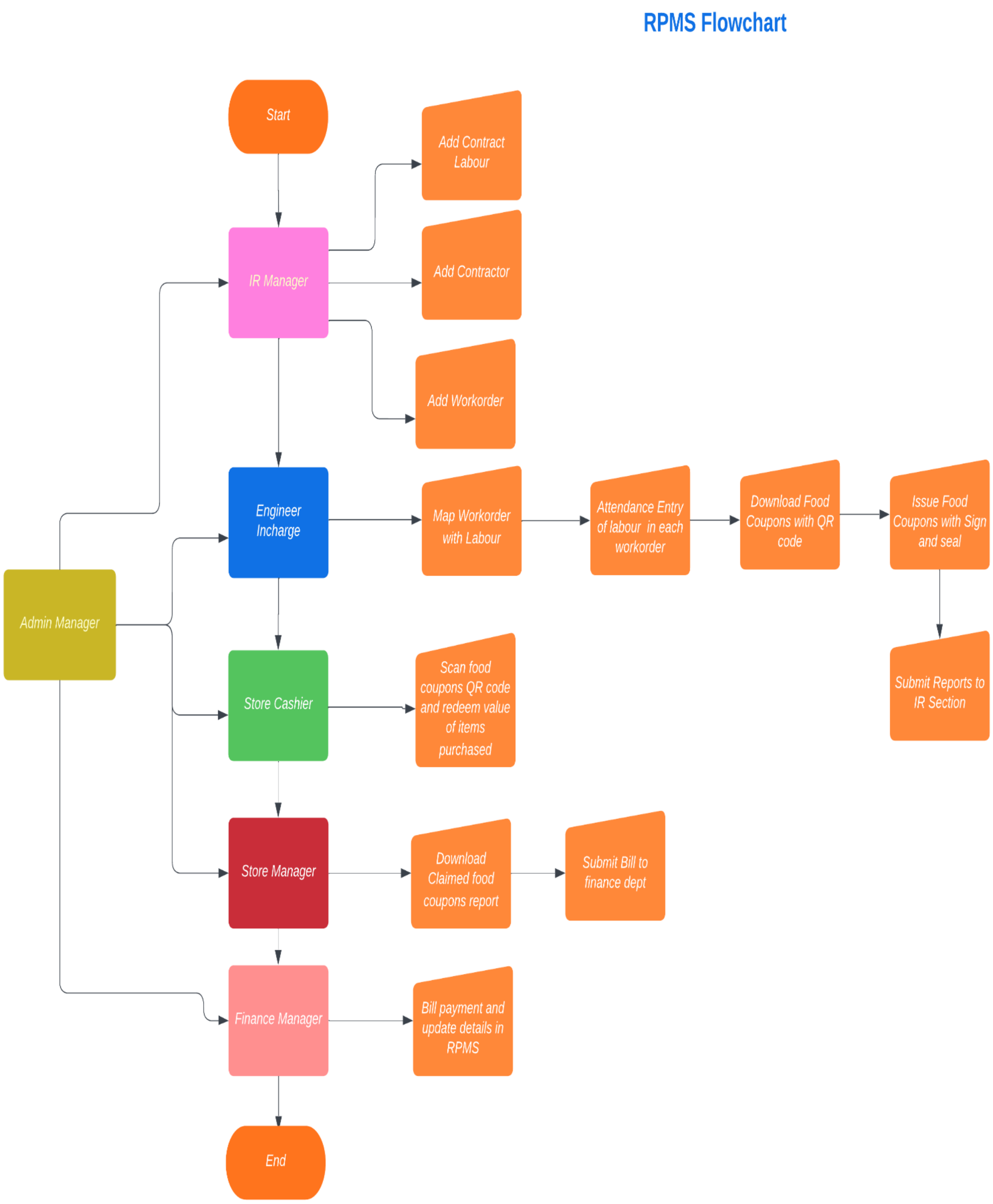
- ✓ Add/Update/View the list of contract labor details
- ✓ Add/Update/View the contractor details
- ✓ Add/Update/View Work order details
- ✓ View details of contract labor reward points
- ✓ View the attendance of contract labor work order wise
- ✓ View Notifications sent by Admin
- ✓ Send /Receive messages to/from other RPMS users
- ✓ Generate different reports like Contract labor report,Reward Points report, Claims Transaction History Report, Monthly labor deployment skill wise report, Monthly labor deployment report contractor wise etc.

vii. Reporting modules allow admin/Relationship Officer/Store Manager to view reports like

- ✓ Contract labor details report
- ✓ Reward points report
- ✓ Claims transaction history report
- ✓ Monthly labor deployment skill wise report
- ✓ Monthly labor deployment contractor wise report

- ✓ Finance month end report
- ✓ Cooperative store month end report
- ✓ Graphs for Active/Inactive users (users who did not use thereward system for a period of a month and more)
- ✓ Graphs for comparison b/w assigned reward points andclaimed reward points by month wise in current year
- ✓ Graph for b/w assigned reward points and claimed rewardpoints for current month.

Flow Chart of existing Reward Point Management System (RPMS):



Sample Dashboard:

Sample Food Coupon and Redeem Process at NMDC Cooperative Store:

NMDC

Coupon Number : FC-001042

Aadhar Number :

Name :

Father Name :

Mobile :

Project : Panna

Department : CIVIL

Man Days : 26

Reward Points : 2600

Month & Year : November 2022

Assigned By :

Assigned Date : 05/December/2022 10:52:46

Expiry Date : 31/December/2022 23:59:59

Transaction History

No	Invoice	Claimed	Date & Time	Sign
1				
2				
3				
4				
5				

Incharge Signature

Note : 1) This is a computer-generated document.

2) This coupon is valid for 1 month only.

i) **The software / platform should have in-built checks for the following:**

   i. The sum of contract labour under various contracts for each location code should not exceed the maximum approved numbers for that location.
   ii. The number of contract labour provided by the contractor should not exceed the maximum approved manpower numbers under that work order.
   iii. During registration, the software / platform shall provide for an auto-generated Unique ID linked to the Aadhar/PAN Number for each contract labour. In case the contract labour is already available in the database, the Unique ID linked to his Aadhar/PAN number shall be retained.
   iv. Any blacklisted Aadhar /PAN Numbers / Unique IDs shall be identified and blocked by the software / platform.
   v. Any other checks as required by the NMDC.

j) After submission of all contract labour details, the software / platform shall trigger safety training schedule for all registered contract labour. The date of completion of such training shall be updated into the contract labour profile by the Location/Site Administrator. The software / platform shall generate alerts for any deviation from the prescribed norms of safety training.

k) On completion of Safety Training, an approval workflow shall be triggered to the approver / location administrator for verification & approval for gate pass creation. Automatic email to the associated approver ID should be sent by the Software / Platform on trigger of any approval workflow.

l) On approval, the software / platform shall auto – generate gate passes for all registered contract labour in such formats as defined by the NMDC. The contractor should be able to download the generated gate pass and issue the same under his stamp & signature.

m) The software / platform shall allow for generation of temporary gate pass for exigency use. The approval workflow for such use shall be of a higher grade than the existing workflow and shall be shared by the NMDC as per its requirement.

Attendance Tracking & Compliance

a) The Service Provider shall be responsible for complete integration of the deployed Software / Platform with the existing available Attendance Management System of NMDC. The solution provided shall include an integrated end-to-end service of software solution and network architecture to support the same.

b) The Software / Platform shall also be capable of integration and allow for seamless flow of attendance data on a real time basis with any other existing attendance management systems, or any other systems / software already available at NMDC. The Software/Platform should also have the option for Excel upload of attendance data to capture details for locations where no biometric device has been deployed and/or details of contract staff in field, not reporting to any fixed base location.

c) The Software / Platform shall be fully expandable & futuristic with an open architecture which shall enable any future integration with other associated systems such as ERP-SAP etc. currently in use or that may be deployed in the future by the NMDC.

d) The Software / Platform shall be capable of integration with statutory portals like EPFO, ESI, Shram Suvidha Portal etc. and allow for OCR services to facilitate verification of payments towards wages, PF & ESI made by the contractor against specified PF & ESI registration numbers / Bank Accounts etc.

e) The Software / Platform should be able to pull the attendance details for all contract labour from the attendance management system and/or from the manually updated details on a real time basis and generate attendance reports on demand.

f) The Software / Platform shall generate wage register / report based on the attendance details, wage rate & the applicable percentage of various benefits (such as PF, ESI, Leave, Bonus, Overtime etc.) for each contract labour, as applicable, on the last date of each month in such format as required by the NMDC. In case of any changes in the applicable wage rate, the software / platform shall auto – calculate the wages on the revised applicable rate and calculate and generate reports for arrear payments, if any, arising out of such change in the wage rate.

g) The software / platform shall allow view access of the auto-generated wage report to the contractor. Based on the calculated monthly wage components, the contractor shall make the payments. The Software / Platform shall allow the contractor to update proof of payments including NEFT receipt, PF / ESI Challan, ECR Copy etc.

h) The software / platform should not allow for any review / changes in the generated wage report by the contractor. The Location/Site Administrator shall have the rights and authorities to modify the wage report based on any issues raised by the contractor, if required. Such changes shall be approved by an approver as configured in the workflow of the software.

i) On upload of proof of payment by the contractor, the software / platform shall auto-trigger an approval workflow to the Location / Site administrator for verification of payments made. Once verified, the software / platform should generate a compliance report as monthly proof of compliance in such format as provided by the NMDC.

j) The Software / Platform shall auto-generate monthly wage slips in such format as provided by the NMDC.

k) On Completion of contract and/or termination of any contract labour the software / platform should auto-generate a service certificate along with a final settlement statement with such components and in such format as specified by the NMDC.

l) The Software / Platform shall enable the generation of various statutory formats including but not limited to Employment Letter, Gate Pass, Register of Contractor, Register of Employees, Notice of Commencement / Completion, Wage Register, Wage Slip, Muster Roll, Service Certificate etc. and other such statutory register as required by the NMDC from time to time.

Reporting & Data Analysis

a) The Software / platform shall enable auto-triggers, reminders & alerts for completion of contract / deviation in the approved manpower numbers, expiry of license, registration etc. to the Location administrator as per the statutory timelines and/or timelines defined by the NMDC.

b) The Software / platform shall provide a dashboard view of details including various cuts and slices for contractors, contract labour, locations and other such customized reports based on the NMDC requirements in a user friendly and downloadable format.

c) The software/platform shall be able to generate customized reports, MIS, analysis as required by the NMDC from time to time. It should provide an option to download such reports in excel or any other formats as specified by the NMDC.

Minimum Number of users to be consider for CLMS System:

Sl. No.	Sites / Location	Number of Admin User	Number of Personal Department Admin User	Number of Location / Site User	Number of Contractor User
1.	HO, Hyderabad	1	1	10	2
2.	R&D	1	1	10	3
3.	Kirandul Complex	1	1	10	54
4.	Bacheli Complex	1	1	10	50
5.	Donimalai Complex	1	1	10	30
6.	Panna Complex	1	1	10	9
TOTAL		**6**	**6**	**60**	**148**

Note: The service provider must account for users exceeding the minimum threshold as per above table, with variations possible during implementation. Additionally, projections for the total number of users throughout the contract period should be provided as per requirement of NMDC.

3.3 Annual Maintenance Contract during Warranty and AMC Period

a) The service provider shall maintain the entire solution, including the cloud server and software supporting the same on an ongoing basis, as per rates quoted in the price bid for the entire contract duration.

b) AMC shall include the following services as a minimum:

i. **Routine Maintenance Services:** The Service Provider shall be responsible for the continuous maintenance of the system to ensure its reliability, performance, security, and scalability, in accordance with the parameters outlined below.

- **System and Server Maintenance**
  - ✓ **CLMS Updates & Patching**: Regularly apply security patches and updates to the operating system.
  - ✓ **Cloud Server Health Checks**: Monitor CPU, memory, disk usage, and network performance.
  - ✓ **Backup & Recovery Testing**: Ensure backups are running and test recovery procedures periodically.

- **CLMS Application Maintenance**
  - ✓ **Bug Fixes:** Address known issues and user-reported bugs.
  - ✓ **Dependency Updates:** Update libraries, frameworks, and third-party packages to their latest stable versions.
  - ✓ **Code Refactoring:** Improve code quality and maintainability without changing functionality.

- **Database Maintenance**
  - ✓ **Index Optimization:** Rebuild or reorganize indexes to improve query performance.
  - ✓ **Data Archiving:** Move old or infrequently accessed data to reduce load.
  - ✓ **Backup & Restore:** Regularly back up databases and test restore procedures.

- **Security Maintenance**
  - ✓ **Vulnerability Scanning:** Run automated scans to detect security issues.
  - ✓ **Access Control Reviews:** Audit user roles and permissions.
  - ✓ **SSL/TLS Certificate Renewal:** Ensure certificates are valid and up to date.

- **Monitoring and Logging**
  - ✓ **Log Rotation & Archiving:** Manage log file sizes and retention.
  - ✓ **Alert Tuning:** Adjust thresholds and rules to reduce false positives.
  - ✓ **Uptime Monitoring:** Use tools to track service availability.

- **Performance Optimization**
  - ✓ **Load Testing:** Simulate traffic to identify bottlenecks.
  - ✓ **Caching Strategy Review:** Optimize caching layers (e.g., Redis, CDN).
  - ✓ **Database Query Tuning:** Analyze and optimize slow queries.

- **Documentation and Reporting**

- ✓ **Update Documentation:** Keep system architecture, runbooks, and SOPs current.
- ✓ **Maintenance Reports:** Log completed tasks and issues found/resolved.
- ✓ **Change Logs:** Maintain records of updates and changes made.

ii. **Breakdown Maintenance Services:** In case of Breakdown of any components such as Cloud Server, Software issues etc. service provider shall depute engineers to restore the system at the earliest, within 24 hours. The service provider shall be responsible for maintaining records of all such breakdown maintenance, counter signed by the authorized representative of NMDC. The same shall be used for payment of AMC charges.

iii. **Software Support & Technical Services:** The service provider shall ensure overall functionality of server, technical assistance, technical discussions etc. required to ensure smooth functioning of the comprehensive system 24*7.

c) The service provider shall maintain a 24*7 Call Centre and Online Ticket Management system till the end of AMC. Any call made to the Call center or ticket logged in the Online System should be resolved within 24 hours.

d) Successful Bidder will be appointing a person as a Single Point of Contact (SPOC) for NMDC for all support related issues with respect to hardware / software installed by them. If any third party help is required in resolving any issue, it will be the sole responsibility of the bidders to arrange for such help.

e) Any software, OS, Hardware, Firmware upgrade should be included with no extra cost.

f) During the AMC period, the service provider shall be liable to achieve minimum uptime 99.00 % of the system and replace/rectify any device which is found defective as per SLA. All spare required during the AMC period shall be in the scope of the service provider. Uptime below 91.00 % will be considered nonperformance of the system and necessary penal action such as encashment of PBG will be taken as per the contractual terms & conditions and SLA.

3.4 Other Technical Requirements

a) The service provider shall only deploy software with valid license and support which meets all data security, confidentiality, integrity criteria as defined in this tender document. The service provider shall be required to possess & produce valid license for the entire duration of the contract. All licenses should be in the name of NMDC.

b) The service provider shall own the rights to customize the software / platform deployed as per the requirements of the NMDC. The bidder shall coordinate with the user department to ensure all customizations as per the requirements of the NMDC to deliver all services as defined in this scope.

c) The service provider shall provide user level training, demo and operational guidelines to identified role holders of the NMDC and contractors on the software and hardware solutions deployed under this contract. Admin training shall be provided by the service provider with hands on practice on agreed upon intervals.

d) The bidder shall be responsible for coordinating with the site officials for delivery, installation, testing and commissioning of solution(s) deployed under this project. The bidder shall also be responsible for training the site officials on usage of the CLMS Modules deployed.

e) The Bidder shall be required to place an implant at the office of NMDC. The implant should be capable for overall coordination and implementation of the End-to-End process as envisaged in this Scope of Work. He / She shall be responsible for

- Liaising with the bidder and the locations for coordinating successful delivery and installation of all components.
- Act as a centralized helpdesk to answer all queries related to the solution deployed under this project.
- Registration, Creating User profiles, Creating database and assistance to NMDC and Contractor in Registration & Database creation activities.
- Liaising with the contractors to train them to use the platform and answer any related queries.
- Maintaining and sharing daily Contract labour reports, Monthly wage reports and any other reports to the user department by accessing the software platform.
- Coordinate and Liaise to resolve any maintenance issues / complaints from the locations.
- Schedule and maintain records of all Maintenance visits. The same shall be shared by the implant on monthly / quarterly basis as proof of maintenance activities carried out.
- Any other associated jobs required to effectively carry out the end-to-end process of the workflow management system as deployed under this contract to the satisfaction of the user.
- He / She should be adept at handling the software platform, proficient in excel for meeting the reporting and documentation requirements and fluent in English and Hindi to coordinate and liaise with all locations covered under this project.
- Any other work assigned by NMDC from time to time for proper functioning of the deployed solution.

f) The service provider shall ensure access rights are protected and there are no unauthorized access / security breach to the NMDC's data. Logging should be enabled at all layers of devices and provide logs for auditing/ forensic analysis as and when requested by the NMDC.

g) The service provider shall be wholly responsible for ensuring privacy, security and confidentiality of all data stored in such cloud-based system.

h) The service provider must clearly assess the storage capacity based on current requirement and must have provision for future capacity expansion for scalability & expansion in functionality.

i) The deployed solutions shall be available online, on-demand, and shall be dynamically scalable as advised by the NMDC.

j) The service provider shall provide Cloud hosted solution for CLMS, within Indian geography, outside NMDC premises, with 99.00% up-time availability, 100% reliability and data security. The data at rest and in transit must be encrypted. The cloud administrator should not be able to read the data in any format. The solution should have an option to configure tenant isolation/ data isolation for NMDC.

k) The Cloud Server shall permit the addition of new location. The offered software should have in-built capability / provision to take care for future expansion up to 50% and addition of new services & features etc. without any additional cost. The user configurable menu driven modules should be available in the software for any addition/deletion/change in the location configurations. System should be scalable to meet additional business, safety and security requirement of the location. The System shall be open/ hardware agnostic such that any location which is not covered under this tender or any Location covered under this tender but may require additional hardware, shall be integrated based on standard API. It shall be obligatory for the Service Provider to give all such interface detail for seamless integration of the new hardware in the existing system.

l) On expiry/termination of the contract, the data generated must be in a format which can be easily ported to new system. The service provider should provide necessary support for data handover/ migration activity. Post - handover/ migration, the data hosted in the cloud should be wiped off completely after taking due consent from NMDC.

m) Robust, encrypted backups and Disaster Recovery Data Center and documented Business Continuity Plan (BCP) should be in place. The service provider shall be responsible for carrying out DR switching within specified time frame.

n) In case user access to the Contract Labour Management Software is through a web browser, the same must be accessible using latest versions of Google Chrome, Microsoft Edge etc.

o) Premium service support for configuration, implementation, customization, update and complaint resolution should be available. The service provider shall be responsible for maintaining the CLMS for smooth transactions. The service provider should render support services through both online support (for resolving day to day issues) and on-premises support (in case of critical issues). Robust online system should be available for logging / resolution of issues. Penalty, as per SLA, shall be levied in case of delay in resolution of issues beyond agreed resolution time.

p) The service provider should have centralized support and helpdesk services 24x7.

q) In case of any incidence of system outage / cyber-attack, service provider should ensure that the data and the application is restored to the last healthy configuration within 24 hours. Further, the service provider should submit to NMDC management a Root Cause Analysis (RCA) covering attack description and methodology, extent of compromise, loss of data, if any, mitigation and counter measures to prevent future attacks.

r) The service provider shall be responsible for implementation of releases, updates, new features, security patches on an ongoing basis as per release schedule.

s) Provision for periodic archival of data should be available so that database size can be controlled over time.

3.5 Security Requirements

a) Non-Disclosure Agreement (NDA) should be signed between NMDC and the Contracting Agency as well as between contracting agency and their service providers before start of the contract.
b) Cloud Data Centre on which the application is to be hosted should preferably be within India, unless there is strong justification for hosting it outside.
c) Cloud Service Provider should maintain accreditation and empanelled by MeitY.
d) Cloud Service Provider should maintain relevant security standards including
    - ISO/IEC 27001 (Information Security Management)
    - ISO/IEC 27018 (Code of Practice for Protecting Personal Data)
    - SOC 2 (Service Organization Controls standards for operational security)

e) Backups of all components should be taken periodically to ensure the availability of data & the relevant applications in case of a major failure or Security Incidents.
f) All components including Operating System, DB, Web server, application server, Network & Security devices etc. should be hardened before deployment of any new solution.
g) Patching and reboot of systems (if applicable) should be done on periodic basis.
h) The servers should be protected through a leading Anti-virus/ Anti-malware solution.
i) Exchange of data should be carried on encrypted channel only using SSL.
j) All data at rest should be strictly encrypted. Aadhar details (if captured) should be strictly stored in Aadhar data vault. Any biometric data stored in the device should be encrypted.
k) Default passwords should be changed at all layers of components including Operating System, Application administrators, Web Servers, Database administrators, Network & Security devices & all other related systems. Passwords should be complex. Passwords should be changed periodically.
l) Local Administrator accounts should be renamed.
m) Unused accounts should be disabled or deleted.
n) Vulnerability Assessment Penetration Testing (VAPT) and Web Application Penetration Testing (WAPT) should be done at least once in a year by CERT-In empaneled security auditing firms (for application hosted within India)/ Third Party Security Auditor (for data hosted outside India) and all Critical vulnerabilities should be closed within 24 hours and High vulnerabilities within 3 days. VAPT should cover OS, DB, Web server, App Server, Application level (WAPT) as

well as Network and Security solutions.

o) VAPT/ WAPT should also be repeated before roll-out of a major upgrade.
p) Any unused published web services/ APIs for information exchange should be taken down.
q) All whitelisted IP addresses should have access only of a specific service/ ports.
r) All outgoing access to public Internet from servers must be restricted to limited IP addresses or URLs only as per the business requirement.
s) All types of clear-text protocols such as TELNET, FTP etc. must be disabled.
t) Software with valid licenses & support should only be deployed.
u) All Internet-facing web applications should have Web Application Firewall (WAF) protection.
v) Logging should be enabled at all layers of devices and provide logs for auditing/ forensic investigations as and when requested by NMDC.
w) Service Provider should extend necessary support for incident analysis/ forensics in case any cyber security incident is observed.

4 PHASES OF PROJECT IMPLEMENTATION

4.1 Expectations from the bidder

a) The successful bidder shall engage early in active consultations with the NMDC to establish a clear and comprehensive project plan in line with the priorities of all project stakeholders and the project objectives.

b) Study the existing available system of NMDC to understand the existing technology adopted in various digital initiatives of NMDC.

c) The successful bidder shall assess existing infrastructure's current ability to support the entire solution and integrate the same with the proposed solution wherever applicable.

d) The successful bidder shall judiciously evaluate the resources and time planned for undertaking the current state assessment, given the overall timelines and milestones of the project.

e) The successful bidder shall be responsible for supply of all the modules of the CLMS as indicated (but not limited to) in the tender document.

f) Supply, Cloud Hosting, Installation, and Commissioning of entire solution.

g) The successful bidder has to provide Enterprise version for all Open-source software. No community version will be accepted.

h) The successful bidder shall be responsible for up-gradation, enhancement of CLMS software, etc. as requisitioned by NMDC.

i) The successful bidder shall ensure that the end of support is not reached during the concurrency of the contract period.

j) The successful bidder shall ensure compliance to all mandatory government regulations as amended from time to time.

k) NMDC shall not be responsible if the successful bidder has not provisioned some components, sub-components, assemblies, sub-assemblies as part of Bill of Quantities in the tender document. The successful bidder shall have to provision these & other similar things to meet the solution requirements at no additional cost and time implications to NMDC.

l) All the software licenses that the successful bidder proposes shall be perpetual software licenses along with maintenance, upgrades and updates for the currency of the contract. The software licenses shall not be restricted based on location and NMDC shall have the flexibility to use the software licenses for other requirements if required.

m) The successful bidder shall ensure there is a 24x7 comprehensive support for duration of the contract for respective components to meet SLA requirement.

n) Considering the criticality of the infrastructure, the successful bidder is expected to design the solution considering the tender document requirement of no single point of failure with high level of redundancy and resilience to meet the network uptime requirements.

o) The successful bidder shall be responsible for periodic updates & upgrades of all modules as required by NMDC.

4.2 Inception Phase

The successful bidder will be responsible for preparation of detailed project plan based on the tender document. The plan shall address at the minimum the following:

a) Define an organized set of activities for the project and identify the interdependence between them.
b) Resource planning and loading for each phase/activity. This must also indicate where each resource would be based during that phase i.e., onsite at the NMDC mining area or off site at successful bidder premises.
c) Establish and measure resource assignments and responsibilities.
d) Highlight the milestones and associated risks.
e) Communicate the project plan to stakeholders with meaningful reports.
f) Measure project deadlines and performance objectives.
g) Project Progress Reporting. During the implementation of the project, the successful bidder should present fortnightly reports. This report will be presented to NMDC. The report should contain at the minimum the under mentioned:
    i. Results accomplished during the period (fortnightly)
    ii. Cumulative deviations from the schedule date as specified in the finalized Project Plan.
    iii. Corrective actions to be taken to return to planned schedule of progress.
    iv. Plan for the next fortnight
    v. Proposed revision to planned schedule provided such revision is necessitated by reasons beyond the control of the successful bidder.
    vi. Support needed.
    vii. Highlights
    viii. Issues/Concerns.
    ix. Risks/Show stoppers along with mitigation.

h) Identify the activities that require the participation of client personnel (NMDC) and communicate their time requirements and schedule early enough to ensure their full participation at the required time.

4.3 Requirement Phase

The successful bidder must perform the detailed assessment of the business requirements and project requirements as mentioned in this tender document. Based on the understanding and its own individual assessment, the successful bidder shall develop & finalize the System Requirement Specifications (SRS) in consultation with NMDC and its representatives. While doing so, the successful bidder at least is expected to do following:

a) The successful bidder shall conduct a detailed survey and prepare a gap analysis report, detailed survey report of the physical and field infrastructure requirements. The successful bidder shall duly assist the department in preparing an action plan to address the gaps.

b) The successful bidder shall study and revalidate the requirements given in the tender document with NMDC and submit as an exhaustive FRS document. The successful bidder shall develop the FRS and SRS documents.

c) The successful bidder shall develop and follow standardized template for requirements capturing and system documentation.

d) The successful bidder must maintain traceability matrix from SRS stage for the entire implementation.

e) The successful bidder must get the sign off from all user groups of NMDC.

f) For all the discussion with NMDC team, successful bidder shall be required to be present at NMDC office with the requisite team members.

4.4 Design Phase

The successful bidder shall make a detailed design document for proposed Contract Labour Management System (CLMS) in consultation with NMDC.

4.5 Development Phase

The successful bidder shall carefully consider the scope of work and provide Contract Labour Management System (CLMS) that best meets the project's requirements. Considering the scope set in this tender document, the successful bidder shall carefully consider the solutions it proposes and explicitly mention the same in the technical proposal. The implementation of the Contract Labour Management System (CLMS) will follow the procedure mentioned below:

a) The successful bidder will be responsible for supplying the application and licenses of related software products and installing the same so as to meet project requirements.
b) The successful bidder shall have provision for procurement of licenses in a staggered manner as per the actual requirement of the project.
c) The successful bidder shall perform periodic audits to measure license compliance against the number of valid End User software licenses consistent with the terms and conditions of license agreements, volume purchase agreements, and other mutually agreed upon licensed software terms and conditions. The successful bidder shall report any exceptions to license terms and conditions at the right time to NMDC. However, the responsibility of license compliance solely lies with successful bidder. Any financial penalty imposed on NMDC during the contract period due to license non-compliance shall be borne by the successful bidder.
d) As per requirement of Contract Labour Management System (CLMS) implementation the successful bidder has to ensure that certified resources & successful bidder best technical resources are deployed in this project.
e) The successful bidder should provide the specific design (Low Level Design, Core Implementation) support expertise to make sure that their supplied technology & products work as per the design objectives.
f) The successful bidder shall guide NMDC in signing of Non-Disclosure Agreement.
g) The successful bidder to design and implement the complete security policy and workflow as per industry best practice in consultation with NMDC to meet their business requirements.
h) System Documentation both in hard copy and soft copy to be supplied along with licenses and shall include but not limited to. Following Documentation to be maintained, updated and submitted to NMDC regularly:
    i Functional Requirement Specification (FRS)
    ii System Requirements Specifications (SRS)
    iii High level design of whole system
    iv Low Level design for whole system / Module design level

v Any other explanatory notes about system
vi Traceability matrix
vii Installation guides
viii User manuals
ix System administrator manuals
x Toolkit guides and troubleshooting guides.
xi Other documents as prescribed by NMDC.
xii Quality assurance procedures
xiii Change management histories.
xiv SOPs, procedures, policies, processes, etc. developed for NMDC.
xv Test Environment:
- ✓ Detailed Test methodology document
- ✓ Overall System Testing
- ✓ Acceptance test cases

(These documents need to be updated after each phase of project and to be maintained and updated during entire project duration. The entire documentation will be the property of NMDC.)

4.6 Integration Phase

The Contract Labour Management System (CLMS) should be integrated with existing Attendance Management System, ERP etc. The successful bidder shall provide the testing strategy including traceability matrix, test cases and shall conduct the testing of various components of the software developed/customized and the solution as a whole. The testing should be comprehensive and should be done at each stage of development and implementation to enable NMDC for better decision management and planning. The proposed CLMS should be capable of seamless integration with any existing and future OEM-provided Attendance Management System and Visitor Management System.

4.7 Testing and Acceptance Criteria

a) The successful bidder shall demonstrate the following mentioned acceptance criteria prior to acceptance of the solution as well as during project operations phase, in respect of scalability and performance etc. The successful bidder may propose further detailed Acceptance criteria which the NMDC will review. Once NMDC provides its approval, the Acceptance criteria can be finalized. In case required, parameters might be revised by NMDC in mutual agreement with successful bidder and the revised parameters shall be considered for acceptance criteria. A comprehensive system should be set up that would have the capability to log & track the testing results, upload & maintain the test cases and log & track issues/bugs identified.

b) The following table depicts the details for the various kinds of testing envisaged for the project:

Type of Testing	Responsibility	Scope of Work
System Testing	✓ The successful bidder	▪ The successful bidder to perform Contract Labour Management System (CLMS) testing. ▪ The successful bidder to prepare test plan and test

Type of Testing	Responsibility	Scope of Work
		cases and maintain it. NMDC may request successful bidder to share the test cases and results. ▪ Should be performed through manual as well as automated methods. ▪ Automation testing tools to be provided by the successful bidder. NMDC doesn't intend to own these tools.
Integration Testing	✓ The successful bidder	▪ The successful bidder to perform Integration testing. ▪ The successful bidder to prepare and share with NMDC the Integration test plans and test cases. ▪ The successful bidder to perform Integration testing as per the approved plan. ▪ Integration testing to be performed through manual as well as automated methods. ▪ Automation testing tools to be provided by successful bidder.
Performance and Load Testing	✓ The successful bidder ✓ NMDC/ Third Party Auditor (to monitor the performance testing)	▪ The successful bidder to do performance and load testing. ▪ Various performance parameters such as transaction response time etc. should be taken into account. ▪ Load and stress testing of the Project to be performed on business transaction volume. ▪ Test cases and test results to be shared with NMDC. ▪ The successful bidder needs to use performance and load testing tool at the time of Go-Live and at the end of every 6 months during AMC Phase. ▪ NMDC if required, could involve third party auditors to monitor/validate the performance testing. Cost for such audits to be paid by NMDC.
Security Testing (including Penetration and Vulnerability testing)	✓ The successful bidder ✓ NMDC/ Third Party Auditor (to monitor the security testing)	▪ Solution should demonstrate the compliance with security requirements as mentioned in the tender document including but not limited to security controls in Contract Labour Management System (CLMS) and Cloud Server component implemented by the successful bidder. ▪ Solution shall pass vulnerability and penetration testing for roll out of each phase. The solution should pass web application security testing for the portal, mobile app and other systems and security configuration review of the infrastructure. ▪ The successful bidder should carry out Vulnerability Assessment Penetration Testing (VAPT) and Web

Type of Testing	Responsibility	Scope of Work
		Application Penetration Testing (WAPT) should be done before hosting the application by CERT-In empaneled security auditing firms (for application hosted within India)/ Third Party Security Auditor (for data hosted outside India) and all Critical vulnerabilities should be closed within 24 hours and High vulnerabilities within 3 days. VAPT should cover OS, DB, Web server, App Server, Application level (WAPT) as well as Network and Security solutions. Certificate should be provided to NMDC. ▪ Security test report and test cases should be shared with NMDC. ▪ Testing tools if required, to be provided by the successful bidder. ▪ During AMC phase, penetration testing to be conducted on yearly basis and vulnerability assessment to be conducted on half-yearly basis. ▪ NMDC will also involve third party auditors to perform the audit/review/monitor the security testing carried out by the successful bidder. Cost for such auditors to be paid by NMDC.
User Acceptance Testing of Project	✓ NMDC	▪ NMDC or NMDC appointed third party auditor to perform User Acceptance Testing (UAT). ▪ The successful bidder to prepare User Acceptance Testing test cases. ▪ UAT to be carried out in the exact environment/architecture that would be set up for production. ▪ The successful bidder should fix bugs and issues raised during UAT and get approval on the fixes from NMDC/ NMDC appointed third party auditor before deployment. ▪ Changes in the system as an outcome of UAT shall not be considered as Change Request. The successful bidder has to rectify the observations.

Note:

a) The successful bidder needs to provide the details of the testing strategy and approach including details of intended tools/environment to be used for testing in its technical proposal. NMDC does not intend to own the tools.

b) The successful bidder shall work in a manner to satisfy all the testing requirements and adhere to the testing strategy outlined. The successful bidder must ensure deployment of necessary resources and tools during the testing phases. The successful bidder shall perform the testing of the solution based on the approved test plan, document the results and shall fix the bugs found during the testing. It is the responsibility of successful bidder to ensure that the end product delivered by the successful bidder meets all the requirements specified in the tender document. The successful bidder shall take remedial action based on outcome of the tests.

c) The successful bidder shall arrange for environments and tools for testing and for training as envisaged. Post Go-Live; the production environment should not be used for testing and training purpose. If any production data is used for testing, it should be masked and it should be protected. Detailed process in this regard including security requirement should be provided by the successful bidder in its technical proposal. The process will be finalized with the successful bidder.

d) All the Third-Party Auditors (TPA) as mentioned above will be appointed and paid by NMDC directly. All tools/environment required for testing shall be provided by the successful bidder.

e) Standardisation Testing and Quality Certification (STQC)/Other agencies appointed by NMDC shall perform the role of TPA, if required. The successful bidder needs to engage with the TPA at the requirement formulation stage itself. This is important so that unnecessary re-work is avoided, and the audit is completed in time. The successful bidder needs to prepare and provide all requisite information/documents to third party auditor and ensure that there is no delay in overall schedule.

f) The cost of rectification of non-compliances shall be borne by the successful bidder.

4.8 Go-Live Preparedness and Go-Live

a) The successful bidder shall prepare and agree with NMDC, the detailed plan for Go-Live (in-line with NMDC's implementation plan as mentioned in tender document).
b) The successful bidder shall define and agree with NMDC, the criteria for Go-Live.
c) The successful bidder shall ensure that all the integration is done with existing systems.
d) The successful bidder shall submit signed-off UAT report (issue closure report) ensuring all issues raised during UAT are being resolved prior to Go-Live.
e) The successful bidder shall ensure that Go –Live criteria as mentioned in User Acceptance Testing of Project is met and successful bidder needs to take approval from NMDC Officials on the same.
f) Go-live of the project shall be done as per the finalized and agreed upon Go-Live plan.

4.9 Handholding and Training

In order to strengthen the staff, structured capacity building programmes shall be undertaken for identified resources of NMDC. The actual number of trainees will be provided at design stage.

a) The successful bidder shall prepare and submit detailed Training Plan and Training Manuals to NMDC for review and approval.
b) Appropriate training shall be carried out as per the User Training Plan prepared in detail stating the number of training sessions to be held per batch of trainees, course work for the training program, coursework delivery methodologies and evaluation methodologies in detail.
c) The successful bidder shall also be responsible for full capacity building. Training and capacity building shall be provided for all individual modules along with their respective integrations.
d) The successful bidder shall conduct end user training and ensure that the training module holistically covers all the details around system applications expected to be used on a daily basis

to run the system.

e) An annual training calendar shall be clearly chalked out and shared with the NMDC along with complete details of content of training, target audience for each year etc.
f) Training sessions and workshops shall comprise of presentations, demonstrations and hands-on mandatorily for the application modules.

4.10 Final Acceptance Certificate

The final acceptance shall cover 100% of the Project, after successful testing by the NMDC; a Final Acceptance Certificate (FAC) shall be issued by the NMDC to the successful bidder.

Prerequisite for Carrying out FAC activity:

a) Detailed test plan shall be developed by the successful bidder and approved by NMDC. This shall be submitted by successful bidder before FAC activity to be carried out.
b) All documentation related to NMDC Project and relevant User Acceptance Test documents (including IT Components, Non-IT Components etc.) should be completed & submitted before the Final Acceptance Certificate to the NMDC.
c) The training requirements as mentioned should be completed before the Final Acceptance Certificate.
d) Successful hosting of Application, Software etc. on Cloud.

The FAC shall include the following:

a) The software items must be installed as per the specification.
b) Availability of all the defined services shall be verified.
c) The successful bidder shall be required to demonstrate all the features / facilities / functionalities of CLMS as mentioned in the tender document.
d) The successful bidder shall arrange the test methodology required for performance verification and will also provide documented test results.
e) The successful bidder shall be responsible for the security audit of the established system before Go-Live.
f) Any delay by the successful bidder in the Final Acceptance Certificate shall render him liable to the imposition of appropriate penalties. However, delays identified beyond the control of successful bidder shall be considered appropriately and as per mutual agreement between NMDC and successful bidder.

4.11 Compliance to Standards & Certifications

a) It is imperative that the highest standards applicable are adhered to. In this context, successful bidder will ensure that the entire Project is developed in compliance with the applicable standards.

b) The successful bidder needs to ensure compliance of the project with Government of India IT security guidelines including provisions of:
   i. The Information Technology Act, 2000 and amendments thereof and
   ii. Guidelines and advisories for information security published by CERT-In/MeitY (Government of India) issued till the date of publishing of tender notice. Periodic changes in these guidelines during project duration need to be complied with.

c) Quality Audits

i. NMDC, at its discretion, may also engage independent auditors to audit any/some/all standards/processes. The successful bidder shall support all such audits as per calendar agreed in advance. The result of the audit shall be shared with successful bidder who has to provide an effective action plan for mitigations of observations/non-compliances, if any.

ii. The successful bidder should comply with all the technical and functional specification provided in various sections in this tender document.

5 PROJECT IMPLEMENTATION SCHEDULE AND DELIVERABLES

SL. No.	Milestones	Deliverables	Timelines (In Months)
A.	**PROJECT IMPLEMENTATION PHASE**		**T0 + 6 Months = TF**
1.	• Project Inception Report • Submission of System Requirement Study (SRS), Functional Requirement Study (FRS) including Solution Architecture, Application Design Documents (HLD & LLD) of the proposed system; Integration report for external applications, Design documents related to: Contract Labour Management System (CLMS)	• Stakeholder consultation and prepare the reports Detailed Project Plan including resource deployment, Communication plan, Risk management plan, Information Security and Business Continuity, Sensitization & Training Plan, Operations management plan etc. • As-is Study; Detailed To-Be Design for Contract Labour Management System (CLMS), Security Architecture etc.; Customization/ Changes in overall solution (if required); Approach & Plan with Transition Strategy.	T0 + 1 Month = T1
2.	Design, Development, Hosting, Commissioning & Testing etc. of Contract Labour Management System (CLMS)	• Installation, Commissioning and Testing Reports • Software Licenses details requirement	T1 + 4 Month = T2
3.	**Go-Live:** Go Live and issuance of Final Acceptance Certificate (FAC) from Owner/ Engineer-in Charge at respective project sits. • Contract Labour Management System (CLMS)	• Installation, Commissioning and Testing Reports • Software Licenses details requirement • Cloud Hosting report • Final Acceptance Certificate (FAC) from Owner / Engineer-in Charge.	T2 + 1 month = TF

Note 1:

1. T0 = Days from Contract Signing Date
2. T1 = T0 + 1 month. (i.e. 1 month from Contract Signing Date)
3. T2 = T1 + 4 months. (i.e. 5 months from Contract Signing Date)
4. TF = T2 + 1 month. (i.e. 6 months from Contract Signing Date)

Note 2:

Based on findings of the site survey activity done by the successful bidder may propose a change in the number of sites or individual units to be deployed in each phase as well as overall scope and a consequent change in phasing. NMDC also retains the right to suo-moto change the number of sites or individual units to be deployed for each scope item. The final decision on change in phasing and related change in payment schedules shall be at the discretion of NMDC.

The successful bidder should complete all the activities within the defined timelines as indicated above. The timeline will be reviewed regularly during implementation phase and may be extended in case NMDC feels that extension in a particular Request Order/Integration or any track is imperative, for the reason beyond the control of the successful bidder. In all such cases NMDC's decision shall be final and binding. The successful bidder will be eligible for the payment based on the completion of activities and approval of the relevant deliverables from the concerned Authority.

6 MANPOWER REQUIREMENT AND QUALIFICATION

Manpower Qualifications and deployment for one Year Warranty and one year AMC Period:

During 1 Year Warranty Period and 1 year of AMC:

Sl. No.	Manpower	BACHELI COMPLEX	KIRANDUL COMPLEX	DONIMALAI COMPLEX	PANNA COMPLEX	Total
1	Support Engineer	1	1	1	1	4

In addition to the above-mentioned manpower, an additional manpower should be available at site to compensate for the absence of any Support Engineer throughout the Contract period. During AMC period also NMDC may ask for additional Support Engineers at the same cost. The bidder has to provide the same as per requisition of NMDC. The leave of manpower will be applicable as per NMDC Sites Calendar.

Qualification of Manpower:

Sl. No.	Manpower	Qualification & Experience
3.	**Support Engineer**	**Educational Qualification:** • Diploma / Bachelor's degree in any discipline with diploma in computer application. • 1 year experience on Networking, Computer Applications, Technical Support etc.

Note: The detailed CV, Qualifications Certificate and Experience Certificate of the proposed Manpower Resources duly attested by the bidder should be submitted in bid for evaluation.

7 ANNUAL MAINTENANCE CONTRACT (AMC)

The Annual Maintenance Contract (AMC) will be for a period of 1 year after expiry of the warranty period of 1 year post Go-Live of the project. The AMC is including modification, deletion, upgradation, bug fixing etc. of CLMS and maintenance of cloud server for the operation of the system.

NMDC will not maintain or procure any other support software or solution during the above mentioned 1 year AMC period. The successful bidder shall submit an analysis report of failures of system during AMC period before six months of AMC completion period.

General Conditions for Annual Maintenance Contract:

i. The successful bidder will maintain the system for one year after expiry of warranty period of one year so that the total system including all server, software etc. supplied by the successful bidder are available to NMDC with guaranteed up time. The successful bidder will ensure 24x7 support to maintain the system.

ii. Solving the reported problems, replacement of components as and when necessary for maintenance and break-down maintenance are to be done at no extra cost.

iii. Maintenance and support of the system as deemed necessary will be done by the successful bidder on all days including Sundays and other holidays declared by the Central/State Government or local authorities.

iv. Record of works carried out during the period should be enclosed along with the invoice submitted for payment.

v. The successful bidder will use company trained and appropriately skilled personnel to maintain the CLMS system in efficient, reliable and safe operating condition.

vi. The successful bidder has to perform any other maintenance not spelt above but required for smooth trouble free and safe functioning of the system.

vii. This service shall not be subcontracted but shall be performed by the successful bidder only.

viii. Tender will only be evaluated, if the successful bidder is ready to take up AMC for 1 year.

ix. The Contract Labour Management System (CLMS) should be maintained at par for 24 x 7 operations.

x. Corrective / Preventive action to be done on a continuous basis for which proper records to be maintained.

xi. The manpower deployed for AMC will have to be got certified by the Engineer-in-Charge of respective sites before deployment and accommodation for the same will be provided in the project on chargeable basis.

xii. At any point of time, the successful bidder should ensure minimum manpower deployment as stipulated in this tender document i.e. skilled qualified service engineer for maintenance and operation of the system to the satisfaction of the Engineer-in-Charge of respective sites.

xiii. Manpower requirement during 1 year Warranty Period and 1 Year AMC is given in tender.

xiv. Any type of licensing required for operation of offered Contract Labour Management System

(CLMS) shall be obtained by the successful bidder.

xv. The manpower deployed for AMC will be provided entry into the HO office and Site office with suitable identification passes but they will be required to follow the guidelines given by Engineer-in-Charge of respective sites.

xvi. The payment for AMC will be made proportionately on quarterly basis on certification by Engineer-In-Charge.

xvii. The successful bidder shall ensure to any up-gradation, patches in software in line with the up-gradation in the software of offered in this project and other modules till AMC period at free of Cost.

xviii. The successful bidder shall familiarize himself and fully comply with the provisions of all the Acts / Rules / Regulations and orders of the State / Central Govt. applicable to the contract and shall be fully responsible and liable for due observation of the same. The Company shall have no responsibility / liability and shall be fully indemnified by the successful bidder against all such claims.

xix. The successful bidder shall be fully responsible for making payment of minimum wages as per minimum wages Act, responsible for the safety etc. to their workmen / employees as per prevalent law. The company shall in no way be responsible for any such payment / claim / penalty etc.

xx. For new applications and versions implemented during the term of this agreement, the successful bidder will be responsible for initiating and ensuring completion of the appropriate process. The successful bidder has to provide Escalation matrix for technical support.

xxi. The successful bidder has to extend the support for identifying / troubleshooting and rectifying the problem to resolve them within the stipulated time, if required staying beyond normal working hour.

xxii. The Nodal Officer / Engineer-In-Charge of NMDC will liaison, transit and manage all the required activities for smooth functioning of the Contract Labour Management System (CLMS) between NMDC and the successful bidder.

8 BILL OF QUANTITIES (BoQ)

a. The successful bidder shall be ready to accept the quantity variation which may be increased or decreased to maximum of 20% of the present quantity as per Annexure-1 – BOQ of the offered Contract Labour Management System (CLMS) projects during implementation period as per the original quoted price of the associated items.

b. The successful bidder shall be ready to include any new item (apart from the items listed as per Annexure-1 - BOQ) in the offered project as per mutually agreed price.

c. The successful bidder shall consult with stakeholders and establish the compatibility for the offered Contract Labour Management System (CLMS) as per project implementation schedule.

d. The bidder shall quote as Price Schedule.

e. Rate and Quantity of the items as indicated in price schedule will be used for arriving at the offer value. However, the payments will be made based on actual work done.

Annexure-1 – Bill of Quantity (BoQ)

Item wise BoQ			
#	**Bill of Material**	**UNIT**	**Quantity**
A	***i***	***ii***	***iii***
1	Design, Development, Hosting, Commissioning, Testing, Go-Live and Final Acceptance Certificate (FAC) etc. of Contract Labour Management System (CLMS) Software.	Lump Sum	1
B	**MANPOWER COST: Manpower Requirement during 1 year warranty and 1 year AMC Period**		
1	Support Engineer Cost during 1 Year Warranty Period	Nos.	4
2	Support Engineer Cost during 1 year AMC Period	Nos.	4
C	**Cloud Hosting and AMC Cost**		
1	Cloud Hosting during 1 Year Warranty period	Lump Sum	1
2	Cloud Hosting and 1 Year AMC Cost	Lump Sum	1

9 PRICE SCHEDULE

Price Schedule					
#	Bill of Material	UNIT	Quantity	Unit Rate (Excl. GST) (INR)	Total Amount (Excl. GST) (INR)
A	***i***	***ii***	***iii***	***iv***	***v = (iii*iv)***
1	Design, Development, Hosting, Commissioning, Testing, Go-Live and Final Acceptance Certificate (FAC) etc. of Contract Labour Management System (CLMS) Software.	Lump Sum	1	₹ 0.00	₹ 0.00
B	**Total**				**₹ 0.00**
C	**MANPOWER COST: Manpower Requirement during 1 year warranty and 1 year AMC Period**				**₹ 0.00**
1	Support Engineer Cost during 1 Year Warranty Period	Nos.	4	₹ 0.00	₹ 0.00
2	Support Engineer Cost during 1 year AMC Period	Nos.	4	₹ 0.00	₹ 0.00
D	**Cloud Hosting and AMC Cost**				**₹ 0.00**
1	Cloud Hosting during 1 Year Warranty period	Lump Sum	1	₹ 0.00	₹ 0.00
2	Cloud Hosting and 1 Year AMC Cost	Lump Sum	1	₹ 0.00	₹ 0.00
E	**Total Manpower Charges, Cloud Hosting and AMC Cost = C+D**				**₹ 0.00**
F	**Total quoted price (excl. GST) = B+E**				**₹ 0.00**
G	**GST @18% on F**				**₹ 0.00**
H	**Total quoted price (incl. GST) = F+G**				**₹ 0.00**

Note:

i. *The above is a Dummy Price Schedule and bidders shall not quote price here.*

ii. *The bidder must consider all costs, including supply, installation, commissioning, manpower, Warranty, Cloud Hosting and AMC for 2 years.*

10 COMPLIANCE TO REQUIRMENT (TECHNICAL / FUNCTIONAL SPECIFICATIONS)

The bidder should provide compliance to the requirement specifications (both technical and functional) specified in tender document. The same should be reproduced here, and compliance against each requirement line item should be submit with the technical bid. **If the bidder does not submit the Compliance to Requirement as per below format, then the bid shall be liable for rejection**.

FEATURE CHECK LIST OF CLMS		
Sl. No.	**Description**	**Compliance (Yes / No)**
A	**Contractor / Vendor Onboarding**	
1	Vendor Empanelment	
2	Review and Approve Documents	
3	Workflow System	
4	Labour License	
5	Contractor Labour License Expired	
6	Inter-State Migrant Worker License (ISMW)	
7	Alerts and Notifications	
8	Automatic Blocking Based on Expiry of Work Order	
9	Contractor / Vendor Performance	
B	**Workforce Onboarding and Offboarding**	
1	Workforce Hiring Management	
2	Managing Workforce Contract Data	
3	Review and Approve Workforce Documents	
4	Workforce Verification	
5	Configure Workforce Verification Type	
6	ESIS / PF Details & Compliances Validations	
7	Identity Check	
8	Inter-State Migrant Worker (ISMW) Detail	
9	Service Level Agreement (SLA) Management	
10	Medical Check-Up, Background Check Before Registration	
11	Safety & Induction (HSE Training)	
12	Training Assessment	
13	Safety Instruction Certificate with An Expiry	
14	PPE /Asset Issue	
15	Workforce Profile Creation	
16	Record Workforce Profile Along with Demographic Details	
17	Work History and Experience of Worker	
18	Workmen Entry Validation Based on Various Compliance’s	
19	Maintain Insurance, Police Verification, Provident, ESIC Fund Details Etc..	
20	Wages Pay Components Policy	

FEATURE CHECK LIST OF CLMS		
Sl. No.	**Description**	**Compliance (Yes / No)**
21	Leave Details	
22	Benefits Policy, Absence Policy, Workforce Loan Policy	
23	Issue Time-Barred Customized ID-Cards Pass with Photo & QR Code	
24	Bulk Renew Contract Worker Passes	
25	Workman Exit and Termination	
26	Department can Terminate or Extend the Validity of a Contract Worker	
C	**Attendance Management**	
1	Time and Attendance	
2	Check-In & Out with QR Code, Barcode, Biometric & Face Recognition	
3	Manual Attendance	
4	Capture and Manage Workforce Attendance	
5	Maintain Attendance and Workhours of Contract Workers	
6	Late Arrival / Early Departure	
7	Workmen Shift Master	
8	Employee Job Scheduling	
9	Time Sheet & OT Approval	
10	Device Integration with Time and Attendance Devices, Turnstile, Etc.	
D	**Leave Management**	
1	Workmen Leave Request	
2	Daywise Status (Absent, Present, Leave, Leave Type, Weekly Off)	
3	Workmen Leave Calendar	
4	Leave Master	
E	**Wages Management**	
1	Wages Components	
2	Wages Calculation Parameter as per Minimum Wages	
3	Approval	
4	Run Payroll	
F	**Contractor / Vendor Portal**	
1	Vendor Profile Management	
2	Quick Access Links	
3	See All Purchase Orders	
4	Uploading Invoices	
5	Document Management	
6	Subcontractor Management	
7	Workmen Profile	
8	Manage Workmen	
9	Request Management	
10	Requisition Management	
11	Spot Report	
12	Daily Report	

FEATURE CHECK LIST OF CLMS		
Sl. No.	**Description**	**Compliance (Yes / No)**
13	Monthly Report	
14	Activity Report	
15	Training Report	
16	Miscellaneous Report	
17	Mobile App	
G	**Training Management**	
1	Training Master	
2	Training Schedule & Nominations	
3	Approval	
4	Training Equipment	
5	Training Venues	
H	**PPE Inventory**	
1	Inventory Details	
2	Inventory Category and Sub-Category	
3	Inventory Returnable / Non-Returnable	
4	Issue Inventory by HSE Team / Store	
5	Return PPE	
I	**Performance Management**	
1	Contractor Performance Parameters	
2	Performance Parameters by Personnel Depertment	
3	Performance Parameters by Safety	
4	Performance Parameters by Finance	
5	Worker Performance	
6	Performance Parameters (User In-Charge)	
7	Performance Parameters (by HOD)	
8	Performance Parameters (by IR)	
9	Total Performance	
J	**Request Management**	
1	Pass Cancel Request	
2	Access Area Change Request	
3	Leave Request	
4	Request for Change in the Attendance Area	
5	Shift Change Request	
6	Overtime Request	
7	Amendment in Attendance Changes for Previous Month	
8	Request for Switching Workforce with New Contractor	
9	Changing Request for Workmen Department	
10	Training and Outdoor Duty Attendance Request	
11	Compliance Document Request	
K	**Integration**	

FEATURE CHECK LIST OF CLMS		
Sl. No.	**Description**	**Compliance (Yes / No)**
1	Integration To SAP/ERP	
2	SMS Integration	
3	Active Directory Integration	
4	Access Control /Biometric Integration	
5	Turnstile & Gate Integration	
6	Boom Barrier Integration	
7	Custom Workflow	
L	**Dashboard & Reports**	
1	View Dashboard	
2	Spot Report	
3	Daily Report	
4	Monthly Report	
5	Master Report	
6	Yearly Report	
7	Activity Report	
8	Training Report	
9	Access Report	
10	Operation's Log	
11	Miscellaneous Report	
12	Enrollment Report	
13	Set-up Automatic Reports to share with Team	
14	Generate Reports by Location, Division, Department wise	
15	Black-list Workmen Report	
16	Export Option XLS, Docx, PDF	
M	**Compliances**	
1	Statutory & Regulatory	
2	Without a weekly off	
3	Maximum work hours exceeded in a week	
4	Contractor Labour License Expired	
5	Labour License Capacity exceeded	
6	Medical Check-up not done	
7	Induction training not completed	
8	Work Order Expired	
9	Work Order Capacity Exceeded	
10	Debarred worker trying an entry	
11	Force Blocking of Entry of Workmen Based on Misconduct	
12	Carrying Unauthorized Equipment	
13	Unauthorized Area Access	
14	Periodic Alcohol Tests Etc..	
N	**Configuration**	

FEATURE CHECK LIST OF CLMS		
Sl. No.	**Description**	**Compliance (Yes / No)**
1	Create Multiple Type of Workmen Registers and workflow	
2	Change the Design of the Work- Pass Template	
3	Add User Defined Field (Customize) into the Screens	
4	Enable or Disable Email / SMS Notification	
5	Change the Contents of the Email in Email Templates	
6	Workflow Configuration	
7	NDA and Custom Agreement	
8	Upload Employee Details	
9	User / Role Based Access	
10	OTP Verification	
11	Time zone Based on the User Geography	
12	Configure Split Notification (Assistant Notification)	
13	Multiple Location and Multiple Gates	
14	Custom Logo and Branding	
15	Management Portal	
O	**Backup and Redundancy (On Cloud)**	
1	Offline Mode	
2	Data Back-ups	
3	Redundant Hosting	
P	**Product Security**	
1	Single Sign On (SSO)	
2	Permissions	
3	Password & Credential	
4	Perform Threat Assessment	
5	Encryption	
Q	**Service and Support**	
1	Support email, Phone and Online Chat	
2	Dedicated Single Point of Contact (SPOC)	
3	On-Site Support as per requirement	
4	Custom SLA and Monitoring through System	